

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

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**ORDER R5-2017-0113
NPDES NO. CA0079154**

**WASTE DISCHARGE REQUIREMENTS FOR THE
CITY OF TRACY
WASTEWATER TREATMENT PLANT
SAN JOAQUIN COUNTY**

The following Discharger is subject to waste discharge requirements (WDR's) set forth in this Order:

Table 1. Discharger Information

Discharger	City of Tracy
Name of Facility	Wastewater Treatment Plant
Facility Address	3900 Holly Drive
	Tracy, CA 95304
	San Joaquin County

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
001	Tertiary Treated Wastewater	37° 48' 19"	121° 24' 07"	Old River
002 ¹	Tertiary Treated Wastewater	37° 48' 20"	121° 24' 15"	Old River

¹ Future outfall proposed as part of Facility expansion.

Table 3. Administrative Information

This Order was adopted on:	8 December 2017
This Order shall become effective on:	1 February 2018
This Order shall expire on:	31 January 2023
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDR's in accordance with title 23, California Code of Regulations (CCR), and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	31 January 2022
The U.S. Environmental Protection Agency (U.S. EPA) and the California Regional Water Quality Control Board, Central Valley Region have classified this discharge as follows:	Major

I, Pamela C. Creedon, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **8 December 2017**.

ORIGINAL SIGNED BY

PAMELA C. CREEDON, Executive Officer

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I. FACILITY INFORMATION

Information describing the City of Tracy, Wastewater Treatment Plant (Facility) is summarized in Table 1 and in sections I and II of the Fact Sheet (Attachment F). Section I of the Fact Sheet also includes information regarding the Facility's permit application.

II. FINDINGS

The California Regional Water Quality Control Board, Central Valley Region (hereinafter Central Valley Water Board), finds:

- A. Legal Authorities.** This Order serves as WDR's pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as a National Pollutant Discharge Elimination System (NPDES) permit authorizing the Discharger to discharge into waters of the United States at the discharge locations described in Table 2 subject to the WDR's in this Order.
- B. Background and Rationale for Requirements.** The Central Valley Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E and G through H are also incorporated into this Order.
- C. Provisions and Requirements Implementing State Law.** The provisions/requirements in subsections **III.B, III.D, III.E, IV.B, IV.C, and V.B** are included to implement state law only. These provisions/requirements are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- D. Monitoring and Reporting.** 40 C.F.R. section 122.48 requires that all NPDES permits specify requirements for recording and reporting monitoring results. Water Code sections 13267 and 13383 authorize the Central Valley Water Board to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) establishes monitoring and reporting requirements to implement federal and State requirements. The MRP is provided in Attachment E.

The technical and monitoring reports in this Order are required in accordance with Water Code section 13267, which states the following in subsection (b)(1), *"In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports."*

The Discharger owns and operates the Facility subject to this Order. The monitoring reports required by this Order are necessary to determine compliance with this Order. The need for the monitoring reports is discussed in the Fact Sheet.

- E. Notification of Interested Parties.** The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDR's for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.
- F. Consideration of Public Comment.** The Central Valley Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED that Order R5-2012-0115-02 is rescinded upon the effective date of this Order except for enforcement purposes, and, in order to meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder, and the provisions of the CWA and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order. This action in no way prevents the Central Valley Water Board from taking enforcement action for past violations of the previous Order.

III. DISCHARGE PROHIBITIONS

- A.** Discharge of wastewater from the Facility, as the Facility is specifically described in the Fact Sheet in section II.B, in a manner different from that described in this Order is prohibited.
- B. Average Dry Weather Flow:**
 - 1. **Effective immediately and until compliance with Special Provision VI.C.6.b,** discharges exceeding an average dry weather flow of 10.8 million gallons per day (MGD) are prohibited.
 - 2. **Effective upon compliance with Special Provision VI.C.6.b and until compliance with Special Provision VI.C.6.c,** discharges exceeding an average dry weather flow of 12.5 MGD are prohibited.
 - 3. **Effective upon compliance with Special Provision VI.C.6.c and until compliance with Special Provision VI.C.6.d,** discharges exceeding an average dry weather flow of 13.6 MGD are prohibited.
 - 4. **Effective upon compliance with Special Provision VI.C.6.d,** discharges exceeding an average dry weather flow of 16 MGD are prohibited.
- C.** The bypass or overflow of wastes to surface waters is prohibited, except as allowed by Federal Standard Provisions I.G. and I.H. (Attachment D).
- D.** Neither the discharge nor its treatment shall create a nuisance as defined in section 13050 of the Water Code.
- E.** The Discharger shall not allow pollutant-free wastewater to be discharged into the treatment or disposal system in amounts that significantly diminish the system's capability to comply with this Order. Pollutant-free wastewater means rainfall, groundwater, cooling waters, and condensates that are essentially free of pollutants. This discharge prohibition does not prohibit the return of pollutant-free wastewater from a desalination plant.
- F.** Discharge of waste classified as "hazardous", as defined in the California Code of Regulations (CCR), title 22, section 66261.1 et seq., is prohibited.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharge Points 001 and 002

1. Final Effluent Limitations – Discharge Points 001 and 002

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 001 and Discharge Point 002. Unless otherwise specified, compliance shall be measured at Monitoring Location EFF-001 as described in the MRP, Attachment E.

- a. The Discharger shall maintain compliance with the effluent limitations specified in Table 4:

Table 4. Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Conventional Pollutants						
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	--	--	--
pH	standard units	--	--	--	6.5	8.5
Total Suspended Solids	mg/L	10	15	--	--	--
Priority Pollutants						
Chlorodibromomethane	µg/L	8.0	--	14	--	--
Dichlorobromomethane	µg/L	11	--	19	--	--
Non-Conventional Pollutants						
Ammonia Nitrogen, Total (as N)	mg/L	1.5	2.0	--	--	--
	lbs/day ¹	140	180	--	--	--
	lbs/day ²	160	210	--	--	--
	lbs/day ³	170	230	--	--	--
	lbs/day ⁴	200	270	--	--	--
Nitrate Plus Nitrite (as N)	mg/L	10	12	--	--	--

¹ Based on a design average daily discharge flow of 10.8 million gallons per day (MGD). Effective immediately and until compliance with Special Provision IV.C.6.b.

² Based on a design average daily discharge flow of 12.5 MGD. Effective upon compliance with Special Provisions VI.C.6.b and until compliance with Special Provision VI.C.6.c.

³ Based on a design average daily discharge flow of 13.6 MGD. Effective upon compliance with Special Provisions VI.C.6.c and until compliance with Special Provision VI.C.6.d.

⁴ Based on a design average daily discharge flow of 16 MGD. Effective upon compliance with Special Provisions VI.C.6.d.

- b. **Percent Removal:** The average monthly percent removal of 5-day biochemical oxygen demand (BOD₅) and total suspended solids (TSS) shall not be less than 85 percent.

- c. **Acute Whole Effluent Toxicity.** Survival of aquatic organisms in 96-hour bioassays of undiluted waste shall be no less than:
 - i. 70%, minimum for any one bioassay; and
 - ii. 90%, median for any three consecutive bioassays.
- d. **Temperature.** The maximum temperature of the discharge shall not exceed the natural receiving water temperature by more than 20°F.
- e. **Total Residual Chlorine.** Effluent total residual chlorine shall not exceed:
 - i. 0.011 mg/L, as a 4-day average; and
 - ii. 0.019 mg/L, as a 1-hour average.
- f. **Total Coliform Organisms.** Effluent total coliform organisms shall not exceed the following with compliance measured at Monitoring Location TCO-001 as described in the MRP, Attachment E:
 - i. 2.2 most probable number (MPN) per 100 mL, as a 7-day median;
 - ii. 23 MPN/100 mL, more than once in any 30-day period; and
 - iii. 240 MPN/100 mL, at any time.
- g. **Diazinon and Chlorpyrifos**
 - i. **Average Monthly Effluent Limitation**
$$S_{AMEL} = \frac{C_{DM-AVG}}{0.079} + \frac{C_{CM-AVG}}{0.012} \leq 1.0$$

C_{DM-AVG} = average monthly diazinon effluent concentration in µg/L.
 C_{CM-AVG} = average monthly chlorpyrifos effluent concentration in µg/L.
 - ii. **Average Weekly Effluent Limitation**
$$S_{AWEL} = \frac{C_{DW-AVG}}{0.14} + \frac{C_{CW-AVG}}{0.021} \leq 1.0$$

C_{DW-AVG} = average weekly diazinon effluent concentration in µg/L.
 C_{CW-AVG} = average weekly chlorpyrifos effluent concentration in µg/L.
- h. **Methylmercury. Effective 31 December 2030,** the effluent calendar year annual methylmercury load shall not exceed 0.77 grams, in accordance with the Delta Mercury Control Program.
- i. **Total Dissolved Solids.** The total effluent calendar year annual mass loading of total dissolved solids shall not exceed 13,688 tons.

2. Interim Effluent Limitations

The Discharger shall maintain compliance with the following interim effluent limitations at Discharge Point 001 and Discharge Point 002, with compliance measured at Monitoring Location EFF-001 as described in the MRP, Attachment E.

- a. **Mercury, Total. Effective immediately and until 30 December 2030,** the effluent calendar year annual total mercury load shall not exceed 41 grams/year. This interim effluent limitation shall apply in lieu of the final effluent limitation for methylmercury (section IV.A.1.i).

B. Land Discharge Specifications – Not Applicable

Land discharge specifications for the Facility are separately regulated in WDR Order R5-2007-0038.

C. Recycling Specifications – Not Applicable

V. RECEIVING WATER LIMITATIONS

A. Surface Water Limitations

The discharge shall not cause the following in the Old River:

1. **Bacteria.** The fecal coliform concentration, based on a minimum of not less than five samples for any 30-day period, to exceed a geometric mean of 200 MPN/100 mL, nor more than 10 percent of the total number of fecal coliform samples taken during any 30-day period to exceed 400 MPN/100 mL.
2. **Biostimulatory Substances.** Water to contain biostimulatory substances, which promote aquatic growths in concentrations that cause nuisance or adversely affect beneficial uses.
3. **Chemical Constituents.** Chemical constituents to be present in concentrations that adversely affect beneficial uses.
4. **Color.** Discoloration that causes nuisance or adversely affects beneficial uses.
5. **Dissolved Oxygen.** The dissolved oxygen concentration to be reduced below 5.0 mg/L.
6. **Floating Material.** Floating material to be present in amounts that cause nuisance or adversely affect beneficial uses.
7. **Oil and Grease.** Oils, greases, waxes, or other materials to be present in concentrations that cause nuisance, result in a visible film or coating on the surface of the water or on objects in the water, or otherwise adversely affect beneficial uses.
8. **pH.** The pH to be depressed below 6.5 nor raised above 8.5.
9. **Pesticides:**
 - a. Pesticides to be present, individually or in combination, in concentrations that adversely affect beneficial uses;
 - b. Pesticides to be present in bottom sediments or aquatic life in concentrations that adversely affect beneficial uses;
 - c. Total identifiable persistent chlorinated hydrocarbon pesticides to be present in the water column at concentrations detectable within the accuracy of analytical methods approved by U.S. EPA or the Executive Officer;
 - d. Pesticide concentrations to exceed those allowable by applicable antidegradation policies (see State Water Board Resolution 68-16 and 40 C.F.R. section 131.12.);
 - e. Pesticide concentrations to exceed the lowest levels technically and economically achievable;
 - f. Pesticides to be present in concentrations in excess of the maximum contaminant levels (MCL's) set forth in CCR, Title 22, division 4, chapter 15; nor
 - g. Thiobencarb to be present in excess of 1.0 µg/L.

10. **Radioactivity:**

- a. Radionuclides to be present in concentrations that are harmful to human, plant, animal, or aquatic life nor that result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.
- b. Radionuclides to be present in excess of the MCL's specified in Table 64442 of section 64442 and Table 64443 of section 64443 of Title 22 of the CCR.

11. **Suspended Sediments.** The suspended sediment load and suspended sediment discharge rate of surface waters to be altered in such a manner as to cause nuisance or adversely affect beneficial uses.

12. **Settleable Substances.** Substances to be present in concentrations that result in the deposition of material that causes nuisance or adversely affects beneficial uses.

13. **Suspended Material.** Suspended material to be present in concentrations that cause nuisance or adversely affect beneficial uses.

14. **Taste and Odors.** Taste- or odor-producing substances to be present in concentrations that impart undesirable tastes or odors to fish flesh or other edible products of aquatic origin, or that cause nuisance, or otherwise adversely affect beneficial uses.

15. **Temperature.**

- a. The creation of a zone, defined by water temperatures of more than 1°F above natural receiving water temperature, which exceeds 25 percent of the cross-sectional area of the river channel at any point.
- b. A surface water temperature rise greater than 4°F above the natural temperature of the receiving water at any time or place.

16. **Toxicity.** Toxic substances to be present, individually or in combination, in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.

17. **Turbidity:**

- a. Shall not exceed 2 Nephelometric Turbidity Units (NTU) where natural turbidity is less than 1 NTU;
- b. Shall not increase more than 1 NTU where natural turbidity is between 1 and 5 NTU;
- c. Shall not increase more than 20 percent where natural turbidity is between 5 and 50 NTU;
- d. Shall not increase more than 10 NTU where natural turbidity is between 50 and 100 NTU; nor
- e. Shall not increase more than 10 percent where natural turbidity is greater than 100 NTU.

B. Groundwater Limitations – Not Applicable

Groundwater limitations applicable to the Facility are separately required in WDR Order R5-2007-0038.

VI. PROVISIONS

A. Standard Provisions

1. The Discharger shall comply with all Standard Provisions included in Attachment D.
2. The Discharger shall comply with the following provisions. In the event that there is any conflict, duplication, or overlap between provisions specified by this Order, the more stringent provision shall apply:
 - a. If the Discharger's wastewater treatment plant is publicly owned or subject to regulation by California Public Utilities Commission, it shall be supervised and operated by persons possessing certificates of appropriate grade according to Title 23, CCR, division 3, chapter 26.
 - b. After notice and opportunity for a hearing, this Order may be terminated or modified for cause, including, but not limited to:
 - i. violation of any term or condition contained in this Order;
 - ii. obtaining this Order by misrepresentation or by failing to disclose fully all relevant facts;
 - iii. a change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge; and
 - iv. a material change in the character, location, or volume of discharge.

The causes for modification include:

- i. *New regulations.* New regulations have been promulgated under section 405(d) of the CWA, or the standards or regulations on which the permit was based have been changed by promulgation of amended standards or regulations or by judicial decision after the permit was issued.
- ii. *Land application plans.* When required by a permit condition to incorporate a land application plan for beneficial reuse of sewage sludge, to revise an existing land application plan, or to add a land application plan.
- iii. *Change in sludge use or disposal practice.* Under 40 C.F.R. section 122.62(a)(1), a change in the Discharger's sludge use or disposal practice is a cause for modification of the permit. It is cause for revocation and reissuance if the Discharger requests or agrees.

The Central Valley Water Board may review and revise this Order at any time upon application of any affected person or the Central Valley Water Board's own motion.

- c. If a toxic effluent standard or prohibition (including any scheduled compliance specified in such effluent standard or prohibition) is established under section 307(a) of the CWA, or amendments thereto, for a toxic pollutant that is present in the discharge authorized herein, and such standard or prohibition is more stringent than any limitation upon such pollutant in this Order, the Central Valley Water Board will revise or modify this Order in accordance with such toxic effluent standard or prohibition.

The Discharger shall comply with effluent standards and prohibitions within the time provided in the regulations that establish those standards or prohibitions, even if this Order has not yet been modified.

- d. This Order shall be modified, or alternately revoked and reissued, to comply with any applicable effluent standard or limitation issued or approved under sections 301(b)(2)(C) and (D), 304(b)(2), and 307(a)(2) of the CWA, if the effluent standard or limitation so issued or approved:
 - i. Contains different conditions or is otherwise more stringent than any effluent limitation in the Order; or
 - ii. Controls any pollutant limited in the Order.

The Order, as modified or reissued under this paragraph, shall also contain any other requirements of the CWA then applicable.
- e. The provisions of this Order are severable. If any provision of this Order is found invalid, the remainder of this Order shall not be affected.
- f. The Discharger shall take all reasonable steps to minimize any adverse effects to waters of the State or users of those waters resulting from any discharge or sludge/biosolids use or disposal in violation of this Order. Reasonable steps shall include such accelerated or additional monitoring as necessary to determine the nature and impact of the non-complying discharge or sludge/biosolids use or disposal.
- g. The Discharger shall ensure compliance with any existing or future pretreatment standard promulgated by U.S. EPA under section 307 of the CWA, or amendment thereto, for any discharge to the municipal system.
- h. A copy of this Order shall be maintained at the Facility and be available at all times to operating personnel. Key operating personnel shall be familiar with its content.
- i. Safeguard to electric power failure:
 - i. The Discharger shall provide safeguards to assure that, should there be reduction, loss, or failure of electric power, the discharge shall comply with the terms and conditions of this Order.
 - ii. Upon written request by the Central Valley Water Board, the Discharger shall submit a written description of safeguards. Such safeguards may include alternate power sources, standby generators, retention capacity, operating procedures, or other means. A description of the safeguards provided shall include an analysis of the frequency, duration, and impact of power failures experienced over the past 5 years on effluent quality and on the capability of the Discharger to comply with the terms and conditions of the Order. The adequacy of the safeguards is subject to the approval of the Central Valley Water Board.
 - iii. Should the treatment works not include safeguards against reduction, loss, or failure of electric power, or should the Central Valley Water Board not approve the existing safeguards, the Discharger shall, within 90 days of having been advised in writing by the Central Valley Water Board that the existing safeguards are inadequate, provide to the Central Valley Water Board and U.S. EPA a schedule of compliance for providing safeguards such that in the event of reduction, loss, or failure of electric power, the Discharger shall comply with the terms and conditions of this Order. The schedule of compliance shall, upon approval of the Central Valley Water Board, become a condition of this Order.

- j. The Discharger, upon written request of the Central Valley Water Board, shall file with the Board a technical report on its preventive (failsafe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. This report may be combined with that required under the Central Valley Water Board Standard Provision contained in section VI.A.2.i of this Order.

The technical report shall:

- i. Identify the possible sources of spills, leaks, untreated waste bypass, and contaminated drainage. Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks and pipes should be considered.
- ii. Evaluate the effectiveness of present facilities and procedures and state when they became operational.
- iii. Predict the effectiveness of the proposed facilities and procedures and provide an implementation schedule containing interim and final dates when they will be constructed, implemented, or operational.

The Central Valley Water Board, after review of the technical report, may establish conditions which it deems necessary to control accidental discharges and to minimize the effects of such events. Such conditions shall be incorporated as part of this Order, upon notice to the Discharger and the public.

- k. A publicly owned treatment works whose waste flow has been increasing, or is projected to increase, shall estimate when flows will reach hydraulic and treatment capacities of its treatment and disposal facilities. The projections shall be made in January, based on the last 3 years' average dry weather flows, peak wet weather flows and total annual flows, as appropriate. When any projection shows that capacity of any part of the facilities may be exceeded in 4 years, the Discharger shall notify the Central Valley Water Board by 31 January. A copy of the notification shall be sent to appropriate local elected officials, local permitting agencies and the press. Within 120 days of the notification, the Discharger shall submit a technical report showing how it will prevent flow volumes from exceeding capacity or how it will increase capacity to handle the larger flows. The Central Valley Water Board may extend the time for submitting the report.
- l. The Discharger shall submit technical reports as directed by the Executive Officer. All technical reports required herein that involve planning, investigation, evaluation, or design, or other work requiring interpretation and proper application of engineering or geologic sciences, shall be prepared by or under the direction of persons registered to practice in California pursuant to California Business and Professions Code, sections 6735, 7835, and 7835.1. To demonstrate compliance with Title 16, CCR, sections 415 and 3065, all technical reports must contain a statement of the qualifications of the responsible registered professional(s). As required by these laws, completed technical reports must bear the signature(s) and seal(s) of the registered professional(s) in a manner such that all work can be clearly attributed to the professional responsible for the work.
- m. The Central Valley Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13385, 13386, and 13387.
- n. In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the Discharger, the Discharger shall notify

the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board.

To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the state of incorporation if a corporation, address and telephone number of the persons responsible for contact with the Central Valley Water Board and a statement. The statement shall comply with the signatory and certification requirements in the federal Standard Provisions (Attachment D, section V.B) and state that the new owner or operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the Water Code. Transfer shall be approved or disapproved in writing by the Executive Officer.

- o. Failure to comply with provisions or requirements of this Order, or violation of other applicable laws or regulations governing discharges from the Facility, may subject the Discharger to administrative or civil liabilities, criminal penalties, and/or other enforcement remedies to ensure compliance. Additionally, certain violations may subject the Discharger to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities.
- p. In the event the Discharger does not comply or will be unable to comply for any reason, with any prohibition, effluent limitation, or receiving water limitation of this Order, the Discharger shall notify the Central Valley Water Board by telephone (916) 464-3291 within 24 hours of having knowledge of such non-compliance, and shall confirm this notification in writing within 5 days, unless the Central Valley Water Board waives confirmation. The written notification shall state the nature, time, duration, and cause of non-compliance, and shall describe the measures being taken to remedy the current non-compliance and prevent recurrence including, where applicable, a schedule of implementation. Other non-compliance requires written notification as above at the time of the normal monitoring report.

B. Monitoring and Reporting Program (MRP) Requirements

The Discharger shall comply with the MRP, and future revisions thereto, in Attachment E.

C. Special Provisions

1. Reopener Provisions

- a. Conditions that necessitate a major modification of a permit are described in 40 C.F.R. section 122.62, including, but not limited to:
 - i. If new or amended applicable water quality standards are promulgated or approved pursuant to section 303 of the CWA, or amendments thereto, this permit may be reopened and modified in accordance with the new or amended standards.
 - ii. When new information, that was not available at the time of permit issuance, would have justified different permit conditions at the time of issuance.
- b. This Order may be reopened for modification, or revocation and reissuance, as a result of the detection of a reportable priority pollutant generated by special conditions included in this Order. These special conditions may be, but are not limited to, fish tissue sampling, whole effluent toxicity, monitoring requirements on internal waste stream(s), and monitoring for surrogate parameters. Additional

requirements may be included in this Order as a result of the special condition monitoring data.

- c. **Mercury.** The Basin Plan's Delta Mercury Control Program was designed to proceed in two phases. After Phase 1, the Central Valley Water Board will conduct a Phase 1 Delta Mercury Control Program Review that considers modification to the Delta Mercury Control Program. This Order may be reopened to address changes to the Delta Mercury Control Program.
- d. **Pollution Prevention.** This Order requires the Discharger implement pollution prevention plans following Water Code section 13263.3(d)(3) for mercury and salinity. Based on a review of the pollution prevention plans, this Order may be reopened for addition and/or modification of effluent limitations and requirements for these constituents.
- e. **Whole Effluent Toxicity (WET).** As a result of a Toxicity Reduction Evaluation (TRE) or Toxicity Evaluation Study (TES), this Order may be reopened to include a new chronic toxicity effluent limitation, a revised acute toxicity effluent limitation, and/or an effluent limitation for a specific toxicant identified in a TRE. Additionally, if the State Water Board revises the SIP's toxicity control provisions, this Order may be reopened to implement the new provisions.
- f. **Water Effects Ratios (WER) and Metal Translators.** A default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. In addition, default dissolved-to-total metal translators have been used to convert water quality objectives from dissolved to total recoverable. If the Discharger performs studies to determine site-specific WER's and/or site-specific dissolved-to-total metal translators, this Order may be reopened to modify the effluent limitations for the applicable inorganic constituents.
- g. **Drinking Water Policy.** On 26 July 2013 the Central Valley Water Board adopted Resolution R5-2013-0098 amending the Basin Plan and establishing a Drinking Water Policy. The State Water Board approved the Drinking Water Policy on 3 December 2013. This Order may be reopened to incorporate monitoring of drinking water constituents to implement the Drinking Water Policy.
- h. **Bay Delta Plan South Delta Salinity Objectives Update.** The State Water Board is currently in the process of updating the South Delta Salinity Objectives contained in the Bay-Delta Plan. The updated salinity objectives may result in needed changes to the salinity requirements in this Order. Therefore, this Order may be reopened to modify salinity requirements, as appropriate, in accordance with changes to the Bay-Delta Plan.

2. Special Studies, Technical Reports and Additional Monitoring Requirements

- a. **Toxicity Reduction Evaluation Requirements.** This Provision requires the Discharger to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity. If the discharge exceeds the chronic toxicity thresholds defined in this Provision, the Discharger is required to initiate a Toxicity Reduction Evaluation (TRE) in accordance with an approved TRE Work Plan, and take actions to mitigate the impact of the discharge and prevent recurrence of toxicity. A TRE is a site-specific study conducted in a stepwise process to identify the source(s) of toxicity and the effective control measures for effluent toxicity. TREs are designed to identify the causative agents and sources of whole effluent toxicity, evaluate the effectiveness of the toxicity control options, and confirm the reduction in effluent toxicity. Alternatively, under certain conditions as described in this provision below,

the Discharger may participate in an approved Toxicity Evaluation Study (TES) in lieu of conducting a site-specific TRE

- i. **Numeric Toxicity Monitoring Trigger.** The numeric toxicity monitoring trigger is 1 TUc (where $TUc = 100/NOEC$). The monitoring trigger is not an effluent limitation; it is the toxicity threshold at which the Discharger is required to initiate additional actions to evaluate effluent toxicity as specified in subsection ii, below.
- ii. **Chronic Toxicity Monitoring Trigger Exceeded.** When a chronic whole effluent toxicity result during routine monitoring exceeds the chronic toxicity monitoring trigger, the Discharger shall proceed as follows:
 - (a) **Initial Toxicity Check.** If the result is less than or equal to 1.3 TUc (as $100/EC_{25}$) AND the percent effect is less than 25 percent at 100 percent effluent, check for any operation or sample collection issues and return to routine chronic toxicity monitoring.¹ Otherwise, proceed to step (b).
 - (b) **Evaluate 6-week Median.** The Discharger may take two additional samples within 6 weeks of the initial routine sampling event exceeding the chronic toxicity monitoring trigger to evaluate compliance using a 6-week median. If the 6-week median is greater than 1.3 TUc (as $100/EC_{25}$) and the percent effect is greater than 25 percent at 100 percent effluent, proceed with subsection (c). Otherwise, the Discharger shall check for any operation or sample collection issues and return to routine chronic toxicity monitoring.
 - (c) **Toxicity Source Easily Identified.** If the source(s) of the toxicity is easily identified (e.g., temporary plant upset), the Discharger shall make necessary corrections to the facility and shall resume routine chronic toxicity monitoring; If the source of toxicity is not easily identified the Discharger shall conduct a site-specific TRE or participate in an approved TES as described in the following subsections.
 - (d) **Toxicity Evaluation Study.** If the percent effect is ≤ 50 percent at **100** percent effluent, as the median of up to three consecutive chronic toxicity tests within a 6 week period, the Discharger may participate in an approved TES in lieu of a site-specific TRE. The TES may be conducted individually or as part of a coordinated group effort with other similar dischargers. If the Discharger chooses not to participate in an approved TES, a site-specific TRE shall be initiated in accordance with subsection (e)(1), below. Nevertheless, the Discharger may participate in an approved TES instead of a TRE if the Discharger has conducted a site-specific TRE within the past 12 months and has been unsuccessful in identifying the toxicant.
 - (e) **Toxicity Reduction Evaluation.** If the percent effect is > 50 percent at **100** percent effluent, as the median of three consecutive chronic toxicity tests within a 6 week period, the Discharger shall initiate a site-specific TRE as follows:

¹ The Discharger may participate in an approved Toxicity Evaluation Study if the chronic toxicity monitoring trigger is exceeded twice or more in the past 12 month period and the cause is not identified and/or addressed.

(1) **Within thirty (30) days** of exceeding the chronic toxicity monitoring trigger, the Discharger shall submit a TRE Action Plan to the Central Valley Water Board including, at minimum:

- Specific actions the Discharger will take to investigate and identify the cause(s) of toxicity, including a TRE WET monitoring schedule;
- Specific actions the Discharger will take to mitigate the impact of the discharge and prevent the recurrence of toxicity; and
- A schedule for these actions.

- b. **Phase 1 Methylmercury Control Study.** In accordance with the Basin Plan's Delta Mercury Control Program and the compliance schedule included in this Order for methylmercury (section VI.C.7.a), the Discharger shall participate in the Central Valley Clean Water Association (CVCWA) Coordinated Methylmercury Control Study (Methylmercury Control Study) to evaluate existing control methods and, as needed, develop additional control methods that could be implemented to achieve the methylmercury waste load allocation. A work plan was submitted by CVCWA on 20 April 2013.

The Methylmercury Control Study shall evaluate the feasibility of reducing sources more than the minimum amount needed to achieve the methylmercury allocation. The Methylmercury Control Study also may include an evaluation of innovative actions, watershed approaches, offsets projects, and other short and long-term actions that result in reducing inorganic (total) mercury and methylmercury to address the accumulation of methylmercury in fish tissue and to reduce methylmercury exposure. The Methylmercury Control Study may evaluate the effectiveness of using inorganic (total) mercury controls to control methylmercury discharges.

The Methylmercury Control Study shall include a description of methylmercury and/or inorganic (total) mercury management practices identified in Phase 1; an evaluation of the effectiveness, costs, potential environmental effects, and overall feasibility of the control actions. The Methylmercury Control Study shall also include proposed implementation plans and schedules to comply with methylmercury allocations as soon as possible. The Methylmercury Control Study shall be submitted to the Central Valley Water Board by **20 October 2018**.

The Executive Officer may, after public notice, extend the due date up to 2 years if the Discharger demonstrates it is making significant progress towards developing, implementing, and/or completing the Methylmercury Control Study and reasonable attempts have been made to secure funding for the Methylmercury Control Study, but the Discharger has experienced severe budget shortfalls.

3. Best Management Practices and Pollution Prevention

- a. **Pollution Prevention Plan for Mercury.** The Discharger shall continue to implement a pollution prevention plan for mercury in accordance with Water Code section 13263.3(d)(3), per the compliance schedule in this Order for methylmercury (section VI.C.7.a). The minimum requirements for the pollution prevention plan are outlined in the Fact Sheet (Attachment F, section VI.B.3.a). Progress reports shall be submitted in accordance with the MRP (Attachment E, section X.D.1). The progress reports shall discuss the effectiveness of the pollution prevention plan in

the reduction of mercury in the discharge, include a summary of mercury and methylmercury monitoring results, and discuss updates to the pollution prevention plan.

- b. **Mercury Exposure Reduction Program (MERP).** The Discharger shall participate in a MERP in accordance with the Basin Plan's Delta Mercury Control Program. The Discharger elected to provide financial support in the collective MERP with other Delta dischargers rather than be individually responsible for any MERP activities. An exposure reduction work plan for Executive Officer approval was submitted on 20 October 2013. The objective of the MERP is to reduce mercury exposure of Delta fish consumers most likely affected by mercury. The work plan shall address the MERP objective, elements, and the Discharger's coordination with other stakeholders. The minimum requirements for the exposure reduction work plan are outlined in the Face Sheet (Attachment F, section VI.B.3.b). The Discharger shall continue to participate in the group effort to implement the work plan through 2020 or until they comply with all requirements related to the individual or subarea methylmercury allocation. The Discharger shall notify the Central Valley Water Board if it plans to perform mercury exposure reduction activities individually.
- c. **Salinity Reduction Plan.** The Discharger shall maintain the Salinity Reduction Plan, submitted on 30 June 2008, which describes the Discharger's approach to identify, evaluate, and implement measures to reduce salinity in the effluent discharged to the Old River. The Discharger shall submit annual progress reports in accordance with the MRP (Attachment E, section X.D.1). The Salinity Reduction Plan shall, at minimum, contain the following:
 - i. **Pollution Prevention Plan.** The Discharger submitted a pollution prevention plan for salinity that meets the requirements of Water Code section 13263.3(d)(3). The Discharger shall continue to implement the pollution prevention plan and evaluate and update the pollution prevention plan annually. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the effectiveness of the pollution prevention plan and any updates to the pollution prevention plan.
 - ii. **Salinity Reduction Goal.** The Central Valley Water Board finds that a calendar annual average of 500 $\mu\text{mhos/cm}$ as electrical conductivity increase over the calendar annual weighted average electrical conductivity of the Discharger's water supply is a reasonable increase due to consumptive use in the community. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the progress in meeting the salinity reduction goal.
 - iii. **Central Valley Salinity Alternatives for Long-Term Sustainability (CV-SALTS) Participation.** The Discharger shall participate in CV-SALTS. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the Discharger's participation in CV-SALTS.
 - iv. **Lower Salinity Water Supply Sources.** The Salinity Reduction Plan shall include a discussion of the Discharger's efforts to obtain lower salinity water supplies and the annual progress reports for the Salinity Reduction Plan shall include a discussion of the Discharger's efforts in this area.

4. Construction, Operation and Maintenance Specifications

- a. **Turbidity.** The Discharger shall operate the treatment system to ensure that the turbidity measured at EFF-001, as described in the MRP (Attachment E), shall not exceed:
- i. 2 NTU as a daily average;
 - ii. 5 NTU more than 5 percent of the time within a 24-hour period; and
 - iii. 10 NTU, at any time.

5. Special Provisions for Publicly-Owned Treatment Works (POTW's)

a. **Pretreatment Requirements**

- i. The Discharger shall be responsible and liable for the performance of all Control Authority pretreatment requirements contained in 40 C.F.R. part 403, including any subsequent regulatory revisions to 40 C.F.R. part 403. Where 40 C.F.R. part 403 or subsequent revisions places mandatory actions upon the Discharger as Control Authority but does not specify a timetable for completion of the actions, the Discharger shall complete the required actions within 6 months from the issuance date of this permit or the effective date of the 40 C.F.R. part 403 revisions, whichever comes later. For violations of pretreatment requirements, the Discharger shall be subject to enforcement actions, penalties, fines, and other remedies by U.S. EPA or other appropriate parties, as provided in the CWA. U.S. EPA may initiate enforcement action against a non-domestic user for non-compliance with applicable standards and requirements as provided in the CWA.
 - ii. The Discharger shall enforce the requirements promulgated under sections 307(b), 307(c), 307(d), and 402(b) of the CWA with timely, appropriate and effective enforcement actions. The Discharger shall cause all non-domestic users subject to federal categorical standards to achieve compliance no later than the date specified in those requirements or, in the case of a new non-domestic user, upon commencement of the discharge.
 - iii. The Discharger shall perform the pretreatment functions as required in 40 C.F.R. part 403 including, but not limited to:
 - (a) Implement the necessary legal authorities as provided in 40 C.F.R. section 403.8(f)(1);
 - (b) Enforce the pretreatment requirements under 40 C.F.R. section 403.5 and 403.6;
 - (c) Implement the programmatic functions as provided in 40 C.F.R. section 403.8(f)(2); and
 - (d) Provide the requisite funding and personnel to implement the pretreatment program as provided in 40 C.F.R. section 403.8(f)(3).
 - iv. **Pretreatment Reporting Requirements.** Pretreatment reporting requirements are included in the MRP, section X.D.4 of Attachment E.
- b. **Collection System.** The Discharger is separately subject to the requirements of, and must comply with State Water Board Order 2006-0003-DWQ, Statewide General Waste Discharge Requirements for Sanitary Sewer Systems as amended by State Water Board Order WQ 2013-0058-EXEC and any subsequent Order.

- c. **Resource Recovery from Anaerobically Digestible Material.** If the Discharger will receive hauled-in anaerobically digestible material for injection into an anaerobic digester, the Discharger shall notify the Central Valley Water Board and develop and implement Standard Operating Procedures for this activity. The Standard Operating Procedures shall be developed prior to receiving hauled-in anaerobically digestible material. The Standard Operating Procedures shall address material handling, including unloading, screening, or other processing prior to anaerobic digestion; transportation; spill prevention; and spill response. In addition, the Standard Operating Procedures shall address avoidance of the introduction of materials that could cause interference, pass-through, or upset of the treatment processes; avoidance of prohibited material; vector control; odor control; operation and maintenance; and the disposition of any solid waste segregated from introduction to the digester. The Discharger shall train its staff on the Standard Operating Procedures and shall maintain records for a minimum of 5 years for each load received, describing the hauler, waste type, and quantity received. In addition, the Discharger shall maintain records for a minimum of 5 years for the disposition, location, and quantity of cumulative pre-digestion-segregated solid waste hauled off-site.

6. Other Special Provisions

- a. **Title 22, or Equivalent, Disinfection Requirements.** Wastewater shall be oxidized, coagulated, filtered, and adequately disinfected pursuant to the State Water Board, Division of Drinking Water (DDW) reclamation criteria, Title 22, or equivalent.
- b. **Phase 2 Improvements (12.5 MGD).** The Discharger has requested an expansion of allowable flows to be discharged to the Old River. The permitted average dry weather discharge flow may increase to 12.5 MGD upon compliance with the following conditions:
 - i. **Facility Improvements.** The Discharger shall have completed construction of its Phase 2 improvements, which include construction of a second outfall pipeline and diffuser and new primary clarifier. The Discharger shall provide certification of completion by the design engineer.
 - ii. **Thermal Plan Compliance.** The Discharger shall provide information demonstrating the increased discharge will comply with section V.A.15 of this Order.
 - iii. **Request for Flow Increase.** The Discharger shall submit a request for an increase in the permitted discharge flow rate, which demonstrates compliance with items i and ii, above. The increase in the permitted discharge flow rate shall not be effective until the Executive Officer verifies compliance with Special Provisions VI.C.6.b and approves the request.

- c. **Phase 3 Improvements (13.6 MGD).** The Discharger has requested an expansion of allowable flows to be discharged to the Old River. The permitted average dry weather discharge flow may increase to 13.6 MGD upon compliance with the following conditions:
 - i. **Facility Improvements.** The Discharger shall have completed construction of its Phase 3 improvements, which include construction of one aeration basin and secondary clarifier and installation of a new filter pump for tertiary treatment. The Discharger shall provide certification of completion by the design engineer.
 - ii. **Thermal Plan Compliance.** The Discharger shall provide information demonstrating the increased discharge will comply with section V.A.15 of this Order.
 - iii. **Request for Flow Increase.** The Discharger shall submit a request for an increase in the permitted discharge flow rate, which demonstrates compliance with terms i and ii, above. The increase in the permitted discharge flow rate shall not be effective until the Executive Officer verifies compliance with Special Provisions VI.C.6.c and approves the request.
- d. **Phase 4 Improvements (16 MGD).** The Discharger has requested an expansion of allowable flows to be discharged to the Old River. The permitted average dry weather discharge flow may increase to 16 MGD upon compliance with the following conditions:
 - i. **Facility Improvements.** The Discharger shall have completed construction of its Phase 4 improvements, which include replacement of two effluent pumps with larger capacity pumps, and construction of a sludge digester. The Discharger shall provide certification of completion by the design engineer.
 - ii. **Thermal Plan Compliance.** The Discharger shall provide information demonstrating the increased discharge will comply with the receiving water limits for temperature in section V.A.15 of this Order.
 - iii. **Request for Flow Increase.** The Discharger shall submit a request for an increase in the permitted discharge flow rate, which demonstrates compliance with items i and ii, above. The increase in the permitted discharge flow rate shall not be effective until the Executive Officer verifies compliance with Special Provisions VI.C.6.d and approves the request.

7. Compliance Schedules

- a. **Compliance Schedules for Final Effluent Limitations for Methylmercury.** This Order requires compliance with the final effluent limitations for methylmercury by **31 December 2030**. The Discharger shall comply with the following time schedule to ensure compliance with the final effluent limitations:

<u>Task</u>	<u>Date Due</u>
<u>Phase 1</u>	
i. Submit CVCWA Coordinated Methylmercury Control Study Work Plan	Complete
ii. Update and Implement Pollution Prevention Plan ¹ for Mercury (per section VI.C.3.a)	Complete

<u>Task</u>	<u>Date Due</u>
iii. Implement CVCWA Coordinated Methylmercury Control Study Work Plan	Immediately following Executive Officer approval
iv. Annual Progress Reports ²	20 October, annually
v. Submit Final CVCWA Coordinated Methylmercury Control Study (per section VI.C.2.b)	20 October 2018³
<u>Phase 2</u>	
vi. Implement methylmercury control programs	TBD⁴
vii. Full Compliance	31 December 2030
¹ The pollution prevention plan for mercury shall be implemented in accordance with section VI.C.3.a. ² Beginning 20 October 2018 and annually thereafter until the Facility achieves compliance with the final effluent limitations for methylmercury, the Discharger shall submit annual progress reports on pollution minimization activities implemented and evaluation of their effectiveness, including a summary of total mercury and methylmercury monitoring results. ³ The Executive Officer may, after public notice, extend the due date for the Final CVCWA Coordinated Methylmercury Control Study up to 2 years if the Discharger demonstrates it is making significant progress towards developing, implementing, and/or completing the Study and reasonable attempts have been made to secure funding for the Study, but the Discharger has experienced severe budget shortfalls. ⁴ To be determined. Following Phase 1 the Central Valley Water Board will conduct a Phase 1 Delta Mercury Control Program Review that considers: modification of methylmercury goals, objectives, allocations, final compliance date, etc. Consequently, the start of Phase 2 and the final compliance date is uncertain at the time this Order was adopted.	

VII. COMPLIANCE DETERMINATION

- A. BOD₅ and TSS Effluent Limitations (Sections IV.A.1.a and IV.A.1.b).** Compliance with the final effluent limitations for BOD₅ and TSS required in Waste Discharge Requirements section IV.A.1.a shall be ascertained by 24-hour composite samples. Compliance with effluent limitations required in Waste Discharge Requirements section IV.A.1.b for percent removal shall be calculated using the arithmetic mean of BOD₅ and TSS in effluent samples collected over a monthly period as a percentage of the arithmetic mean of the values for influent samples collected at INF-001 and INF-002 at approximately the same times during the same period. Influent BOD and TSS concentrations shall be calculated as a flow-weighted concentration of INF-001 and INF-002, as shown in the following equation:

$$[(Q_{001} \times C_{001}) + (Q_{002} \times C_{002})] / (Q_{001} + Q_{002})$$

where Q_{001} = INF-001 flow

Q_{002} = INF-002 flow

C_{001} = INF-001 concentration

C_{002} = INF-002 concentration

- B. Total Mass Loading Effluent Limitations for Methylmercury, Total Mercury, and Total Dissolved Solids (Sections IV.A.1.i, IV.A.1.j, and IV.A.2.a).** The procedures for calculating mass loadings are as follows:

1. The total pollutant mass load for each individual calendar month shall be determined using an average of all concentration data collected that month and the corresponding total monthly flow. All effluent monitoring data collected under the MRP, pretreatment

program, and any special studies shall be used for these calculations. The total annual mass loading shall be the sum of the individual calendar months.

2. In calculating compliance, the Discharger shall count all non-detect (ND) measures at one-half of the detection level. If compliance with the effluent limitation is not attained due to the ND contribution, the Discharger shall improve and implement available analytical capabilities and compliance shall be evaluated with consideration of the detection limits.
- C. Average Dry Weather Flow Prohibition (Section III.B).** The average dry weather discharge flow represents the daily average flow when groundwater is at or near normal and runoff is not occurring. Compliance with the average dry weather flow prohibition will be determined annually based on the average daily flow over three consecutive dry weather months (e.g., July, August, and September).
- D. Total Coliform Organisms Effluent Limitations (Section IV.A.1.f).** For each day that an effluent sample is collected and analyzed for total coliform organisms, the 7-day median shall be determined by calculating the median concentration of total coliform bacteria in the effluent utilizing the bacteriological results of the last 7 days. For example, if a sample is collected on a Wednesday, the result from that sampling event and all results from the previous 6 days (i.e., Tuesday, Monday, Sunday, Saturday, Friday, and Thursday) are used to calculate the 7-day median. If the 7-day median of total coliform organisms exceeds a MPN of 2.2 per 100 milliliters, the Discharger will be considered out of compliance.
- E. Total Residual Chlorine Effluent Limitations (Section IV.A.1.e).** Continuous monitoring analyzers for chlorine residual or for dechlorination agent residual in the effluent are appropriate methods for compliance determination. A positive residual dechlorination agent in the effluent indicates that chlorine is not present in the discharge, which demonstrates compliance with the effluent limitations. This type of monitoring can also be used to prove that some chlorine residual exceedances are false positives. Continuous monitoring data showing either a positive dechlorination agent residual or a chlorine residual at or below the prescribed limit are sufficient to show compliance with the total residual chlorine effluent limitations, as long as the instruments are maintained and calibrated in accordance with the manufacturer's recommendations.
- Any excursion above the 1-hour average or 4-day average total residual chlorine effluent limitations is a violation. If the Discharger conducts continuous monitoring and the Discharger can demonstrate, through data collected from a back-up monitoring system, that a chlorine spike recorded by the continuous monitor was not actually due to chlorine, then any excursion resulting from the recorded spike will not be considered an exceedance, but rather reported as a false positive. Records supporting validation of false positives shall be maintained in accordance with section IV of the Standard Provisions (Attachment D).
- F. Mass Effluent Limitations.** The mass effluent limitations contained in the Waste Discharge Requirements section IV.A.1.a are based on the permitted average dry weather flow and calculated as follows:

$$\text{Mass (lbs/day)} = \text{Flow (MGD)} \times \text{Concentration (mg/L)} \times 8.34 \text{ (conversion factor)}$$

If the effluent flow exceeds the permitted average dry weather flow during wet-weather seasons, the effluent mass limitations contained in the Waste Discharge Requirements section IV.A.1.a shall not apply. If the effluent flow is below the permitted average dry weather flow during wet-weather seasons, the effluent mass limitations do apply.

- G. Priority Pollutant Effluent Limitations.** Compliance with effluent limitations for priority pollutants shall be determined in accordance with section 2.4.5 of the SIP, as follows:
1. Dischargers shall be deemed out of compliance with an effluent limitation if the concentration of the priority pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reporting level (RL).
 2. Dischargers shall be required to conduct a Pollutant Minimization Program (PMP) in accordance with section 2.4.5.1 of the SIP when there is evidence that the priority pollutant is present in the effluent above an effluent limitation and either:
 - a. A sample result is reported as detected, but not quantified (DNQ) and the effluent limitation is less than the RL; or
 - b. A sample result is reported as ND and the effluent limitation is less than the method detection limit (MDL).
 3. When determining compliance with an average monthly effluent limitation (AMEL) and more than one sample result is available in a month, the discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of DNQ or ND. In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
 - a. The data set shall be ranked from low to high, reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 - b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
 4. If a sample result, or the arithmetic mean or median of multiple sample results, is below the RL, and there is evidence that the priority pollutant is present in the effluent above an effluent limitation and the Discharger conducts a PMP (as described in section 2.4.5.1), the Discharger shall not be deemed out of compliance.
- H. Temperature Receiving Water Limitation (Section V.A.15).** Effective immediately and until discharge at Discharge Point 002 commences, compliance with the temperature receiving water limitation will be determined based on the difference in the temperature measured at Monitoring Location RSW-002 as compared to the downstream temperature measured at Monitoring Location RSW-003. Effective when discharge at Discharge Point 002 commences, compliance with the temperature receiving water limitation will be determined based on the difference in the temperature measured at Monitoring Location RSW-002 as compared to the downstream temperature measured at Monitoring Location RSW-004.
- I. Turbidity Receiving Water Limitations (Section V.A.17.a-e).** Effective immediately and until discharge at Discharge Point 002 commences, compliance with the turbidity receiving water limitations will be determined based on the change in turbidity measured at Monitoring Location RSW-002 as compared to the downstream turbidity measured at Monitoring Location RSW-003. Effective when discharge at Discharge Point 002 commences, compliance with the turbidity receiving water limitations will be determined based on the change in turbidity measured at Monitoring Location RSW-002 as compared to the downstream turbidity measured at Monitoring Location RSW-004.

- J. Temperature Effluent Limitations (Section IV.A.1.d).** Compliance with the final effluent limitations for temperature shall be ascertained using the daily average effluent temperature at Monitoring Location EFF-001 and the daily average temperature of the receiving water measured on the same day at Monitoring Location RSW-001. In lieu of collecting a sample at RSW-001, temperature data may be reported from Department of Water Resources (DWR) Monitoring Station ORX.
- K. Chlorpyrifos and Diazinon Effluent Limitations (Section IV.A.1.g).** Compliance shall be determined by calculating the sum (S), as provided in this Order, with analytical results that are reported as ND concentrations to be considered to be zero.
- L. Use of Delta Regional Monitoring Program (RMP) and Other Receiving Water Data to Determine Compliance with Receiving Water Limitations.** Delta RMP data and other receiving water monitoring data that is not specifically required to be conducted by the Discharger under this Order will not be used directly to determine that the discharge is in violation of this Order. The Discharger may, however, conduct any site-specific receiving water monitoring deemed appropriate by the Discharger that is not conducted by the Delta RMP and submit that monitoring data. As described in section VIII of Attachment E, such data may be used, if scientifically defensible, in conjunction with other receiving water data, effluent data, receiving water flow data, and other pertinent information to determine whether or not a discharge is in compliance with this Order.

ATTACHMENT A – DEFINITIONS

Arithmetic Mean (μ)

Also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

Arithmetic mean = $\mu = \Sigma x / n$ where: Σx is the sum of the measured ambient water concentrations, and n is the number of samples.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Bioaccumulative

Those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Carcinogenic

Pollutants are substances that are known to cause cancer in living organisms.

Coefficient of Variation (CV)

CV is a measure of the data variability and is calculated as the estimated standard deviation divided by the arithmetic mean of the observed values.

Daily Discharge

Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

Detected, but Not Quantified (DNQ)

DNQ are those sample results less than the RL, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dilution Credit

Dilution Credit is the amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Effect Concentration (EC)

A point estimate of the toxicant concentration that would cause an observable adverse effect (e.g. death, immobilization, or serious incapacitation) in a given percent of the test organisms, calculated from a continuous model (e.g. Probit Model). EC_{25} is a point estimate of the toxicant concentration that would cause an observable adverse effect in 25 percent of the test organisms.

Effluent Concentration Allowance (ECA)

ECA is a value derived from the water quality criterion/objective, dilution credit, and ambient background concentration that is used, in conjunction with the coefficient of variation for the effluent monitoring data, to calculate a long-term average (LTA) discharge concentration. The ECA has the same meaning as waste load allocation (WLA) as used in U.S. EPA guidance (Technical Support Document For Water Quality-based Toxics Control, March 1991, second printing, EPA/505/2-90-001).

Enclosed Bays

Enclosed Bays means indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between the headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. Enclosed bays include, but are not limited to, Humboldt Bay, Bodega Harbor, Tomales Bay, Drake's Estero, San Francisco Bay, Morro Bay, Los Angeles-Long Beach Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay. Enclosed bays do not include inland surface waters or ocean waters.

Endpoint

An effect that is measured in a toxicity study. Endpoints in toxicity tests may include, but are not limited to survival, reproduction, and growth.

Estimated Chemical Concentration

The estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries

Estuaries means waters, including coastal lagoons, located at the mouths of streams that serve as areas of mixing for fresh and ocean waters. Coastal lagoons and mouths of streams that are temporarily separated from the ocean by sandbars shall be considered estuaries. Estuarine waters shall be considered to extend from a bay or the open ocean to a point upstream where there is no significant mixing of fresh water and seawater. Estuarine waters included, but are not limited to, the Sacramento-San Joaquin Delta, as defined in Water Code section 12220, Suisun Bay, Carquinez Strait downstream to the Carquinez Bridge, and appropriate areas of the Smith, Mad, Eel, Noyo, Russian, Klamath, San Diego, and Otay rivers. Estuaries do not include inland surface waters or ocean waters.

Inhibition Concentration

Inhibition Concentration (IC) is a point estimate of the toxicant concentration that would cause a given percent reduction in a non-lethal biological measurement (e.g., reproduction or growth), calculated from a continuous model (i.e., Interpolation Method). IC_{25} is a point estimate of the toxic concentration that would cause a 25-percent reduction in a non-lethal biological measurement.

Inland Surface Waters

All surface waters of the state that do not include the ocean, enclosed bays, or estuaries.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Maximum Daily Effluent Limitation (MDEL)

The highest allowable daily discharge of a pollutant, over a calendar day (or 24-hour period). For pollutants with limitations expressed in units of mass, the daily discharge is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the daily discharge is calculated as the arithmetic mean measurement of the pollutant over the day.

Median

The middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order). If the number of measurements (n) is odd, then the median = $X_{(n+1)/2}$. If n is even, then the median = $(X_{n/2} + X_{(n/2)+1})/2$ (i.e., the midpoint between the $n/2$ and $n/2+1$).

Method Detection Limit (MDL)

MDL is the minimum concentration of a substance that can be measured and reported with 99 percent confidence that the analyte concentration is greater than zero, as defined in 40 C.F.R. part 136, Attachment B, revised as of July 3, 1999.

Minimum Level (ML)

ML is the concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Mixing Zone

Mixing Zone is a limited volume of receiving water that is allocated for mixing with a wastewater discharge where water quality criteria can be exceeded without causing adverse effects to the overall water body.

No-Observed-Effect-Concentration (NOEC)

The highest concentration of toxicant to which organisms are exposed in a full life-cycle or partial life-cycle (short-term) test, that causes no observable adverse effects on the test organisms (i.e., the highest concentration of toxicant in which the values for the observed responses are not statistically significantly different from the controls).

Not Detected (ND)

Sample results which are less than the laboratory's MDL.

Percent Effect

The percent effect of the sample at a specific effluent concentration shall be calculated using untransformed data and the following equation:

$$\text{Percent Effect of the Sample} = \frac{\text{Mean Control Response} - \text{Mean Sample Response}}{\text{Mean Control Response}} \cdot 100$$

Persistent Pollutants

Persistent pollutants are substances for which degradation or decomposition in the environment is non-existent or very slow.

Pollutant Minimization Program (PMP)

PMP means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of a priority pollutant(s) through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Central Valley Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Pollution Prevention

Pollution Prevention means any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as defined in Water Code section 13263.3). Pollution prevention does not include actions that merely shift a pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State Water Resources Control Board (State Water Board) or Central Valley Water Board.

Satellite Collection System

The portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility to which a sanitary sewer system is tributary.

Source of Drinking Water

Any water designated as municipal or domestic supply (MUN) in a Central Valley Water Board Basin Plan.

Standard Deviation (σ)

Standard Deviation is a measure of variability that is calculated as follows:

$$\sigma = (\sum[(x - \mu)^2]/(n - 1))^{0.5}$$

where:

x is the observed value;

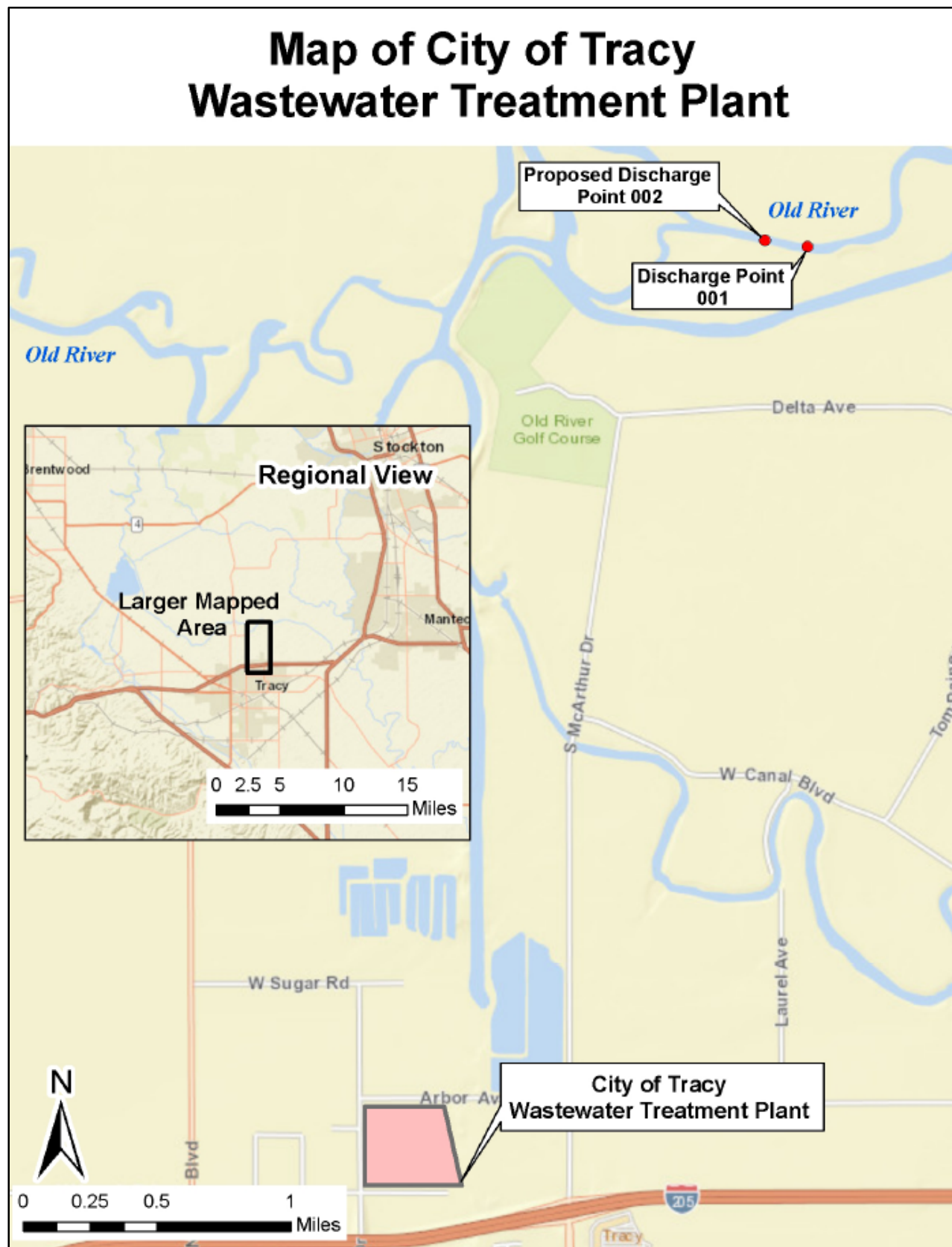
μ is the arithmetic mean of the observed values; and

n is the number of samples.

Toxicity Reduction Evaluation (TRE)

TRE is a study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

ATTACHMENT B – MAP



ATTACHMENT C – FLOW SCHEMATIC

Figure C-1. City of Tracy Main Wastewater Treatment Facility Schematic

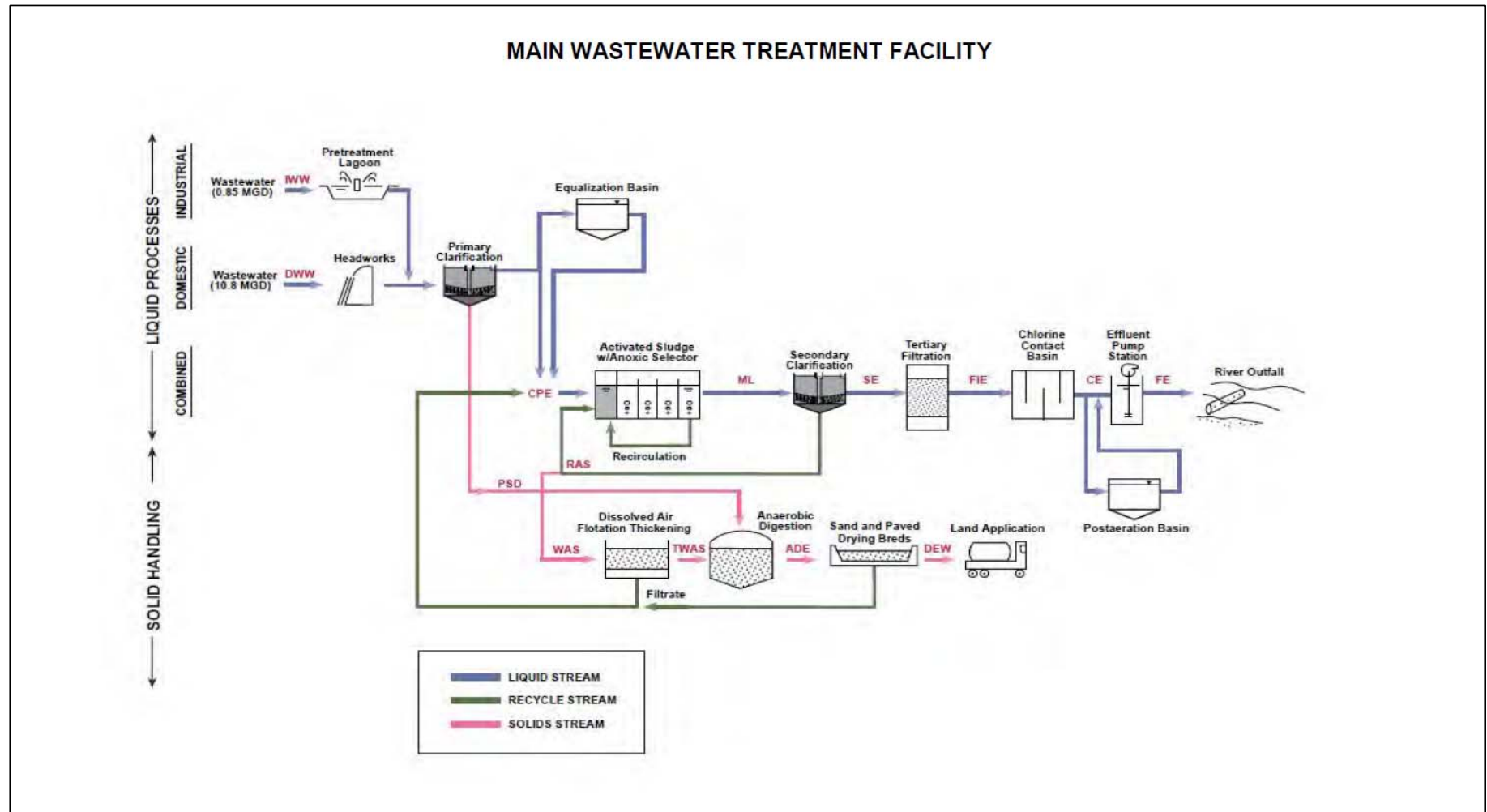
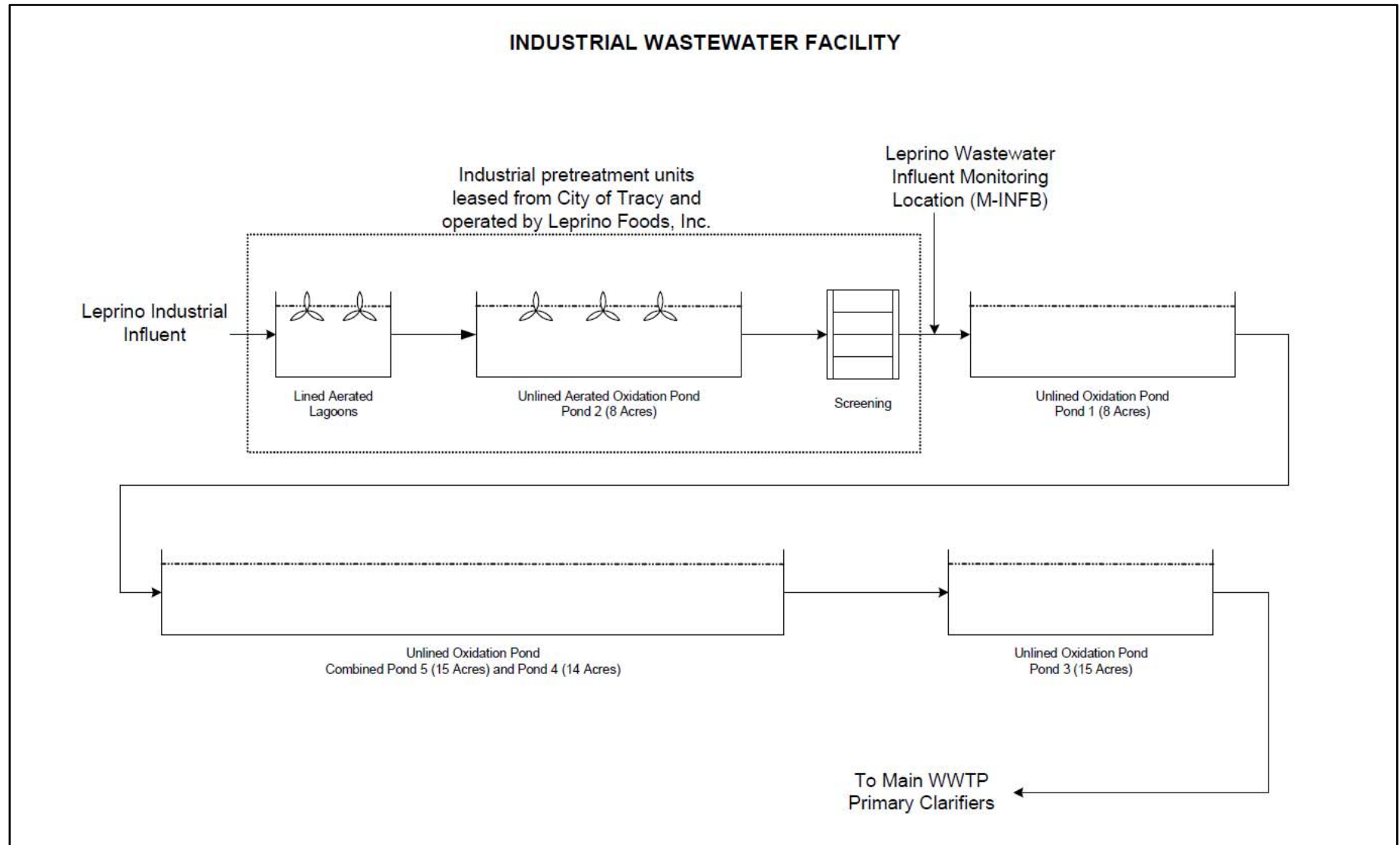


Figure C-2. City of Tracy Industrial Wastewater Facility Schematic



ATTACHMENT D – STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all of the terms, requirements, and conditions of this Order. Any non-compliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 C.F.R. § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385)
2. The Discharger shall comply with effluent standards or prohibitions established under section 307(a) of the CWA for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 C.F.R. § 122.41(a)(1))

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 C.F.R. § 122.41(c))

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 C.F.R. § 122.41(d))

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 C.F.R. § 122.41(e))

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 C.F.R. § 122.41(g))
2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 C.F.R. § 122.5(c))

F. Inspection and Entry

The Discharger shall allow the Central Valley Water Board, State Water Board, U.S. EPA, and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 U.S.C. § 1318(a)(4)(B); 40 C.F.R. § 122.41(i); Wat. Code, § 13267, 13383);

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383);
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383);
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, § 13267, 13383); and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 U.S.C § 1318(a)(4)(B); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383)

G. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 C.F.R. § 122.41(m)(1)(i))
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 C.F.R. § 122.41(m)(1)(ii))
2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below. (40 C.F.R. § 122.41(m)(2))
3. Prohibition of bypass. Bypass is prohibited, and the Central Valley Water Board may take enforcement action against a Discharger for bypass, unless (40 C.F.R. § 122.41(m)(4)(i)):
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 C.F.R. § 122.41(m)(4)(i)(A));
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 C.F.R. § 122.41(m)(4)(i)(B)); and
 - c. The Discharger submitted notice to the Central Valley Water Board as required under Standard Provisions – Permit Compliance I.G.5 below. (40 C.F.R. § 122.41(m)(4)(i)(C))

4. The Central Valley Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Valley Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above. (40 C.F.R. § 122.41(m)(4)(ii))
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit prior notice, if possible at least 10 days before the date of the bypass. The notice shall be sent to the Central Valley Water Board. As of 21 December 2020, all notices shall be submitted electronically to the initial recipient (State Water Board), defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 C.F.R. part 3, section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(m)(3)(i))
 - b. Unanticipated bypass. The Discharger shall submit a notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). The notice shall be sent to the Central Valley Water Board. As of 21 December 2020, all notices shall be submitted electronically to the initial recipient (State Water Board), defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 C.F.R. part 3, section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(m)(3)(ii))

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary non-compliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include non-compliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 C.F.R. § 122.41(n)(1))

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for non-compliance with such technology based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that non-compliance was caused by upset, and before an action for non-compliance, is final administrative action subject to judicial review. (40 C.F.R. § 122.41(n)(2))
2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 C.F.R. § 122.41(n)(3)):
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 C.F.R. § 122.41(n)(3)(i));
 - b. The permitted facility was, at the time, being properly operated (40 C.F.R. § 122.41(n)(3)(ii));
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b below (24-hour notice) (40 C.F.R. § 122.41(n)(3)(iii)); and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above. (40 C.F.R. § 122.41(n)(3)(iv))
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 C.F.R. § 122.41(n)(4))

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated non-compliance does not stay any Order condition. (40 C.F.R. § 122.41(f))

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 C.F.R. § 122.41(b))

C. Transfers

This Order is not transferable to any person except after notice to the Central Valley Water Board. The Central Valley Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 C.F.R. § 122.41(l)(3); 122.61)

III. STANDARD PROVISIONS – MONITORING

A. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 C.F.R. § 122.41(j)(1))

B. Monitoring must be conducted according to test procedures approved under 40 C.F.R. part 136 for the analyses of pollutants unless another method is required under 40 C.F.R. subchapters N or O. Monitoring must be conducted according to sufficiently sensitive test methods approved under 40 C.F.R. part 136 for the analysis of pollutants or pollutant parameters or as required under 40 C.F.R. chapter 1, subchapter N or O. For the purposes of this paragraph, a method is sufficiently sensitive when the method has the lowest ML of the analytical methods approved under 40 C.F.R. part 136 or required under 40 C.F.R. chapter 1, subchapter N or O for the measured pollutant or pollutant parameter, or when:

1. The method minimum level (ML) is at or below the level of the most stringent effluent limitation established in the permit for the measured pollutant or pollutant parameter, and:
 - a. The method ML is at or below the level of the most stringent applicable water quality criterion for the measured pollutant or pollutant parameter, or;
 - b. The method ML is above the applicable water quality criterion but the amount of the pollutant or pollutant parameter in the facility's discharge is high enough that the method detects and quantifies the level of the pollutant or pollutant parameter in the discharge;

In the case of pollutants or pollutant parameters for which there are no approved methods under 40 C.F.R. part 136 or otherwise required under 40 C.F.R. chapter 1, subchapters N or O, monitoring must be conducted according to a test procedure specified in this Order for such pollutants or pollutant parameters. (40 C.F.R. § 122.21(e)(3), 122.41(j)(4); 122.44(i)(1)(iv))

IV. STANDARD PROVISIONS – RECORDS

A. Except for records of monitoring information required by this Order related to the Discharger's sewage sludge use and disposal activities, which shall be retained for a period of at least five years (or longer as required by 40 C.F.R. part 503), the Discharger shall retain records of all

monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Valley Water Board Executive Officer at any time. (40 C.F.R. § 122.41(j)(2))

B. Records of monitoring information shall include:

1. The date, exact place, and time of sampling or measurements (40 C.F.R. § 122.41(j)(3)(i));
2. The individual(s) who performed the sampling or measurements (40 C.F.R. § 122.41(j)(3)(ii));
3. The date(s) analyses were performed (40 C.F.R. § 122.41(j)(3)(iii));
4. The individual(s) who performed the analyses (40 C.F.R. § 122.41(j)(3)(iv));
5. The analytical techniques or methods used (40 C.F.R. § 122.41(j)(3)(v)); and
6. The results of such analyses. (40 C.F.R. § 122.41(j)(3)(vi))

C. Claims of confidentiality for the following information will be denied (40 C.F.R. § 122.7(b)):

1. The name and address of any permit applicant or Discharger (40 C.F.R. § 122.7(b)(1)); and
2. Permit applications and attachments, permits and effluent data. (40 C.F.R. § 122.7(b)(2))

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Central Valley Water Board, State Water Board, or U.S. EPA within a reasonable time, any information which the Central Valley Water Board, State Water Board, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Valley Water Board, State Water Board, or U.S. EPA copies of records required to be kept by this Order. (40 C.F.R. § 122.41(h); Wat. Code, §§ 13267, 13383)

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Central Valley Water Board, State Water Board, and/or U.S. EPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, V.B.5, and V.B.6 below. (40 C.F.R. § 122.41(k))
2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of U.S. EPA). (40 C.F.R. § 122.22(a)(3))
3. All reports required by this Order and other information requested by the Central Valley Water Board, State Water Board, or U.S. EPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above (40 C.F.R. § 122.22(b)(1));

- b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 C.F.R. § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Central Valley Water Board and State Water Board. (40 C.F.R. § 122.22(b)(3))
 4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting V.B.3 above must be submitted to the Central Valley Water Board and State Water Board prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 C.F.R. § 122.22(c))
 5. Any person signing a document under Standard Provisions – Reporting V.B.2 or V.B.3 above shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 C.F.R. § 122.22(d))
 6. Any person providing the electronic signature for such documents described in Standard Provision – V.B.1, V.B.2, or V.B.3 that are submitted electronically shall meet all relevant requirements of Standard Provisions – Reporting V.B, and shall ensure that all of the relevant requirements of 40 C.F.R. part 3 (Cross-Media Electronic Reporting) and 40 C.F.R. part 127 (NPDES Electronic Reporting Requirements) are met for that submission. (40 C.F.R. § 122.22(e))

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 C.F.R. § 122.41(l)(4))
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Valley Water Board or State Water Board for reporting the results of monitoring, sludge use, or disposal practices. As of 21 December 2016 all reports and forms must be submitted electronically to the initial recipient, defined in Standard Provisions – Reporting V.J, and comply with 40 C.F.R. part 3, section 122.22, and 40 C.F.R. part 127. (40 C.F.R. § 122.41(l)(4)(i))
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 C.F.R. part 136, or another method required for an industry-specific waste stream under 40 C.F.R. subchapters N or O, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or sludge reporting form specified by the Central Valley Water Board. (40 C.F.R. § 122.41(l)(4)(ii))

4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 C.F.R. § 122.41(l)(4)(iii))

D. Compliance Schedules

Reports of compliance or non-compliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 C.F.R. § 122.41(l)(5))

E. Twenty-Four Hour Reporting

1. The Discharger shall report any non-compliance which may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A report shall also be provided within 5 days of the time the Discharger becomes aware of the circumstances. The report shall contain a description of the non-compliance and its cause; the period of non-compliance, including exact dates and times, and if the non-compliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the non-compliance.

For non-compliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports must include the data described above (with the exception of time of discovery) as well as the type of event (combined sewer overflows, sanitary sewer overflows, or bypass events), type of sewer overflow structure (e.g., manhole, combined sewer overflow outfall), discharge volumes untreated by the treatment works treating domestic sewage, types of human health and environmental impacts of the sewer overflow event, and whether the non-compliance was related to wet weather.

As of 21 December 2020 all reports related to combined sewer overflows, sanitary sewer overflows, or bypass events must be submitted electronically to the initial recipient (State Water Board) defined in Standard Provisions – Reporting V.J. The reports shall comply with 40 C.F.R. part 3. The may also require the Discharger to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 C.F.R. § 122.41(l)(6)(i))

F. Planned Changes

The Discharger shall give notice to the Central Valley Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 C.F.R. § 122.41(l)(1)):

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 C.F.R. § 122.41(l)(1)(i)); or
2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 C.F.R. § 122.41(l)(1)(ii))

The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are subject neither to effluent limitations in this Order nor to notification requirements under section 122.42(a)(1) (see Additional Provisions—Notification Levels VII.A.1). (40 C.F.R. § 122.41(l)(1)(ii))

G. Anticipated Non-compliance

The Discharger shall give advance notice to the Central Valley Water Board of any planned changes in the permitted facility or activity that may result in non-compliance with this Order's requirements. (40 C.F.R. § 122.41(l)(2))

H. Other Non-compliance

The Discharger shall report all instances of non-compliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. For non-compliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports shall contain the information described in Standard Provision – Reporting V.E and the applicable required data in appendix A to 40 C.F.R. part 127. The Central Valley Water Board may also require the Discharger to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 C.F.R. § 122.41(l)(7))

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Central Valley Water Board, State Water Board, or U.S. EPA, the Discharger shall promptly submit such facts or information. (40 C.F.R. § 122.41(l)(8))

J. Initial Recipient for Electronic Reporting Data

The owner, operator, or the duly authorized representative is required to electronically submit NPDES information specified in appendix A to 40 C.F.R. part 127 to the appropriate initial recipient, as determined by U.S. EPA, and as defined in 40 C.F.R. section 127.2(b). U.S. EPA will identify and publish the list of initial recipients on its website and in the Federal Register, by state and by NPDES data group [see 40 C.F.R. section 127.2(c)]. U.S. EPA will update and maintain this listing. (40 C.F.R. § 122.41(l)(9))

VI. STANDARD PROVISIONS – ENFORCEMENT

- A.** The Central Valley Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13385, 13386, and 13387.

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Publicly-Owned Treatment Works (POTW's)

All POTW's shall provide adequate notice to the Central Valley Water Board of the following (40 C.F.R. § 122.42(b)):

1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 C.F.R. § 122.42(b)(1)); and
2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 C.F.R. § 122.42(b)(2))
3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 C.F.R. § 122.42(b)(3))

ATTACHMENT E – MONITORING AND REPORTING PROGRAM

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

The Code of Federal Regulations (40 C.F.R. § 122.48) requires that all National Pollutant Discharge Elimination System (NPDES) permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Valley Water Board to require technical and monitoring reports. This MRP establishes monitoring and reporting requirements that implement federal and California regulations.

I. GENERAL MONITORING PROVISIONS

- A.** Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring locations specified below and, unless otherwise specified, before the monitored flow joins or is diluted by any other waste stream, body of water, or substance. Monitoring locations shall not be changed without notification to and the approval of the Central Valley Water Board.
- B.** Effluent samples shall be taken downstream of the last addition of wastes to the treatment or discharge works where a representative sample may be obtained prior to mixing with the receiving waters. Samples shall be collected at such a point and in such a manner to ensure a representative sample of the discharge.
- C.** Chemical, bacteriological, and bioassay analyses of any material required by this Order shall be conducted by a laboratory accredited for such analyses by the State Water Resources Control Board (State Water Board), Division of Drinking Water (DDW; formerly the Department of Public Health). Laboratories that perform sample analyses must be identified in all monitoring reports submitted to the Central Valley Water Board. In the event an accredited laboratory is not available to the Discharger for any onsite field measurements such as pH, dissolved oxygen, turbidity, temperature, and residual chlorine, such analyses performed by a non-accredited laboratory will be accepted provided a Quality Assurance-Quality Control Program is instituted by the laboratory. A manual containing the steps followed in this program for any onsite field measurements such as pH, dissolved oxygen, turbidity, temperature, and residual chlorine must be kept onsite in the treatment facility laboratory and shall be available for inspection by Central Valley Water Board staff. The Discharger must demonstrate sufficient capability (qualified and trained employees, properly calibrated and maintained field instruments, etc.) to adequately perform these field measurements. The Quality Assurance-Quality Control Program must conform to U.S. EPA guidelines or to procedures approved by the Central Valley Water Board.
- D.** Appropriate flow measurement devices and methods consistent with accepted scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. All monitoring instruments and devices used by the Discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary, at least yearly, to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year to ensure continued accuracy of the devices.
- E.** Monitoring results, including non-compliance, shall be reported at intervals and in a manner specified in this MRP.
- F.** Laboratories analyzing monitoring samples shall be accredited by DDW, in accordance with the provision of Water Code section 13176, and must include quality assurance/quality control data with their reports.
- G.** The Discharger shall ensure that the results of the Discharge Monitoring Report-Quality Assurance (DMR-QA) Study or the most recent Water Pollution Performance Evaluation

Study are submitted annually to the State Water Resources Control Board at the following address:

State Water Resources Control Board
Quality Assurance Program Officer
Office of Information Management and Analysis
1001 I Street, Sacramento, CA 95814

- H. The Discharger shall file with the Central Valley Water Board technical reports on self-monitoring performed according to the detailed specifications contained in this MRP.
- I. The results of all monitoring required by this Order shall be reported to the Central Valley Water Board, and shall be submitted in such a format as to allow direct comparison with the limitations and requirements of this Order. Unless otherwise specified, discharge flows shall be reported in terms of the monthly average and the daily maximum discharge flows.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table E-1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description ³
--	INF-001	Location where a representative sample of the domestic influent into the Facility can be collected prior to entering into the treatment process.
--	INF-002	Leprino Foods Company influent as measured at the point of inflow to Treatment Pond 1 (see Attachment C, Figure C-2).
001, 002 ¹	EFF-001	Effluent Discharged through Discharge Point 001 and Discharge Point 002, measured at final effluent pump station.
--	RSW-001	Old River, approximately 1 mile upstream of Discharge Point 001, downstream of confluence with Middle River (see Figure E-1). Latitude: 37.8218° N, Longitude: 121.3735° W
--	RSW-002	Old River, approximately 500 feet upstream of Discharge Point 001 (see Figure E-1a). Latitude: 37.8057° N, Longitude: 121.3992° W
--	RSW-003	Old River approximately 500 feet downstream of Discharge Point 001 (see Figure E-1a). Latitude: 37.8053° N, Longitude: 121.4025° W
--	RSW-004 ²	Old River approximately 500 feet downstream of Discharge Point 002 (see Figure E-1a). Latitude: 37.8060° N, Longitude: 121.4051° W
001, 002 ¹	TCO-001	A location immediately following chlorine disinfection where a representative sample for the effluent total coliform organisms can be collected.
--	SPL-001	A location where a representative sample of the municipal water supply can be obtained.

¹ Future outfall proposed for Facility expansion.

² The Discharger is not required to monitor at Monitoring Location RSW-004 until Discharge Point 002 is operational.

³ North latitude and West longitude information are approximate for administrative purposes

Figure E-1. Monitoring Location RSW-001

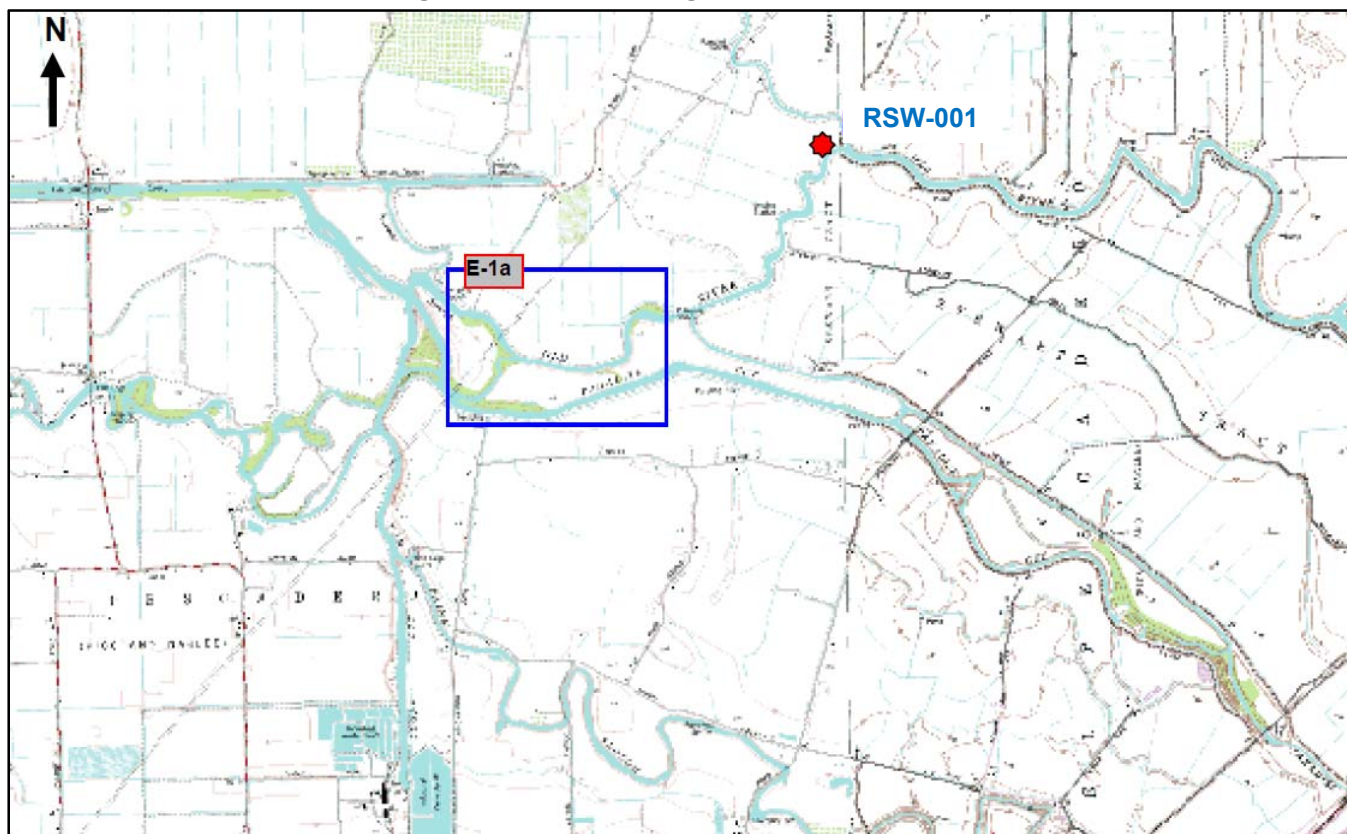
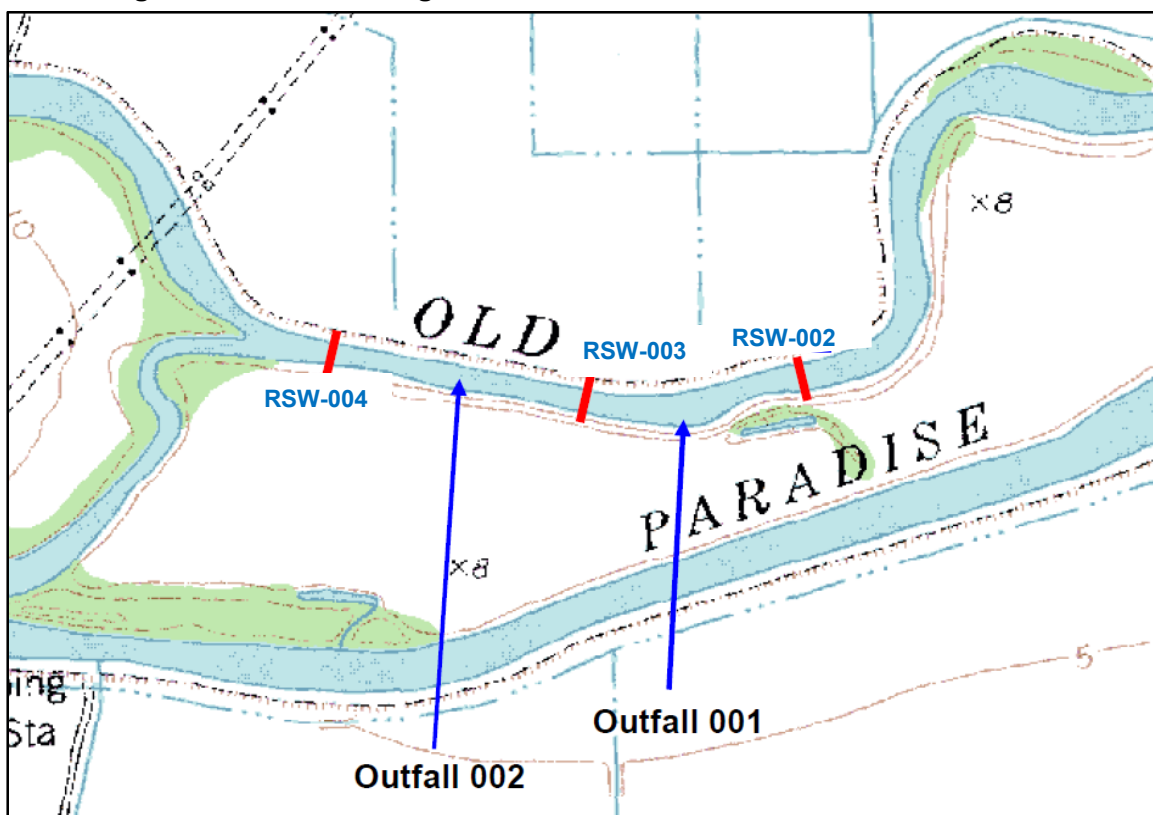


Figure E-1a. Monitoring Locations RSW-002, RSW-003, and RSW-004



III. INFLUENT MONITORING REQUIREMENTS

A. Monitoring Locations INF-001 and INF-002

1. The Discharger shall monitor domestic influent to the Facility at Monitoring Location INF-001 as follows.

Table E-2. Influent Monitoring – Monitoring Location INF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Flow	MGD	Meter	Continuous	--
Conventional Pollutants				
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	24-hr Composite ¹	3/week	2
pH	standard units	Meter	Continuous	2
Total Suspended Solids	mg/L	24-hr Composite ¹	3/week	2
Non-Conventional Pollutants				
Electrical Conductivity @ 25°C	µmhos/cm	Grab ³	1/Week	2
Total Dissolved Solids	mg/L	Grab ³	1/Week	2

¹ 24-hour flow proportional composite.

² Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods requested by the Discharger that have been approved by the Central Valley Water Board or the State Water Board.

³ Grab samples shall not be collected at the same time each day in order to get a complete representation of variations in the influent.

2. The Discharger shall monitor Leprino Foods Company influent to the Facility at Monitoring Location INF-002 as follows.

Table E-3. Influent Monitoring – Monitoring Location INF-002

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Flow	MGD	Meter	Continuous	--
Conventional Pollutants				
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	24-hr Composite ¹	3/week	2
pH	standard units	Grab ^{3,4}	1/Week	2
Total Suspended Solids	mg/L	24-hr Composite ¹	3/week	2
Non-Conventional Pollutants				
Electrical Conductivity @ 25°C	µmhos/cm	Grab ^{3,4}	1/Week	2
Total Dissolved Solids	mg/L	Grab ^{3,4}	1/Week	2

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
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- ¹ 24-hour flow proportional composite.
- ² Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods requested by the Discharger that have been approved by the Central Valley Water Board or the State Water Board.
- ³ A hand-held field meter may be used, provided the meter utilizes a U.S. EPA-approved algorithm/method and is calibrated and maintained in accordance with the manufacturer's instructions. A calibration and maintenance log for each meter used for monitoring required by this MRP shall be maintained at the Facility.
- ⁴ Grab samples shall not be collected at the same time each day in order to get a complete representation of variations in the influent.

IV. EFFLUENT MONITORING REQUIREMENTS

A. Monitoring Location EFF-001

1. The Discharger shall monitor tertiary treated effluent discharged at Discharge Point 001 and Discharge Point 002 at Monitoring Location EFF-001 as follows. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding Minimum Level (ML).

Table E-4. Effluent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Discharge Location ¹	--	--	1/Day	--
Flow	MGD	Meter	Continuous	--
Conventional Pollutants				
Biochemical Oxygen Demand (5-day @ 20° C)	mg/L	24-hr Composite ²	3/week	3
pH	standard units	Meter	Continuous ⁴	3
Total Suspended Solids	mg/L	24-hr Composite ²	3/week	3
Priority Pollutants				
Chlorodibromomethane	µg/L	Grab	1/Month	3,5
Dichlorobromomethane	µg/L	Grab	1/Month	3,5
Mercury, Total Recoverable	ng/L	Grab	1/Month	3,5,6
Non-Conventional Pollutants				
Ammonia Nitrogen, Total (as N)	mg/L	Grab	1/Week ^{4,7}	3
	lbs/day	Calculate	1/Week	--
Chlorine, Total Residual	mg/L	Meter	Continuous	3,8
Sulfur Dioxide, SO ₂	mg/L	Meter	Continuous	3,8
Chlorpyrifos	µg/L	Grab	1/Year	3,9
Diazinon	µg/L	Grab	1/Year	3,9
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Week	3
Hardness, Total (as CaCO ₃)	mg/L	Grab	1/Month	3
Mercury (Methyl)	ng/L	Grab	1/Month	3,6
Nitrate Plus Nitrite, Total (as N)	mg/L	Grab	1/Week	3
Temperature	°C	Meter	Continuous ⁴	3
Total Coliform Organisms	MPN/100 mL	Grab	3/Week ¹⁰	3

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Total Dissolved Solids	mg/L	Grab	1/Month	3
Turbidity	NTU	Meter	Continuous ^{11,12}	3

- ¹ The Discharger shall report daily the discharge location used (i.e., Discharge Point 001 and/or Discharge Point 002).
- ² 24-hour flow proportional composite.
- ³ Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods requested by the Discharger that have been approved by the Central Valley Water Board or the State Water Board.
- ⁴ pH and temperature shall be recorded at the time of ammonia sample collection.
- ⁵ For priority pollutant constituents the reporting level shall be consistent with sections 2.4.2 and 2.4.3 of the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (See Attachment E, section IX.D).
- ⁶ Unfiltered methylmercury and total mercury samples shall be taken using clean hands/dirty hands procedures, as described in U.S. EPA method 1669: Sampling Ambient Water for Trace Metals at EPA Water Quality Criteria Levels, for collection of equipment blanks (section 9.4.4.2). The analysis of methylmercury and total mercury shall be by U.S. EPA method 1630 and 1631 (Revision E), respectively, with a reporting limit of 0.05 ng/L for methylmercury and 0.5 ng/L for total mercury.
- ⁷ Concurrent with whole effluent toxicity monitoring.
- ⁸ Total chlorine residual and sulfur dioxide must be monitored with a method sensitive to and accurate at the permitted level of 0.01 mg/L.
- ⁹ Chlorpyrifos and diazinon shall be sampled using U.S. EPA Method 625M, Method 8141, or equivalent GC/MS method.
- ¹⁰ Total coliform organisms samples are collected at TCO-001, a sample point after the chlorine contact tank.
- ¹¹ For continuous analyzers, the Discharger shall report documented routine meter maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation. If analyzer(s) fail to provide continuous monitoring for more than 2 hours and influent and/or effluent from the disinfection process is not diverted for retreatment, the Discharger shall obtain and report hourly manual and/or grab sample results.
- ¹² Report daily average and daily maximum turbidity.

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Acute Toxicity Testing. The Discharger shall conduct acute toxicity testing to determine whether the effluent is contributing acute toxicity to the receiving water. The Discharger shall meet the following acute toxicity testing requirements:

1. Monitoring Frequency – The Discharger shall perform quarterly acute toxicity testing, concurrent with effluent ammonia sampling.
2. Sample Types – The Discharger may use flow-through or static renewal testing. For static renewal testing, the samples shall be flow proportional 24-hour composites and shall be representative of the volume and quality of the discharge. The effluent samples shall be taken at Monitoring Location EFF-001.
3. Test Species – Test species shall be rainbow trout (*Oncorhynchus mykiss*).
4. Methods – The acute toxicity testing samples shall be analyzed using EPA-821-R-02-012, Fifth Edition. Temperature, total residual chlorine, and pH shall be recorded at the time of sample collection. No pH adjustment may be made unless approved by the Executive Officer.

5. **Test Failure** – If an acute toxicity test does not meet all test acceptability criteria, as specified in the test method, the Discharger must re-sample and re-test as soon as possible, not to exceed 7 days following notification of test failure.
- B. Chronic Toxicity Testing.** The Discharger shall meet the following chronic toxicity testing requirements:
1. **Monitoring Frequency** – The Discharger shall perform routine quarterly chronic toxicity testing. If the result of the routine chronic toxicity testing event exhibits toxicity, demonstrated by the result greater than 1 TUc (as 100/NOEC) AND a percent effect greater than 25 percent at 100 percent effluent, the Discharger has the option of conducting two additional compliance monitoring events and perform chronic toxicity testing using the species that exhibited toxicity in order to calculate a median. The optional compliance monitoring events shall occur at least one week apart, and the final monitoring event shall be initiated no later than 6 weeks from the routine monitoring event that exhibited toxicity.
 2. **Sample Types** – Effluent samples shall be flow proportional 24-hour composites and shall be representative of the volume and quality of the discharge. The effluent samples shall be taken at Monitoring Location EFF-001. The receiving water control shall be a grab sample obtained from Monitoring Location RSW-001, as identified in this Monitoring and Reporting Program.
 3. **Sample Volumes** – Adequate sample volumes shall be collected to provide renewal water to complete the test in the event that the discharge is intermittent.
 4. **Test Species** – The testing shall be conducted using the most sensitive species. The Discharger shall conduct chronic toxicity tests with the water flea (*Ceriodaphnia dubia*), unless otherwise specified in writing by the Executive Officer.
 5. **Methods** – The presence of chronic toxicity shall be estimated as specified in Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms, Fourth Edition, EPA/821-R-02-013, October 2002.
 6. **Reference Toxicant** – As required by the SIP, all chronic toxicity tests shall be conducted with concurrent testing with a reference toxicant and shall be reported with the chronic toxicity test results.
 7. **Dilutions** – The chronic toxicity testing shall be performed using the dilution series identified in Table E-5, below. For TRE monitoring, the chronic toxicity testing shall be performed using the dilution series identified in Table E-5, below, unless an alternative dilution series is detailed in the submitted TRE Action Plan. A receiving water control or laboratory water control may be used as the diluent.

Table E-5. Chronic Toxicity Testing Dilution Series

Sample	Dilutions ^a (%)					Control
	100	75	50	25	12.5	
% Effluent	100	75	50	25	12.5	0
% Control Water	0	25	50	75	87.5	100

^a Receiving water control or laboratory water control may be used as the diluent.

8. **Test Failure** – The Discharger must re-sample and re-test as soon as possible, but no later than fourteen (14) days after receiving notification of a test failure. A test failure is defined as follows:
 - a. The reference toxicant test or the effluent test does not meet all test acceptability criteria as specified in the *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms, Fourth Edition*, EPA/821-R-02-013, October 2002 (Method Manual), and its subsequent amendments or revisions; or
 - b. The percent minimum significant difference (PMSD) measured for the test exceeds the upper PMSD bound variability criterion in the Method Manual.

C. WET Testing Notification Requirements. The Discharger shall notify the Central Valley Water Board within 24-hours after the receipt of test results exceeding the monitoring trigger during regular monitoring, or an exceedance of the acute toxicity effluent limitation.

D. WET Testing Reporting Requirements. All toxicity test reports shall include the contracting laboratory's complete report provided to the Discharger and shall be in accordance with the appropriate "Report Preparation and Test Review" sections of the method manuals. At a minimum, whole effluent toxicity monitoring shall be reported as follows:

1. **Chronic WET Reporting.** Routine and compliance chronic toxicity monitoring results shall be reported to the Central Valley Water Board with the quarterly self-monitoring report, and shall contain, at minimum:
 - a. The results expressed in TUC, measured as 100/NOEC, and also measured as 100/LC50, 100/EC25, 100/IC25, and 100/IC50, as appropriate.
 - b. The statistical methods used to calculate endpoints;
 - c. The statistical output page, which includes the calculation of the percent minimum significant difference (PMSD);
 - d. The dates of sample collection and initiation of each toxicity test; and
 - e. The results compared to the numeric toxicity monitoring trigger.

Additionally, the quarterly self-monitoring reports shall contain an updated chronology of chronic toxicity test results expressed in TUC, and organized by test species, type of test (survival, growth or reproduction), and monitoring type, i.e., routine, compliance, TES, or TRE monitoring.

2. **Acute WET Reporting.** Acute toxicity test results shall be submitted with the monthly discharger self-monitoring reports and reported as percent survival.
3. **TRE Reporting.** Reports for TREs shall be submitted in accordance with the schedule contained in the Discharger's approved TRE Work Plan, or as amended by the Discharger's TRE Action Plan.
4. **Quality Assurance (QA).** The Discharger must provide the following information for QA purposes:
 - a. Results of the applicable reference toxicant data with the statistical output page giving the species, NOEC, LOEC, type of toxicant, dilution water used, concentrations used, PMSD, and dates tested.
 - b. The reference toxicant control charts for each endpoint, which include summaries of reference toxicant tests performed by the contracting laboratory.

- c. Any information on deviations or problems encountered and how they were dealt with.
- E. **Most Sensitive Species Screening.** The Discharger shall perform rescreening to re-evaluate the most sensitive species if there is a significant change in the nature of the discharge. If there are no significant changes during the permit term, a rescreening must be performed prior to permit reissuance and results submitted with the Report of Waste Discharge.
 1. **Frequency of Testing for Species Sensitivity Screening.** Species sensitivity screening for chronic toxicity shall include, at a minimum, chronic WET testing four consecutive calendar quarters using the water flea (*Ceriodaphnia dubia*), fathead minnow (*Pimephales promelas*), and green alga (*Pseudokirchneriella subcapitata*). The tests shall be performed using **100** percent effluent and one control. If the first two species sensitivity re-screening events result in no change in the most sensitive species, the Discharger may cease the species sensitive re-screening testing and the most sensitive species will remain unchanged.
 2. **Determination of Most Sensitive Species.** If a single test in the species sensitivity screening testing exceeds 1 TUC (as 100/NOEC), then the species used in that test shall be established as the most sensitive species. If there is more than a single test that exceeds 1 TUC (as 100/NOEC), then of the species exceeding 1 TUC (as 100/NOEC) that exhibits the highest percent effect shall be established as the most sensitive species. If none of the tests in the species sensitivity screening exceeds 1 TUC (as 100/NOEC), but at least one of the species exhibits a percent effect greater than 10 percent, then the single species that exhibits the highest percent effect shall be established as the most sensitive species. In all other circumstances, the Executive Officer shall have discretion to determine which single species is the most sensitive considering the test results from the species sensitivity screening.

VI. LAND DISCHARGE MONITORING REQUIREMENTS

Land discharge monitoring requirements are specified in separate WDR's (Order R5-2007-0038).

VII. RECYCLING MONITORING REQUIREMENTS – NOT APPLICABLE

VIII. RECEIVING WATER MONITORING REQUIREMENTS

The Discharger has elected to participate in the Delta Regional Monitoring Program (RMP) and to monitor the receiving water in accordance with Section VIII.A. The Executive Officer approved the Discharger's request on **9 January 2015**. The Discharger shall continue to participate in the Delta RMP until such time as the Discharger informs the Central Valley Water Board that participation in the Delta RMP will cease. If the Discharger requests to cease participation or fails to adequately support the Delta RMP, as defined by the Delta RMP Steering Committee, this Order will be reopened to reinstitute additional individual receiving water monitoring.

Delta RMP data is not intended to be used directly to represent either upstream or downstream water quality for purposes of determining compliance with this Order. Delta RMP monitoring stations are established generally as "integrator sites" to evaluate the combined impacts on water quality of multiple discharges into the Delta; Delta RMP monitoring stations would not normally be able to identify the source of any specific constituent, but would be used to identify water quality issues needing further evaluation. Delta RMP monitoring data, along with the individual Discharger data, may be used to help establish background receiving water quality for reasonable potential analyses in an NPDES permit after evaluation of the applicability of the data for that purpose. Delta RMP data, as with all environmental monitoring data, can provide an assessment of water quality at a specific place and time that can be used in conjunction with other information, such as other receiving water monitoring data, spatial and temporal distribution and trends of receiving

water data, effluent data from the Discharger's discharge and other point and non-point source discharges, receiving water flow volume, speed and direction, and other information to determine the likely source or sources of a constituent that resulted in the exceedance of a water quality objective.

A. Monitoring Locations RSW-001, RSW-002, RSW-003, and RSW-004

1. The Discharger shall monitor Old River at Monitoring Locations RSW-001, RSW-002, RSW-003, and RSW-004¹ as follows:

Table E-6. Receiving Water Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Conventional Pollutants				
pH	standard units	Grab	1/Week ⁶	1,2
Non-Conventional Pollutants				
Ammonia Nitrogen, Total (as N)	mg/L	Grab	1/Week ^{3,4,5,6}	1
Dissolved Oxygen	mg/L	Grab	1/Week ⁶	1,2
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Week ⁶	1,2
Hardness, Total (as CaCO ₃)	mg/L	Grab	1/Month ⁶	1
Temperature	°C	Grab	1/Week ⁷	1,2
Turbidity	NTU	Grab	1/Week ⁶	1,2

- ¹ Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods requested by the Discharger that have been approved by the Central Valley Water Board or the State Water Board.
- ² A hand-held field meter may be used, provided the meter utilizes a U.S. EPA-approved algorithm/method and is calibrated and maintained in accordance with the manufacturer's instructions. A calibration and maintenance log for each meter used for monitoring required by this MRP shall be maintained at the Facility.
- ³ Sampling for ammonia nitrogen only required for 1-year (i.e., during calendar year 2020).
- ⁴ pH and temperature shall be recorded at the time of ammonia sample collection.
- ⁵ The ammonia method detection limit must be less than or equal to 0.5 mg/L (as N).
- ⁶ Sampling not required at RSW-001.
- ⁷ For RSW-001, sampling frequency is monthly and in lieu of collecting a sample at RSW-001, temperature data may be reported from DWR Monitoring Station ORX.

2. In conducting receiving water sampling, a log shall be kept of the receiving water conditions throughout the reach bounded by Monitoring Locations RSW-002 and RSW-003 (when discharging at Discharge Point 001) and RSW-004 (when discharging to Discharge Point 002). River flow direction, based on visual observation, shall be reported at the time of each sampling event. Attention shall be given to the presence or absence of:
 - a. Floating or suspended matter;
 - b. Discoloration;
 - c. Bottom deposits;
 - d. Aquatic life;
 - e. Visible films, sheens, or coatings;

¹ Monitoring at Monitoring Location RSW-004 is not required until the discharge begins at Discharge Point 002.

- f. Fungi, slimes, or objectionable growths; and
- g. Potential nuisance conditions.

Notes on receiving water conditions shall be summarized in the monitoring report.

B. Groundwater Monitoring – Not Applicable

Groundwater monitoring requirements for the Facility are separately required in WDR Order R5-2007-0038.

IX. OTHER MONITORING REQUIREMENTS

A. Biosolids – Not Applicable

Biosolids monitoring requirements for the Facility are separately required in WDR Order R5-2007-0038.

B. Municipal Water Supply

1. Monitoring Location SPL-001

- a. The Discharger shall monitor the municipal water supply at Monitoring Location SPL-001 as follows:

Table E-7. Municipal Water Supply Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Electrical Conductivity @ 25°C ¹	µmhos/cm	Grab	1/Quarter	²
Standard Minerals ³	mg/L	Grab	1/Year	²
Total Dissolved Solids ¹	mg/L	Grab	1/Quarter	²

¹ If the water supply is from more than one source, the electrical conductivity and total dissolved solids shall be reported as a weighted average and include copies of supporting calculations.

² Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods requested by the Discharger that have been approved by the Central Valley Water Board or the State Water Board.

³ Standard minerals shall include all major cations and anions and include verification that the analysis is complete (i.e., cation/anion balance).

C. Effluent and Receiving Water Characterization

Since the Discharger is participating in the Delta Regional Monitoring Program as described in Attachment E, section VIII, this section only requires effluent characterization monitoring. However, the Report of Waste Discharge (ROWD) for the next permit renewal shall include, at minimum, one representative ambient background characterization monitoring event for priority pollutant constituents² during the term of the permit. The ambient background characterization monitoring event shall be conducted at Monitoring Location RSW-001 during calendar year 2020. Data from the Delta Regional Monitoring Program may be utilized to characterize the receiving water in the permit renewal. Alternatively, the Discharger may conduct any site-specific receiving water monitoring deemed appropriate by the Discharger and submit that monitoring data with the ROWD. In general, monitoring data from samples collected in the immediate vicinity of the discharge will be given greater weight in permitting decisions than receiving water monitoring data collected at greater distances from the discharge point.

² Appendix A to 40 C.F.R. part 423.

1. **Bi-Monthly Monitoring.** Samples shall be collected from the effluent (Monitoring Location EFF-001) and analyzed for the constituents listed in Table E-8, below. Bi-monthly monitoring for 1-year shall be conducted during calendar year 2020 (six consecutive samples, collected every other month and evenly distributed throughout the year) and the results of such monitoring shall be submitted to the Central Valley Water Board with the monthly SMR's. Each individual monitoring event shall provide representative sample results for the effluent.
2. **Sample Type.** Effluent samples shall be taken as described in Table E-8, below.

Table E-8. Effluent Characterization Monitoring

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
2-Chloroethyl vinyl ether	µg/L	Grab	1
Acrolein	µg/L	Grab	2
Acrylonitrile	µg/L	Grab	2
Benzene	µg/L	Grab	0.5
Bromoform	µg/L	Grab	0.5
Carbon Tetrachloride	µg/L	Grab	0.5
Chlorobenzene	µg/L	Grab	0.5
Chloroethane	µg/L	Grab	0.5
Chloroform	µg/L	Grab	2
Chloromethane	µg/L	Grab	2
Dibromochloromethane ²	µg/L	Grab	0.5
Dichlorobromomethane ²	µg/L	Grab	0.5
Dichloromethane	µg/L	Grab	2
Ethylbenzene	µg/L	Grab	2
Hexachlorobenzene	µg/L	Grab	1
Hexachlorobutadiene	µg/L	Grab	1
Hexachloroethane	µg/L	Grab	1
Methyl bromide (Bromomethane)	µg/L	Grab	1
Naphthalene	µg/L	Grab	10
3-Methyl-4-Chlorophenol	µg/L	Grab	--
Tetrachloroethene	µg/L	Grab	0.5
Toluene	µg/L	Grab	2
trans-1,2-Dichloroethylene	µg/L	Grab	1
Trichloroethene	µg/L	Grab	2
Vinyl chloride	µg/L	Grab	0.5
Methyl-tert-butyl ether (MTBE)	µg/L	Grab	--
Trichlorofluoromethane	µg/L	Grab	--
1,1,1-Trichloroethane	µg/L	Grab	0.5
1,1,2- Trichloroethane	µg/L	Grab	0.5
1,1-dichloroethane	µg/L	Grab	0.5
1,1-dichloroethylene	µg/L	Grab	0.5
1,2-dichloropropane	µg/L	Grab	0.5
1,3-dichloropropylene	µg/L	Grab	0.5
1,1,2,2-tetrachloroethane	µg/L	Grab	0.5
1,1,2-Trichloro-1,2,2-Trifluoroethane	µg/L	Grab	0.5
1,2,4-trichlorobenzene	µg/L	Grab	1
1,2-dichloroethane	µg/L	Grab	0.5
1,2-dichlorobenzene	µg/L	Grab	0.5
1,3-dichlorobenzene	µg/L	Grab	0.5

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
1,4-dichlorobenzene	µg/L	Grab	0.5
1,2-Benzanthracene	µg/L	Grab	5
1,2-Diphenylhydrazine	µg/L	Grab	1
2-Chlorophenol	µg/L	Grab	5
2,4-Dichlorophenol	µg/L	Grab	5
2,4-Dimethylphenol	µg/L	Grab	2
2,4-Dinitrophenol	µg/L	Grab	5
2,4-Dinitrotoluene	µg/L	Grab	5
2,4,6-Trichlorophenol	µg/L	Grab	10
2,6-Dinitrotoluene	µg/L	Grab	5
2-Nitrophenol	µg/L	Grab	10
2-Chloronaphthalene	µg/L	Grab	10
3,3'-Dichlorobenzidine	µg/L	Grab	5
3,4-Benzofluoranthene	µg/L	Grab	10
4-Chloro-3-methylphenol	µg/L	Grab	5
4,6-Dinitro-2-methylphenol	µg/L	Grab	10
4-Nitrophenol	µg/L	Grab	10
4-Bromophenyl phenyl ether	µg/L	Grab	10
4-Chlorophenyl phenyl ether	µg/L	Grab	5
Acenaphthene	µg/L	Grab	1
Acenaphthylene	µg/L	Grab	10
Anthracene	µg/L	Grab	10
Benzidine	µg/L	Grab	5
Benzo(a)pyrene (3,4-Benzopyrene)	µg/L	Grab	2
Benzo(g,h,i)perylene	µg/L	Grab	5
Benzo(k)fluoranthene	µg/L	Grab	2
Bis(2-chloroethoxy) methane	µg/L	Grab	5
Bis(2-chloroethyl) ether	µg/L	Grab	1
Bis(2-chloroisopropyl) ether	µg/L	Grab	10
Bis(2-ethylhexyl) phthalate ³	µg/L	Grab	5
Butyl benzyl phthalate	µg/L	Grab	10
Chrysene	µg/L	Grab	5
Di-n-butylphthalate	µg/L	Grab	10
Di-n-octylphthalate	µg/L	Grab	10
Dibenzo(a,h)-anthracene	µg/L	Grab	0.1
Diethyl phthalate	µg/L	Grab	10
Dimethyl phthalate	µg/L	Grab	10
Fluoranthene	µg/L	Grab	10
Fluorene	µg/L	Grab	10
Hexachlorocyclopentadiene	µg/L	Grab	5
Indeno(1,2,3-c,d)pyrene	µg/L	Grab	0.05
Isophorone	µg/L	Grab	1
N-Nitrosodiphenylamine	µg/L	Grab	1
N-Nitrosodimethylamine	µg/L	Grab	5
N-Nitrosodi-n-propylamine	µg/L	Grab	5
Nitrobenzene	µg/L	Grab	10
Pentachlorophenol	µg/L	Grab	1
Phenanthrene	µg/L	Grab	5
Phenol	µg/L	Grab	1
Pyrene	µg/L	Grab	10

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
Aluminum	µg/L	24-hr Composite ⁴	--
Antimony	µg/L	24-hr Composite ⁴	5
Arsenic	µg/L	24-hr Composite ⁴	10
Asbestos	MFL	24-hr Composite ⁴	--
Beryllium	µg/L	24-hr Composite ⁴	2
Cadmium	µg/L	24-hr Composite ⁴	0.5
Chromium (Total)	µg/L	24-hr Composite ⁴	50
Chromium (VI)	µg/L	Grab	10
Copper	µg/L	24-hr Composite ⁴	10
Cyanide	µg/L	Grab	5
Fluoride	µg/L	24-hr Composite ⁴	--
Iron	µg/L	24-hr Composite ⁴	--
Lead	µg/L	24-hr Composite ⁴	2
Mercury ²	µg/L	Grab	0.5
Manganese	µg/L	24-hr Composite ⁴	--
Nickel	µg/L	24-hr Composite ⁴	50
Selenium	µg/L	24-hr Composite ⁴	5
Silver	µg/L	24-hr Composite ⁴	2
Thallium	µg/L	24-hr Composite ⁴	1
Tributyltin	µg/L	Grab	--
Zinc	µg/L	24-hr Composite ⁴	20
4,4'-DDD	µg/L	Grab	0.05
4,4'-DDE	µg/L	Grab	0.05
4,4'-DDT	µg/L	Grab	0.01
alpha-Endosulfan	µg/L	Grab	0.02
alpha-Hexachlorocyclohexane (BHC)	µg/L	Grab	0.01
Aldrin	µg/L	Grab	0.005
beta-Endosulfan	µg/L	Grab	0.01
beta-Hexachlorocyclohexane	µg/L	Grab	0.005
Chlordane	µg/L	Grab	0.1
delta-Hexachlorocyclohexane	µg/L	Grab	0.005
Dieldrin	µg/L	Grab	0.01
Endosulfan sulfate	µg/L	Grab	0.01
Endrin	µg/L	Grab	0.01
Endrin Aldehyde	µg/L	Grab	0.01
Heptachlor	µg/L	Grab	0.01
Heptachlor Epoxide	µg/L	Grab	0.02
Lindane (gamma-Hexachlorocyclohexane)	µg/L	Grab	0.5
PCB-1016	µg/L	Grab	0.5
PCB-1221	µg/L	Grab	0.5
PCB-1232	µg/L	Grab	0.5
PCB-1242	µg/L	Grab	0.5
PCB-1248	µg/L	Grab	0.5
PCB-1254	µg/L	Grab	0.5
PCB-1260	µg/L	Grab	0.5
Toxaphene	µg/L	Grab	--
2,3,7,8-TCDD (Dioxin)	µg/L	Grab	--
Ammonia (as N) ²	mg/L	24-hr Composite ⁴	--
Boron	µg/L	24-hr Composite ⁴	--

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
Chloride	mg/L	24-hr Composite ⁴	--
Flow	MGD	Meter	--
Hardness (as CaCO ₃) ²	mg/L	Grab	--
Foaming Agents (MBAS)	µg/L	24-hr Composite ⁴	--
Mercury, Methyl ²	ng/L	Grab	--
Nitrate (as N) ²	mg/L	24-hr Composite ⁴	--
Nitrite (as N) ²	mg/L	24-hr Composite ⁴	--
pH ²	Std Units	Grab	--
Phosphorus, Total (as P)	mg/L	24-hr Composite ⁴	--
Specific conductance (EC) ²	µmhos/cm	24-hr Composite ⁴	--
Sulfate	mg/L	24-hr Composite ⁴	--
Sulfide (as S)	mg/L	Grab	--
Sulfite (as SO ₃)	mg/L	24-hr Composite ⁴	--
Temperature ²	°C	Grab	--
Total Dissolved Solids (TDS) ²	mg/L	24-hr Composite ⁴	--

¹ The reporting levels required in this table for priority pollutant constituents are established based on section 2.4.2 and Appendix 4 of the SIP.

² The Discharger is not required to conduct effluent monitoring for constituents that have already been sampled in a given month, as required in Table E-4, except for hardness, pH, and temperature, which shall be conducted concurrently with the effluent sampling.

³ In order to verify if bis (2-ethylhexyl) phthalate is truly present, the Discharger shall take steps to assure that sample containers, sampling apparatus, and analytical equipment are not sources of the detected contaminant.

⁴ 24-hour flow proportional composite.

X. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

1. The Discharger shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.
2. Upon written request of the Central Valley Water Board, the Discharger shall submit a summary monitoring report. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year(s).
3. **Compliance Time Schedules.** For compliance time schedules included in the Order, the Discharger shall submit to the Central Valley Water Board, on or before each compliance due date, the specified document or a written report detailing compliance or non-compliance with the specific date and task. If non-compliance is reported, the Discharger shall state the reasons for non-compliance and include an estimate of the date when the Discharger will be in compliance. The Discharger shall notify the Central Valley Water Board by letter when it returns to compliance with the compliance time schedule.
4. The Discharger shall report to the Central Valley Water Board any toxic chemical release data it reports to the State Emergency Response Commission within 15 days of reporting the data to the Commission pursuant to section 313 of the "*Emergency Planning and Community Right to Know Act*" of 1986.

B. Self-Monitoring Reports (SMRs)

1. The Discharger shall electronically submit SMR's using the State Water Board's California Integrated Water Quality System (CIWQS) Program website http://www.waterboards.ca.gov/water_issues/programs/ciwqs/. The CIWQS website will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.
2. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections III through IX. The Discharger shall submit monthly SMR's including the results of all required monitoring using U.S. EPA-approved test methods or other test methods specified in this Order. SMR's are to include all new monitoring results obtained since the last SMR was submitted. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR. Monthly SMR's are required even if there is no discharge. If no discharge occurs during the month, the monitoring report must be submitted stating that there has been no discharge.
3. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule:

Table E-9. Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
Continuous	Permit effective date	All	Submit with monthly SMR
1/Day	Permit effective date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a calendar day for purposes of sampling.	Submit with monthly SMR
3/Week	Permit effective date	Sunday through Saturday	Submit with monthly SMR
1/Week	Permit effective date	Sunday through Saturday	Submit with monthly SMR
1/Month	Permit effective date	1 st day of calendar month through last day of calendar month	First day of second calendar month following month of sampling
1/Quarter	Permit effective date	1 January through 31 March 1 April through 30 June 1 July through 30 September 1 October through 31 December	1 May 1 August 1 November 1 February of following year
1/Year	Permit effective date	1 January through 31 December	1 February of following year

4. **Reporting Protocols.** The Discharger shall report with each sample result the applicable Reporting Level (RL) and the current laboratory's Method Detection Limit (MDL), as determined by the procedure in 40 C.F.R. part 136.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- a. Sample results greater than or equal to the RL shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).

- b. Sample results less than the RL, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.

- c. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
 - d. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
5. **Multiple Sample Data.** When determining compliance with an average monthly effluent limitation (AMEL), average weekly effluent limitation (AWEL), or maximum daily effluent limitation (MDEL) for priority pollutants and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of DNQ or ND. In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
- a. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 - b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
6. The Discharger shall submit SMR's in accordance with the following requirements:
- a. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the Facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
 - b. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the waste discharge requirements; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.
 - c. The Discharger shall attach all laboratory analysis sheets, including quality assurance/quality control information, with all its SMR's for which sample analyses were performed.

7. The Discharger shall submit in the SMR's calculations in accordance with the following requirements:
- Mass Loading Limitations.** For ammonia, the Discharger shall calculate and report the mass loading (lbs/day) in the SMR's. The mass loading shall be calculated as follows:
$$\text{Mass Loading (lbs/day)} = \text{Flow (MGD)} \times \text{Concentration (mg/L)} \times 8.34$$

When calculating weekly mass loading, the weekly average flow and constituent concentration shall be used. For monthly average mass loading, the monthly average flow and constituent concentration shall be used.
 - Removal Efficiency (BOD₅ and TSS).** The Discharger shall calculate and report the percent removal of BOD₅ and TSS in the SMR's. The percent removal shall be calculated as specified in section VII.A of the Waste Discharge Requirements.
 - Total Coliform Organisms Effluent Limitations.** The Discharger shall calculate and report the 7-day median of total coliform organisms for the effluent. The 7 day median of total coliform organisms shall be calculated as specified in section VII.D of the Waste Discharge Requirements.
 - Total Calendar Annual Mass Loading Mercury and Total Dissolved Solids Effluent Limitations.** The Discharger shall calculate and report the total calendar annual mercury mass loading and the total calendar annual total dissolved solids mass loading for the effluent in the December SMR. The total calendar year annual mass loading values shall be calculated as specified in section VII.B of the Waste Discharge Requirements.
 - Temperature Effluent Limitation.** On a monthly basis, the Discharger shall calculate and report the difference between the daily average effluent temperature and the upstream receiving water temperature based on the difference in the daily average effluent temperature at Monitoring Location EFF-001 and the average receiving water temperature of grab samples collected at Monitoring Location RSW-001 (or daily average temperature measured at DWR Monitoring Station ORX). The daily average effluent temperature shall be taken from the continuous effluent data for the same day that temperature is measured in the receiving water.
 - Chlorpyrifos and Diazinon Effluent Limitations.** The Discharger shall calculate and report the value of S_{AMEL} and S_{AWEL} for the effluent, using the equations in section IV.A.1.h of the Order, and consistent with the Compliance Determination Language in section VII.L of the Waste Discharge Requirements.
 - Dissolved Oxygen Receiving Water Limitations.** The Discharger shall report monthly in the SMR the dissolved oxygen concentrations in the receiving water (Monitoring Locations RSW-002, RSW-003, and RSW-004³).
 - Turbidity Receiving Water Limitations.** The Discharger shall calculate and report the turbidity increase in the receiving water, based on the difference in turbidity at Monitoring Location RSW-002 and RSW-003, applicable to the natural turbidity conditions specified in section V.A.17.a-e of the Waste Discharge Requirements. When discharges at Discharge Point 002 are initiated, the calculation shall be based on the difference in turbidity at Monitoring Locations RSW-002 and RSW-004.

³ Monitoring at Monitoring Location RSW-004 is not required until the discharge begins at Discharge Point 002.

- i. **Temperature Receiving Water Limitations.** The Discharger shall calculate and report the temperature increase in the receiving water based on the difference in temperature at Monitoring Locations RSW-002 and RSW-003. When discharges at Discharge Point 002 are initiated, the calculation shall be based on the difference in temperature at Monitoring Locations RSW-002 and RSW-004.

C. Discharge Monitoring Reports (DMR's)

DMR's are U.S. EPA reporting requirements. The Discharger shall electronically certify and submit DMR's together with SMR's using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal will be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the DMR website at: http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring/.

D. Other Reports

1. **Special Study Technical Reports and Progress Reports.** Special Provisions contained in section VI of the Waste Discharge Requirements include requirements to submit special study technical reports and progress reports. Table E-10 summarizes the technical reports required by the Special Provisions and due dates for report submittal. All special study technical reports and progress reports shall be submitted electronically via CIWQS submittal. Reports should be uploaded as a PDF, Microsoft Word, or Microsoft Excel file attachment. If there are any discrepancies between the information presented in Table E-10 and the Special Provisions (Section VI of the Waste Discharge Requirements), the information in the Special Provisions shall supersede the information in Table E-10.

Table E-10. Reporting Requirements for Special Provisions Reports

Special Provision	Reporting Requirements
CVCWA Coordinated Methylmercury Control Study, Final Report (section VI.C.2.b)	20 October 2018
Pollution Prevention Plan for Mercury, Progress Reports (section VI.C.3.a)	1 December , annually
Salinity Reduction Plan, Annual Reports (section VI.C.3.c)	1 March , annually
Compliance Schedules for Final Effluent Limitations for Methylmercury, Progress Reports (section VI.C.7.a)	20 October , annually, until final compliance

2. Within 60 days of permit adoption, the Discharger shall submit a report electronically via CIWQS submittal outlining RL's, MDL's, and approved analytical methods for the constituents listed in tables E-2, E-3, E-4, E-6, E-7, and E-8. The Discharger shall comply with the monitoring and reporting requirements for CTR constituents as outlined in section 2.3 and 2.4 of the SIP. The maximum required RL's for priority pollutant constituents shall be based on the ML's contained in Appendix 4 of the SIP, determined in accordance with section 2.4.2 and section 2.4.3 of the SIP. In accordance with section 2.4.2 of the SIP, when there is more than one ML value for a given substance, the Central Valley Water Board shall include as RL's, in the permit, all ML values, and their associated analytical methods, listed in Appendix 4, that are below the calculated effluent limitation. The Discharger may select any one of those cited analytical methods for compliance determination. If no ML value is below the effluent limitation, then the Central Valley Water Board shall select as the RL, the lowest ML value, and its associated analytical method, listed in Appendix 4 for inclusion in the permit. Table E-8 provides required maximum reporting levels in accordance with the SIP.

3. **Annual Operations Report.** By 30 January of each year, the Discharger shall submit a written report to the Central Valley Water Board electronically via CIWQS submittal containing the following:
 - a. The names, certificate grades, and general responsibilities of all persons employed at the Facility.
 - b. The names and telephone numbers of persons to contact regarding the plant for emergency and routine situations.
 - c. A statement certifying when the flow meter(s) and other monitoring instruments and devices were last calibrated, including identification of who performed the calibration.
 - d. A statement certifying whether the current operation and maintenance manual, and contingency plan, reflect the Facility as currently constructed and operated, and the dates when these documents were last revised and last reviewed for adequacy.
 - e. The Discharger may also be requested to submit an annual report to the Central Valley Water Board with both tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the compliance record. If violations have occurred, the report shall also discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.
4. **Annual Pretreatment Reporting Requirements.** The Discharger shall submit annually a report to the Central Valley Water Board, with copies to U.S. EPA Region 9 and the State Water Board, describing the Discharger's pretreatment activities over the previous 12 months (1 January through 31 December). In the event that the Discharger is not in compliance with any conditions or requirements of this Order, including non-compliance with pretreatment audit/compliance inspection requirements, then the Discharger shall also include the reasons for non-compliance and state how and when the Discharger shall comply with such conditions and requirements.

An annual report shall be submitted by **28 February** each year and include at least the following items:

- a. A summary of analytical results from representative, flow proportioned, 24-hour composite sampling of the POTW's influent and effluent for those pollutants U.S. EPA has identified under section 307(a) of the CWA that are known or suspected to be discharged by nondomestic users. This will consist of an annual full priority pollutant scan. The Discharger is not required to sample and analyze for asbestos. The Discharger shall submit the results of the annual priority pollutant scan electronically to the Central Valley Water Board using the State Water Board's CIWQS Program Website.

Sludge shall be sampled during the same 24-hour period and analyzed for the same pollutants as the influent and effluent sampling and analysis. The sludge analyzed shall be a composite sample of a minimum of 12 discrete samples taken at equal time intervals over the 24-hour period. Wastewater and sludge sampling and analysis shall be performed at least annually. The Discharger shall also provide any influent, effluent or sludge monitoring data for non-priority pollutants that may be causing or contributing to Interference, Pass-Through or adversely impacting sludge quality. Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 C.F.R. part 136 and amendments thereto.

- b. A discussion of Upset, Interference, or Pass-Through incidents, if any, at the treatment plant, which the Discharger knows or suspects were caused by non-domestic users of the POTW. The discussion shall include the reasons why the incidents occurred, the corrective actions taken and, if known, the name and address of the non-domestic user(s) responsible. The discussion shall also include a review of the applicable pollutant limitations to determine whether any additional limitations, or changes to existing requirements, may be necessary to prevent Pass-Through, Interference, or non-compliance with sludge disposal requirements.
- c. The cumulative number of non-domestic users that the Discharger has notified regarding Baseline Monitoring Reports and the cumulative number of non-domestic user responses.
- d. An updated list of the Discharger's significant industrial users (SIU's) including their names and addresses, or a list of deletions, additions and SIU name changes keyed to a previously submitted list. The Discharger shall provide a brief explanation for each change. The list shall identify the SIU's subject to federal categorical standards by specifying which set(s) of standards are applicable to each SIU. The list shall indicate which SIU's, or specific pollutants from each industry, are subject to local limitations. Local limitations that are more stringent than the federal categorical standards shall also be identified.
- e. The Discharger shall characterize the compliance status through the year of record of each SIU by employing the following descriptions:
 - i. complied with baseline monitoring report requirements (where applicable);
 - ii. consistently achieved compliance;
 - iii. inconsistently achieved compliance;
 - iv. significantly violated applicable pretreatment requirements as defined by 40 C.F.R. section 403.8(f)(2)(vii);
 - v. complied with schedule to achieve compliance (include the date final compliance is required);
 - vi. did not achieve compliance and not on a compliance schedule; and
 - vii. compliance status unknown.
- f. A summary of the inspection and sampling activities conducted by the Discharger during the past year to gather information and data regarding the SIU's. The summary shall include:
 - i. The names and addresses of the SIU's subjected to surveillance and an explanation of whether they were inspected, sampled, or both and the frequency of these activities at each user; and
 - ii. The conclusions or results from the inspection or sampling of each industrial user.
- g. The Discharger shall characterize the compliance status of each SIU by providing a list or table that includes the following information:
 - i. Name of SIU;
 - ii. Category, if subject to federal categorical standards;
 - iii. The type of wastewater treatment or control processes in place;

- iv. The number of samples taken by the POTW during the year;
- v. The number of samples taken by the SIU during the year;
- vi. For an SIU subject to discharge requirements for total toxic organics, whether all required certifications were provided;
- vii. A list of the standards violated during the year. Identify whether the violations were for categorical standards or local limits.
- viii. Whether the Facility is in significant non-compliance (SNC) as defined at 40 C.F.R. section 403.8(f)(2)(viii) at any time during the year; and
- ix. A summary of enforcement or other actions taken during the year to return the SIU to compliance. Describe the type of action (e.g., warning letters or notices of violation, administrative orders, civil actions, and criminal actions), final compliance date, and the amount of fines and penalties collected, if any. Describe any proposed actions for bringing the SIU into compliance;
- x. Restriction of flow to the POTW.
- xi. Disconnection from discharge to the POTW.
- h. A brief description of any programs the POTW implements to reduce pollutants from non-domestic users that are not classified as SIU's;
- i. A brief description of any significant changes in operating the pretreatment program which differ from the previous year including, but not limited to, changes concerning: the program's administrative structure, local limits, monitoring program or monitoring frequencies, legal authority, enforcement policy, funding levels, or staffing levels;
- j. A summary of the annual pretreatment budget, including the cost of pretreatment program functions and equipment purchases; and
- k. A summary of activities to involve and inform the public of the program including a copy of the newspaper notice, if any, required under 40 C.F.R. section 403.8(f)(2)(viii).

Pretreatment Program reports shall be submitted electronically to the Central Valley Water Board via CIWQS submittal and the:

State Water Resources Control Board

NPDES_Wastewater@waterboards.ca.gov

and the

U.S. EPA Region 9 Pretreatment Coordinator

R9Pretreatment@epa.gov

ATTACHMENT F – FACT SHEET

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ATTACHMENT F – FACT SHEET

As described in section II.B of this Order, the Central Valley Water Board incorporates this Fact Sheet as findings of the Central Valley Water Board supporting the issuance of this Order. This Fact Sheet discusses the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for Dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the Facility.

Table F-1. Facility Information

WDID	5B390108001
CIWQS Facility Place ID	266223
Discharger	City of Tracy
Name of Facility	Wastewater Treatment Plant
Facility Address	3900 Holly Drive
	Tracy, CA 95304
	San Joaquin County
Facility Contact, Title and Phone	Dale Klever, Wastewater Treatment Plant Operations Superintendent, (209) 831-6328
Authorized Person to Sign and Submit Reports	Dale Klever, Wastewater Treatment Plant Operations Superintendent, (209) 831-6328
Mailing Address	Same as Facility Address
Billing Address	Same as Facility Address
Type of Facility	Publicly Owned Treatment Works (POTW)
Major or Minor Facility	Major
Threat to Water Quality	1
Complexity	A
Pretreatment Program	Yes
Recycling Requirements	Not Applicable
Facility Permitted Flow	Existing Plant: 10.8 million gallons per day (MGD), average dry weather flow Expanded Plant: 16 MGD, average dry weather flow
Facility Design Flow	Existing Plant: 10.8 million gallons per day (MGD), average dry weather flow Expanded Plant: 16 MGD, average dry weather flow
Watershed	Sacramento-San Joaquin Delta
Receiving Water	Old River
Receiving Water Type	Estuary

- A.** The City of Tracy (hereinafter Discharger) is the owner and operator of the City of Tracy, Wastewater Treatment Plant (hereinafter Facility), a POTW.

For the purposes of this Order, references to the “discharger” or “permittee” in applicable federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

- B.** The Facility discharges wastewater to the Old River, a water of the United States, within the Sacramento-San Joaquin Delta. The Discharger was previously regulated by Order R5-2012-0115-02 and National Pollutant Discharge Elimination System (NPDES) Permit No. CA0079154, which was adopted on 7 December 2012, amended on 9 October 2014 and 11 December 2015, and contains an expiration date of 1 December 2017. Attachment B provides a map of the area around the Facility. Attachment C provides a flow schematic of the Facility.
- C.** When applicable, state law requires dischargers to file a petition with the State Water Board, Division of Water Rights and receive approval for any change in the point of discharge, place of use, or purpose of use of treated wastewater that decreases the flow in any portion of a watercourse. The State Water Board retains separate jurisdictional authority to enforce any applicable requirements under Water Code section 1211. This is not an NPDES permit requirement.
- D.** The Discharger filed a report of waste discharge (ROWD) and submitted an application for reissuance of its waste discharge requirements (WDR's) and NPDES permit on **5 June 2017**. The application was deemed complete on **19 July 2017**. A site visit was conducted on 19 January 2017, to observe operations and collect additional data to develop permit limitations and requirements for waste discharge.
- E.** Regulations at 40 C.F.R. section 122.46 limit the duration of NPDES permits to a fixed term not to exceed 5 years. Accordingly, Table 3 of this Order limits the duration of the discharge authorization. Under 40 C.F.R. section 122.6(d), States authorized to administer the NPDES program may administratively continue State-issued permits beyond their expiration dates until the effective date of the new permits, if State law allows it. Pursuant to California Code of Regulations (CCR), Title 23, section 2235.4, the terms and conditions of an expired permit are automatically continued pending reissuance of the permit if the Discharger complies with all federal NPDES requirements for continuation of expired permits.

II. FACILITY DESCRIPTION

The Discharger provides sewerage service for the City of Tracy and serves a population of approximately 85,000. The design daily average flow capacity of the Facility is currently 10.8 MGD, with plans to expand the capacity to 16 MGD.

A. Description of Wastewater and Biosolids Treatment and Controls

The Facility treats primarily domestic wastewater collected via the Discharger's wastewater collection system. The wastewater treatment plant also accepts industrial food processing wastewater from Leprino Foods Company through a segregated industrial wastewater pipeline. The industrial food processing wastewater is pretreated in separate treatment facilities, which are located at the Facility, and introduced into the main treatment plant for final treatment and disposal, as discussed in more detail below.

The Discharger provides wastewater treatment and disposal services for residences, businesses and industries within its service area. The Facility was originally constructed in 1930 and has experienced four major expansions. The most recent expansion was completed in August 2008, which increased the treatment capacity from 9 MGD to 10.8 MGD and included nitrification, denitrification and tertiary filtration. The Discharger is planning to complete additional upgrades to the Facility, including the construction of a second outfall.

The Facility is composed of a main treatment facility and an industrial facility. The main treatment facility consists of raw influent bar screening, primary sedimentation, flow equalization, biological nutrient removal, secondary sedimentation, tertiary filtration, chlorination, dechlorination, post-aeration, and emergency storage. Biosolids are thickened by

dissolved air flotation, anaerobically digested, and dewatered in impermeable asphalt-paved drying beds. The dried biosolids are hauled off-site for land application or disposed in a landfill. The emergency storage pond is used infrequently to divert effluent when the Facility is under routine maintenance or if there is a problem with effluent chlorination, dechlorination, or turbidity. The Discharger may also use a portion of the emergency storage pond during cold periods of the year to divert effluent for cooling in the pond to comply with effluent temperature limits.

The Discharger's industrial facility consists of four unlined industrial ponds (approximately 52 acres). In addition, Leprino, a local cheese manufacturer, leases two lined aerated lagoons and one 8-acre unlined oxidation pond from the Discharger for preliminary treatment of its industrial food processing wastewater and discharges to the Facility under an industrial pretreatment permit issued by the Discharger. Leprino transports its industrial wastewater to the Facility via a segregated industrial waste line. Leprino employees operate and maintain the industrial wastewater pipeline and leased pretreatment units. Leprino's industrial pretreatment program permit allows for a discharge of up to 850,000 gallons per day of industrial food-processing wastewater. Compliance with Leprino's industrial pretreatment permit is measured prior to discharge to Pond 1 (see Attachment C). Leprino's industrial wastewater and process water from the main treatment plant are stored in the unlined industrial ponds and introduced into the primary sedimentation basins of the main treatment facility for treatment and disposal.

This Order only regulates the surface water discharge to the Old River. Separate Waste Discharge Requirements (WDR) Order R5-2007-0038 regulates the industrial treatment ponds, industrial holding ponds, sludge drying beds, and biosolids storage areas at the Facility.

B. Discharge Points and Receiving Waters

1. The Facility is located in Section 21, T2S, R5E, MDB&M, as shown in Attachment B of this Order.
2. Treated municipal wastewater is currently discharged at Discharge Point 001 to the Old River, a water of the United States, within the legal boundary of the Sacramento-San Joaquin Delta, at a point latitude 37° 48' 19" N and longitude 121° 24' 07" W.
3. In order to increase discharge capacity, the Discharger plans to construct a second outfall, Discharge Point 002, approximately 800 feet west of Discharge Point 001. Discharge Point 002 will be located at a point latitude 37° 48' 20" N and longitude 121° 24' 15" W. The outfall will consist of a 77-foot diffuser that includes twelve 8-inch diameter risers spaced 7 feet on center. Upon completion of Discharge Point 002, both outfalls can be utilized to discharge treated effluent.

C. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data

Effluent limitations contained in Order R5-2012-0115-02 for discharges from Discharge Point 001 (Monitoring Location EFF-001) and representative monitoring data from the term of Order R5-2012-0115-02 are as follows:

Table F-2. Historic Effluent Limitations and Monitoring Data

Parameter	Units	Effluent Limitation			Monitoring Data (November 2013 – October 2016)		
		Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Flow	MGD ¹	--	--	10.8 ²	--	--	13.48 ³
	MGD ⁴	--	--	12 ²	--	--	--
	MGD ⁵	--	--	13.6 ²	--	--	--
	MGD ⁶	--	--	16 ²	--	--	--
Conventional Pollutants							
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	20	4.6	6.01	18.5
	lbs/day ¹	900	1,400	1,800	353	455	1,244
	lbs/day ⁴	1,000	1,500	2,000	--	--	--
	lbs/day ⁵	1,100	1,700	2,300	--	--	--
	lbs/day ⁶	1,300	2,000	2,700	--	--	--
	% Removal	85	--	--	99 ⁷	--	--
Total Suspended Solids	mg/L	10	15	20	2.5	3.11	16.4
	lbs/day ¹	900	1,400	1,800	187	213	1,102
	lbs/day ⁴	1,000	1,500	2,000	--	--	--
	lbs/day ⁵	1,100	1,700	2,300	--	--	--
	lbs/day ⁶	1,300	2,000	2,700	--	--	--
	% Removal	85	--	--	99 ⁷	--	--
pH	standard units	--	--	6.5 – 8.5	--	--	6.5 – 7.8
Priority Pollutants							
Bis (2-Ethylhexyl) Phthalate	µg/L	12	--	49	0.74	--	0.74
Copper, Total Recoverable	µg/L	15	--	10.4	7.2	--	7.2
Chlorodibromomethane	µg/L	8.0	--	18	12	--	12
Dichlorobromomethane	µg/L	11	--	23	19	--	19
Mercury, Total Recoverable	grams/year	41 ⁸	--	--	21.9 ⁹	--	--
Non-Conventional Pollutants							
Ammonia, Total (as N)	mg/L	1.3	--	2.1	1.01	--	1.41
	lbs/day ¹	120	--	190	78	--	107
	lbs/day ⁴	130	--	210	--	--	--
	lbs/day ⁵	150	--	240	--	--	--
	lbs/day ⁶	170	--	280	--	--	--
Chlorine, Total Residual	mg/L	--	0.011 ¹⁰	0.019 ¹¹	--	--	NR ²²
Methylmercury	grams/year	0.77 ¹²	--	--	--	--	--
Nitrate Plus Nitrite (as N)	mg/L	10	--	--	8.4	--	--
Temperature	°F	--	--	20 ¹³	--	--	-- ¹⁴

Parameter	Units	Effluent Limitation			Monitoring Data (November 2013 – October 2016)		
		Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Total Coliform Organisms	MPN/100 mL	2.2 ¹⁵	23 ¹⁶	240 ¹⁷	--	--	170
Acute Toxicity	% Survival	--	--	70 ¹⁸ /90 ¹⁹	--	--	95 ²⁰
Chronic Toxicity	TUc	--	--	21	--	--	1

NR – Not Reported

- ¹ Based on an average dry weather discharge flow of 10.8 MGD to coincide with phased upgrade project.
- ² Applied as an average dry weather flow effluent limitation.
- ³ Represents the maximum observed daily discharge flow.
- ⁴ Based on an average dry weather discharge flow of 12 MGD to coincide with phased upgrade project.
- ⁵ Based on an average dry weather discharge flow of 13.6 MGD to coincide with phased upgrade project.
- ⁶ Based on an average dry weather discharge flow of 16 MGD to coincide with phased upgrade project.
- ⁷ Represents the minimum reported percent removal.
- ⁸ Interim annual mass loading effluent limitation effective until 31 December 2030.
- ⁹ Represents the maximum total calendar annual mass load.
- ¹⁰ Applied as a 4-day average effluent limitation.
- ¹¹ Applied as a 1-hour average effluent limitation.
- ¹² Final annual mass loading effluent limitation effective 31 December 2030.
- ¹³ The maximum temperature of the discharge shall not exceed the natural receiving water temperature at Monitoring Location RSW-001 by more than 20°F.
- ¹⁴ Temperature monitoring at Monitoring Location RSW-001 was inadvertently omitted in the previous Order..
- ¹⁵ Applied as a 7-day median effluent limitation.
- ¹⁶ Not to be exceeded more than once in any 30-day period.
- ¹⁷ Applied as an instantaneous maximum effluent limitation.
- ¹⁸ Minimum percent survival for any one bioassay.
- ¹⁹ Median percent survival of three consecutive acute bioassays.
- ²⁰ Represents the minimum observed percent survival.
- ²¹ There shall be no chronic toxicity in the effluent.
- ²² Discharger reports positive dechlor agent rather than chlorine residual to demonstrate the absence of chlorine in the discharge. There were no violations of the chlorine residual effluent limits during the term of the previous Order.

D. Compliance Summary

The Central Valley Water Board issued Administrative Civil Liability (ACL) Complaint R5-2013-0566 on 10 September 2013 which proposed to assess a civil liability of \$6,000 against the Discharger for effluent violations for pH, temperature and total coliform organisms, and failure to timely submit the self-monitoring report for the time period of 1 January 2009 and 31 May 2013 under Orders R5-2007-0036, R5-2007-0036-01 and R5-2012-0115. The Discharger paid the mandatory minimum penalty of \$6,000.

E. Planned Changes

The Discharger plans to expand the treatment capacity of the Facility to 16 MGD through a four-phase expansion. Phase 1, which was completed in August 2008, included an increase in capacity from 9 MGD to 10.8 MGD and implementation of nitrification/denitrification and tertiary filtration. All the sludge drying beds have been paved with impermeable hydraulic asphalt cement pavement. As described in the ROWD, the proposed Phase 2 improvements include the construction of a second outfall, Discharge Point 002, near the existing outfall and construction of a new primary clarifier. The proposed Phase 3 improvements include the

construction of a solids processing facility and installation of a new filter pump for tertiary treatment. The proposed Phase 4 improvements include the construction of a new secondary clarifier and aeration basin and the construction of a sludge digester. Phases 2-4 improvements will expand the Facility's treatment and discharge capacity to 16 MGD. The proposed timeline for these improvements extends to 2025. The Discharger is currently undergoing the eminent domain process to acquire the property needed to construct the outfall for Discharge Point 002 before pursuing the next phase of Facility upgrades.

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order serves as WDR's pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit for point source discharges from this Facility to surface waters.

B. California Environmental Quality Act (CEQA)

Under Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of division 13 of the Public Resources Code.

C. State and Federal Laws, Regulations, Policies, and Plans

1. **Water Quality Control Plans.** Requirements of this Order specifically implement the applicable Water Quality Control Plans.
 - a. **Basin Plan.** The Central Valley Water Board adopted a Water Quality Control Plan for the Water Quality Control Plan, Fourth Edition (Revised July 2016), for the Sacramento and San Joaquin River Basins (hereinafter Basin Plan) that designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. Requirements in this Order implement the Basin Plan. In addition, the Basin Plan implements State Water Board Resolution 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply. Beneficial uses applicable to the Old River within the Sacramento-San Joaquin Delta are as follows:

Table F-3. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001, 002 ¹	Old River	<u>Existing:</u> Municipal and domestic supply (MUN); agricultural supply, including irrigation and stock watering (AGR); industrial process supply (PROC); industrial service supply (IND); water contact recreation (REC-1); non-contact water recreation (REC-2); warm freshwater habitat (WARM); cold freshwater habitat (COLD); warm and cold migration of aquatic organisms (MIGR); warm spawning, reproduction, and/or early development (SPWN); wildlife habitat (WILD), and navigation (NAV).

¹ Future outfall proposed for Facility expansion.

- b. **Bay-Delta Plan.** The *Water Quality Control Plan for the San Francisco Bay/Sacramento-San Joaquin Delta Estuary* (Bay-Delta Plan) was adopted in May 1995 by the State Water Board, superseding the 1991 Bay-Delta Plan. The Bay-Delta Plan identifies the beneficial uses of the estuary and includes objectives for flow, salinity, and endangered species protection.

The State Water Board adopted Decision 1641 (D-1641) on 29 December 1999, and revised on 15 March 2000. D-1641 implements flow objectives for the Bay-Delta Estuary, approves a petition to change points of diversion of the Central Valley Project and the State Water Project in the Southern Delta, and approves a petition to change places of use and purposes of use of the Central Valley Project. The water quality objectives of the Bay-Delta Plan are implemented as part of this Order, except for the South Delta electrical conductivity WQOs as explained below.

The Bay-Delta Plan includes water quality objectives for electrical conductivity for the South Delta in the vicinity of the discharge.¹ On 1 June 2011, the Superior Court for Sacramento County entered a judgment and peremptory writ of mandate in the matter of *City of Tracy v. State Water Resources Control Board* (Case No. 34-2009-8000-392-CU-WM-GDS), ruling that the South Delta salinity objectives shall not apply to the City of Tracy and other municipal dischargers pending reconsideration of the South Delta salinity objectives and adoption of a proper program of implementation that includes municipal dischargers. The State Water Board is currently considering new salinity and flow objectives in the South Delta that will address the Court Order. Therefore, at the time this Order was adopted, the South Delta salinity objectives were not applicable to the Discharger.

- c. **Thermal Plan.** The State Water Board adopted the *Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California* (Thermal Plan) on 7 January 1971, and amended this plan on 18 September 1975. This plan contains temperature objectives for surface waters.

The Thermal Plan is applicable to the discharge from the Facility. For the purposes of the Thermal Plan, the Discharger is considered to be an Existing Discharger of

¹ The Bay-Delta Plan includes water quality objectives at three locations in the South Delta for electrical conductivity. The water quality objectives are a 14-day running average electrical conductivity of 700 µmhos/cm from 1 April through 31 August and a 14-day running average electrical conductivity of 1,000 µmhos/cm from 1 September through 31 March.

Elevated Temperature Waste to an Estuary, as defined in the Thermal Plan. The Thermal Plan in section 5.A contains the following temperature objectives for surface waters that are applicable to this discharge:

“5. Estuaries

A. Existing dischargers

(1) Elevated temperature waste discharges shall comply with the following:

- a. The maximum temperature shall not exceed the natural receiving water temperature by more than 20°F.*
- b. Elevated temperature waste discharges either individually or combined with other discharges shall not create a zone, defined by water temperatures of more than 1°F above natural receiving water temperature, which exceeds 25 percent of the cross-sectional area of a main river channel at any point.*
- c. No discharge shall cause a surface water temperature rise greater than 4°F above the natural temperature of the receiving waters at any time or place.*
- d. Additional limitations shall be imposed when necessary to assure protection of beneficial uses.*

Based on the Discharger's Final Environmental Impact Report (EIR), modeling indicates that Objective 5A(1)b of the Thermal Plan may be exceeded 3 months of the year at the expanded discharge flow rate of 16 MGD. As described in the Final EIR for the expansion of the Facility, the Discharger has proposed mitigation measures to ensure that any thermal impact will be less than significant. Previous Order R5-2007-0036 required the Discharger to conduct 4 years of intensive monitoring of thermal impacts in the vicinity of the outfall and evaluate the need for mitigation measures. This information will be used to evaluate if the discharger can meet the Thermal Plan requirements or whether a Thermal Plan exception will be needed prior to initiating discharge from Discharge Point 002. If a Thermal Plan exception is requested, the Discharger will be required to acquire technical reviews from the U.S. Fish and Wildlife Services, National Marine Fisheries Service, and California Department of Fish and Wildlife to ensure the Thermal Plan exception is adequately protective of aquatic species, including rare, threatened, and endangered species protected under the Endangered Species Act. Prior to initiating discharge at Discharge Point 002, the Discharger is required to ensure compliance with the Thermal Plan and/or be granted a Thermal Plan exception by the Central Valley Water Board and State Water Board.

- d. **Sediment Quality.** The State Water Board adopted the Water Quality Control Plan for Enclosed Bays and Estuaries – Part 1, Sediment Quality on 16 September 2008, and it became effective on 25 August 2009. This plan supersedes other narrative sediment quality objectives and establishes new sediment quality objectives and related implementation provisions for specifically defined sediments in most bays and estuaries. Requirements of this Order implement sediment quality objectives of this Plan.
- 2. **National Toxics Rule (NTR) and California Toxics Rule (CTR).** U.S. EPA adopted the NTR on 22 December 1992, and later amended it on 4 May 1995 and 9 November 1999. About forty criteria in the NTR applied in California. On 18 May 2000, U.S. EPA adopted the CTR. The CTR promulgated new toxics criteria for California and, in addition,

incorporated the previously adopted NTR criteria that were applicable in the state. The CTR was amended on 13 February 2001. These rules contain federal water quality criteria for priority pollutants.

3. **State Implementation Policy.** On 2 March 2000, the State Water Board adopted the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (State Implementation Policy or SIP). The SIP became effective on 28 April 2000, with respect to the priority pollutant criteria promulgated for California by the U.S. EPA through the NTR and to the priority pollutant objectives established by the Central Valley Water Board in the Basin Plan. The SIP became effective on 18 May 2000, with respect to the priority pollutant criteria promulgated by the U.S. EPA through the CTR. The State Water Board adopted amendments to the SIP on 24 February 2005, which became effective on 13 July 2005. The SIP establishes implementation provisions for priority pollutant criteria and objectives and provisions for chronic toxicity control. Requirements of this Order implement the SIP.
4. **Antidegradation Policy.** Federal regulation 40 C.F.R. section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution 68-16 ("*Statement of Policy with Respect to Maintaining High Quality of Waters in California*") (State Antidegradation Policy). The State Antidegradation Policy is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. The State Antidegradation Policy requires that existing water quality be maintained unless degradation is justified based on specific findings. The Basin Plan implements, and incorporates by reference, both the State and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of 40 C.F.R. section 131.12 and the State Antidegradation Policy. The Board finds this Order is consistent with the Federal and State Water Board antidegradation regulations and policy.
5. **Anti-Backsliding Requirements.** Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed.
6. **Domestic Water Quality.** In compliance with Water Code section 106.3, it is the policy of the State of California that every human being has the right to safe, clean, affordable, and accessible water adequate for human consumption, cooking, and sanitary purposes. This Order promotes that policy by requiring discharges to meet maximum contaminant levels designed to protect human health and ensure that water is safe for domestic use.
7. **Endangered Species Act Requirements.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code, §§ 2050 to 2097) or the Federal Endangered Species Act (16 U.S.C.A. §§ 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the beneficial uses of waters of the state. The Discharger is responsible for meeting all requirements of the applicable Endangered Species Act.
8. **Emergency Planning and Community Right to Know Act.** Section 13263.6(a) of the Water Code, requires that "*the Regional Water Board shall prescribe effluent limitations as part of the waste discharge requirements of a POTW for all substances that the most recent toxic chemical release data reported to the state emergency response*

commission pursuant to section 313 of the Emergency Planning and Community Right to Know Act of 1986 (42 U.S.C. Sec. 11023) (EPCRA) indicate as discharged into the POTW, for which the State Water Board or the Regional Water Board has established numeric water quality objectives, and has determined that the discharge is or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to, an excursion above any numeric water quality objective”.

U.S EPA's Toxics Release Inventory (TRI) indicates that certain glycol ethers and nitrate compounds were discharged to the Facility. Of these pollutants, numeric water quality objectives have been adopted for nitrate in the Basin Plan. As detailed elsewhere in this Order, nitrate has reasonable potential to cause or contribute to an excursion above numeric water quality objectives and effluent limitations for nitrate plus nitrite are included in this Order.

9. **Storm Water Requirements.** U.S. EPA promulgated federal regulations for storm water on 16 November 1990 in 40 C.F.R. parts 122, 123, and 124. The NPDES Industrial Storm Water Program regulates storm water discharges from wastewater treatment facilities. Wastewater treatment plants are applicable industries under the storm water program and are obligated to comply with the federal regulations. The State Water Board Water Quality Order 2014-0057-DWQ, General Permit for Storm Water Discharges Associated with Industrial Activities (NPDES General Permit No. CAS000001), does not require facilities to obtain coverage if discharges of storm water are regulated under another individual or general NPDES permit adopted by the State Water Board or Regional Water Board (Finding I.B.20). All storm water at the Facility is captured and directed to the Facility headworks for treatment and disposal under this Order. Therefore, coverage under the Industrial General Storm Water Permit is not required.

D. Impaired Water Bodies on CWA 303(d) List

1. Under section 303(d) of the 1972 CWA, states, territories and authorized tribes are required to develop lists of water quality limited segments. The waters on these lists do not meet water quality standards, even after point sources of pollution have installed the minimum required levels of pollution control technology. On 26 June 2015, U.S. EPA gave final approval to California's 2012 section 303(d) List of Water Quality Limited Segments. The Basin Plan references this list of Water Quality Limited Segments (WQLS's), which are defined as “...*those sections of lakes, streams, rivers or other fresh water bodies where water quality does not meet (or is not expected to meet) water quality standards even after the application of appropriate limitations for point sources* (40 C.F.R. part 130, et seq.).” The Basin Plan also states, “*Additional treatment beyond minimum federal standards will be imposed on dischargers to [WQLS's]. Dischargers will be assigned or allocated a maximum allowable load of critical pollutants so that water quality objectives can be met in the segment.*” The listing for the Old River (San Joaquin River to Delta-Mendota Canal) includes: chlorpyrifos, electrical conductivity, low dissolved oxygen, and total dissolved solids. The listing for the southern portion of the Sacramento-San Joaquin Delta, which includes the Old River, includes chlorpyrifos, DDT, diazinon, electrical conductivity, group A pesticides, invasive species, mercury, and unknown toxicity.
2. **Total Maximum Daily Loads (TMDL's).** Table F-4, below, identifies the 303(d) listings and TMDL's. This permit includes water quality-based effluent limitations (WQBEL's) that are consistent with the assumptions and considerations of the applicable waste load allocations (WLA's) in the 2007 TMDL for diazinon and chlorpyrifos and the 2011 TMDL for methylmercury.

Table F-4. 303 (d) List for the Old River (San Joaquin River to Delta-Mendota Canal) and the Sacramento-San Joaquin Delta (Southern Portion)

Pollutant	Potential Sources	TMDL Status
Old River (San Joaquin River to Delta-Mendota Canal)		
Chlorpyrifos	Source Unknown	Adopted and Effective (10 October 2007)
Electrical Conductivity	Source Unknown	Planned for Completion (2021)
Low Dissolved Oxygen	Hydromodification, Source Unknown	Planned for Completion (2019)
Total Dissolved Solids	Source Unknown	Planned for Completion (2021)
Sacramento-San Joaquin Delta (Southern Portion)		
Chlorpyrifos	Source Unknown	Adopted and Effective (10 October 2007)
DDT	Source Unknown	Planned for Completion (2011)
Diazinon	Source Unknown	Adopted and Effective (10 October 2007)
Electrical Conductivity	Source Unknown	Planned for Completion (2019)
Group A Pesticides	Source Unknown	Planned for Completion (2011)
Invasive Species	Source Unknown	Planned for Completion (2019)
Mercury	Resource Extraction	Adopted and Effective (20 October 2011)
Unknown Toxicity	Source Unknown	Planned for Completion (2019)

- The 303(d) listings and TMDL's have been considered in the development of the Order. A pollutant-by-pollutant evaluation of each pollutant of concern is described in section IV.C.3 of this Fact Sheet.

E. Other Plans, Policies and Regulations – Not Applicable

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

Effluent limitations and toxic and pretreatment effluent standards established pursuant to sections 301 (Effluent Limitations), 302 (Water Quality Related Effluent Limitations), 304 (Information and Guidelines), and 307 (Toxic and Pretreatment Effluent Standards) of the CWA and amendments thereto are applicable to the discharge.

The CWA mandates the implementation of effluent limitations that are as stringent as necessary to meet water quality standards established pursuant to state or federal law [33 U.S.C., §1311(b)(1)(C); 40 C.F.R. § 122.44(d)(1)]. NPDES permits must incorporate discharge limits necessary to ensure that water quality standards are met. This requirement applies to narrative criteria as well as to criteria specifying maximum amounts of particular pollutants. Pursuant to federal regulations, 40 C.F.R. section 122.44(d)(1)(i), NPDES permits must contain limits that control all pollutants that “*are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any state water quality standard, including state narrative criteria for water quality.*” Federal regulations, 40 C.F.R. section 122.44(d)(1)(vi), further provide that “[w]here a state has not established a water quality criterion for a specific chemical pollutant that is present in an effluent at a concentration that causes, has the reasonable potential to cause, or contributes to an excursion above a narrative criterion within an applicable State water quality standard, the permitting authority must establish effluent limits.”

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 C.F.R. section 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 C.F.R. section 122.44(d) requires that permits include WQBEL's to attain and maintain applicable numeric and narrative water quality criteria set to protect the beneficial uses of the receiving water where numeric water quality objectives have not been established. The Basin Plan at page IV-17.00 contains an implementation policy "Policy for Application of Water Quality Objectives" that specifies that the Central Valley Water Board "*will, on a case-by-case basis, adopt numerical limitations in Orders which will implement the narrative objectives.*" This Policy complies with 40 C.F.R. section 122.44(d)(1). With respect to narrative objectives, the Central Valley Water Board must establish effluent limitations using one or more of three specified sources, including: (1) U.S. EPA's published water quality criteria, (2) a proposed state criterion (i.e., water quality objective) or an explicit state policy interpreting its narrative water quality criteria (i.e., the Central Valley Water Board's "Policy for Application of Water Quality Objectives") (40 C.F.R. § 122.44(d)(1)(vi)(A), (B) or (C)), or (3) an indicator parameter.

The Basin Plan includes numeric site-specific water quality objectives and narrative objectives for toxicity, chemical constituents, discoloration, radionuclides, and tastes and odors. The narrative toxicity objective states: "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at III-8.00) The Basin Plan states that material and relevant information, including numeric criteria, and recommendations from other agencies and scientific literature will be utilized in evaluating compliance with the narrative toxicity objective. The narrative chemical constituents objective states that waters shall not contain chemical constituents in concentrations that adversely affect beneficial uses. At minimum, "*...water designated for use as domestic or municipal supply (MUN) shall not contain concentrations of chemical constituents in excess of the maximum contaminant levels (MCL's)*" in Title 22 of CCR. The Basin Plan further states that, to protect all beneficial uses, the Central Valley Water Board may apply limits more stringent than MCL's. The narrative tastes and odors objective states: "*Water shall not contain taste- or odor-producing substances in concentrations that impart undesirable tastes or odors to domestic or municipal water supplies or to fish flesh or other edible products of aquatic origin, or that cause nuisance, or otherwise adversely affect beneficial uses.*"

A. Discharge Prohibitions

1. **Prohibition III.A (No discharge or application of waste other than that described in this Order).** This prohibition is based on Water Code section 13260 that requires filing of a ROWD before discharges can occur. The Discharger submitted a ROWD for the discharges described in this Order; therefore, discharges not described in this Order are prohibited.
2. **Prohibition III.B (Average Dry Weather Flow).** This prohibition is based on the design average dry weather flow treatment capacity rating for the Facility and ensures the Facility is operated within its treatment capacity. Previous Order R5-2012-0115-02 included flow as an effluent limit based on the facility design flow. Flow is not a pollutant and therefore has been changed from an effluent limit to a discharge prohibition in this Order, which is an equivalent level of regulation. This Order is not less stringent because compliance with flow as a discharge prohibition will be calculated the same way as the previous Order.
3. **Prohibition III.C (No bypasses or overflow of untreated wastewater, except under the conditions at 40 C.F.R. section 122.41(m)(4)).** As stated in section I.G of

Attachment D, Standard Provisions, this Order prohibits bypass from any portion of the treatment facility. Federal regulations, 40 C.F.R. section 122.41(m), define “bypass” as the intentional diversion of waste streams from any portion of a treatment facility. This section of the federal regulations, 40 C.F.R. section 122.41(m)(4), prohibits bypass unless it is unavoidable to prevent loss of life, personal injury, or severe property damage. In considering the Regional Water Board’s prohibition of bypasses, the State Water Board adopted a precedential decision, Order WQO 2002-0015, which cites the federal regulations, 40 C.F.R. section 122.41(m), as allowing bypass only for essential maintenance to assure efficient operation.

4. **Prohibition III.D (No controllable condition shall create a nuisance).** This prohibition is based on Water Code section 13050 that requires water quality objectives established for the prevention of nuisance within a specific area. The Basin Plan prohibits conditions that create a nuisance.
5. **Prohibition III.E (No inclusion of pollutant-free wastewater shall cause improper operation of the Facility’s systems).** This prohibition is based on 40 C.F.R. section 122.41 et seq. that requires the proper design and operation of treatment facilities. The Discharger has proposed to reduce its salinity loading to the Delta through operation of a desalination plant, which would result in the return of pollutant-free wastewater to the Facility. Prohibition III.E does not prohibit the return of pollutant-free wastewater from a desalination plant.
6. **Prohibition III.F (No discharge of hazardous waste).** This prohibition is based on CCR, Title 22, section 66261.1 et seq, that prohibits discharge of hazardous waste.

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing U.S. EPA permit regulations at 40 C.F.R. section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at 40 C.F.R. part 133.

Regulations promulgated in 40 C.F.R. section 125.3(a)(1) require technology-based effluent limitations for municipal Dischargers to be placed in NPDES permits based on Secondary Treatment Standards or Equivalent to Secondary Treatment Standards.

The Federal Water Pollution Control Act Amendments of 1972 (PL 92-500) established the minimum performance requirements for POTW’s [defined in section 304(d)(1)]. Section 301(b)(1)(B) of that Act requires that such treatment works must, as a minimum, meet effluent limitations based on secondary treatment as defined by the U.S. EPA Administrator.

Based on this statutory requirement, U.S. EPA developed secondary treatment regulations, which are specified in 40 C.F.R. part 133. These technology-based regulations apply to all municipal wastewater treatment plants and identify the minimum level of effluent quality attainable by secondary treatment in terms of biochemical oxygen demand (BOD₅), total suspended solids (TSS), and pH.

2. Applicable Technology-Based Effluent Limitations

- a. **BOD₅ and TSS.** Federal regulations at 40 C.F.R. part 133, establish the minimum weekly and monthly average level of effluent quality attainable by secondary

treatment for BOD₅ and TSS. In addition, 40 C.F.R. section 133.102, in describing the minimum level of effluent quality attainable by secondary treatment, states that the 30-day average percent removal shall not be less than 85 percent. This Order contains a limitation requiring an average of 85 percent removal of BOD₅ and TSS over each calendar month. This Order requires WQBEL's that are equal to or more stringent than the secondary technology-based treatment described in 40 C.F.R. part 133 (see section IV.C.3.d of the Fact Sheet for a discussion on Pathogens which includes WQBEL's for BOD₅ and TSS.)

- b. **pH.** The secondary treatment regulations at 40 C.F.R. part 133 also require that pH be maintained between 6.0 and 9.0 standard units. This Order, however, requires more stringent WQBEL's for pH to comply with the Basin Plan's water quality objectives for pH.

Summary of Technology-based Effluent Limitations Discharge Points 001 and 002

Table F-5. Summary of Technology-based Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Conventional Pollutants						
Biochemical Oxygen Demand (5-day @ 20°C) ¹	mg/L	30	45	--	--	--
	% Removal	85	--	--	--	--
pH ¹	standard units	--	--	--	6.0	9.0
Total Suspended Solids ¹	mg/L	30	45	--	--	--
	% Removal	85	--	--	--	--

¹ More stringent WQBEL's are applicable to the discharge and are included in this Order, as described further in section IV.C.3.d of this Fact Sheet.

C. Water Quality-Based Effluent Limitations (WQBEL's)

1. Scope and Authority

CWA section 301(b) and 40 C.F.R. section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards. This Order contains requirements, expressed as a technology equivalence requirement, more stringent than secondary treatment requirements that are necessary to meet applicable water quality standards. The rationale for these requirements, which consist of tertiary treatment or equivalent requirements, is discussed in section IV.C.3 of this Fact Sheet.

Section 122.44(d)(1)(i) of 40 C.F.R. requires that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, WQBEL's must be established using: (1) U.S. EPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality

criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBEL's when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the CTR and NTR.

Finally, 40 C.F.R. section 122(d)(1)(vii) requires effluent limits to be developed consistent with any available wasteload allocations developed and approved for the discharge.

2. **Applicable Beneficial Uses and Water Quality Criteria and Objectives**

The Basin Plan designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. In addition, the Basin Plan implements State Water Board Resolution 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply.

The Basin Plan on page II-1.00 states: "*Protection and enhancement of existing and potential beneficial uses are primary goals of water quality planning...*" and with respect to disposal of wastewaters states that "*...disposal of wastewaters is [not] a prohibited use of waters of the State; it is merely a use which cannot be satisfied to the detriment of beneficial uses.*"

The federal CWA section 101(a)(2), states: "*it is the national goal that wherever attainable, an interim goal of water quality which provides for the protection and propagation of fish, shellfish, and wildlife, and for recreation in and on the water be achieved by July 1, 1983.*" Federal Regulations, developed to implement the requirements of the CWA, create a rebuttable presumption that all waters be designated as fishable and swimmable. Federal Regulations, 40 C.F.R. sections 131.2 and 131.10, require that all waters of the State regulated to protect the beneficial uses of public water supply, protection and propagation of fish, shell fish and wildlife, recreation in and on the water, agricultural, industrial and other purposes including navigation. Federal Regulations, 40 C.F.R. section 131.3(e), define existing beneficial uses as those uses actually attained after 28 November 1975, whether or not they are included in the water quality standards. Federal Regulations, 40 C.F.R. section 131.10, require that uses be obtained by implementing effluent limitations, requires that all downstream uses be protected and states that in no case shall a state adopt waste transport or waste assimilation as a beneficial use for any waters of the United States.

- a. **Receiving Water and Beneficial Uses.** The Discharger discharges to the Old River, which is within the legal boundary of the Sacramento-San Joaquin Delta. Discharge Point 001 is located near the junction of Paradise Cut, Tom Paine Slough, Salmon Slough, and Sugar Cut Slough. The Discharger is planning to construct Discharge Point 002 approximately 800 feet west of Discharge Point 001.

The Old River, in the vicinity of the discharge, is tidally influenced. River flow moves upstream during the incoming or flood tide, while downstream flows occur during the outgoing or ebb tide. Upstream San Joaquin River releases, tidal influences, the South Delta Temporary Barriers Program, and State Water Project and Central Valley Project pumping at Clifton Court Forebay affect the amount of flow in the Old River.

The Sacramento-San Joaquin Delta is vital to California and comprises over 700 miles of interconnected waterways and encompasses 1,153 square miles. The Sacramento-San Joaquin Delta is home to over 280 species of birds and more than 50 species of fish, making it one of the most ecologically important aquatic habitats in the State. Drinking water for over 25 million Californians is pumped from the Sacramento-San Joaquin Delta via the State Water Project, Central Valley Water Project, and local water intakes. The Sacramento-San Joaquin Delta supports California's trillion dollar economy with \$27 billion annually for agriculture. Additionally, the Delta has 12 million user-days for recreation each year.

Refer to section III.C.1 above for a complete description of the receiving water and beneficial uses.

- b. **Effluent and Ambient Background Data.** The reasonable potential analysis (RPA), as described in section IV.C.3 of this Fact Sheet, was based on data from November 2013 through October 2016, which includes effluent and ambient background data submitted in SMR's and the ROWD. In addition, receiving water monitoring data for chlorodibromomethane and dichlorobromomethane from July 2008 through October 2011 were used to determine the available assimilative capacity for the purposes of calculating WQBEL's, as discussed further in sections IV.C.3.b.iii and iv of this Fact Sheet.
- c. **Assimilative Capacity/Mixing Zone**
- i. **Regulatory Guidance for Dilution Credits and Mixing Zones.** In the ROWD, the Discharger requested a dilution credit of 20:1 for human health constituents based on the harmonic mean flow of 492 cubic feet per second (cfs) and a permitted discharge flow of up to 16 MGD. The constituents with effluent limitations in this Order that are based on human health criteria include chlorodibromomethane and dichlorobromomethane.
- The CWA directs the states to adopt water quality standards to protect the quality of its waters. U.S. EPA's current water quality standards regulation authorizes states to adopt general policies, such as mixing zones, to implement state water quality standards (40 C.F.R. sections 122.44 and 122.45). The U.S. EPA allows states to have broad flexibility in designing mixing zone policies. Primary policy and guidance on determining mixing zone and dilution credits is provided by the SIP and the Basin Plan. If no procedure applies in the SIP or the Basin Plan, then the Central Valley Water Board may use the U.S. EPA *Technical Support Document for Water Quality-Based Toxics Control* (EPA/505/2-90-001)(TSD).
- For non-priority pollutant constituents, the allowance of mixing zones by the Central Valley Water Board is discussed in the Basin Plan, *Policy for Application of Water Quality Objectives*, which states in part, "In conjunction with the issuance of NPDES and storm water permits, the Regional Board may designate mixing zones within which water quality objectives will not apply provided the discharger has demonstrated to the satisfaction of the Regional Board that the mixing zone will not adversely impact beneficial uses. If allowed, different mixing zones may be designated for different types of objectives, including, but not limited to, acute aquatic life objectives, chronic aquatic life objectives, human health objectives, and acute and chronic whole effluent toxicity objectives, depending in part on the averaging period over which the objectives apply. In determining the size of such mixing zones, the Regional Board will consider the applicable procedures and guidelines in the EPA's

Water Quality Standards Handbook and the [TSD]. Pursuant to EPA guidelines, mixing zones designated for acute aquatic life objectives will generally be limited to a small zone of initial dilution in the immediate vicinity of the discharge."

For priority pollutants, the SIP supersedes the Basin Plan mixing zone provisions. Section 1.4.2 of the SIP states, in part, "...with the exception of effluent limitations derived from TMDL's, in establishing and determining compliance with effluent limitations for applicable human health, acute aquatic life, or chronic aquatic life priority pollutant criteria/objectives or the toxicity objective for aquatic life protection in a basin plan, the Regional Board may grant mixing zones and dilution credits to dischargers...The applicable priority pollutant criteria and objectives are to be met through a water body except within any mixing zone granted by the Regional Board. **The allowance of mixing zones is discretionary and shall be determined on a discharge-by-discharge basis.** The Regional Board may consider allowing mixing zones and dilution credits only for discharges with a physically identifiable point of discharge that is regulated through an NPDES permit issued by the Regional Board." [emphasis added]

For incompletely-mixed discharges, the Discharger must complete an independent mixing zone study to demonstrate to the Central Valley Water Board that a dilution credit is appropriate. In granting a mixing zone, section 1.4.2.2 of the SIP requires the following to be met:

"A mixing zone shall be as small as practicable. The following conditions must be met in allowing a mixing zone: [emphasis added]

A: A mixing zone shall not:

1. *compromise the integrity of the entire water body;*
2. *cause acutely toxic conditions to aquatic life passing through the mixing zone;*
3. *restrict the passage of aquatic life;*
4. *adversely impact biologically sensitive or critical habitats, including, but not limited to, habitat of species listed under federal or State endangered species laws;*
5. *produce undesirable or nuisance aquatic life;*
6. *result in floating debris, oil, or scum;*
7. *produce objectionable color, odor, taste, or turbidity;*
8. *cause objectionable bottom deposits;*
9. *cause nuisance;*
10. *dominate the receiving water body or overlap a mixing zone from different outfalls; or*
11. *be allowed at or near any drinking water intake. A mixing zone is not a source of drinking water. To the extent of any conflict between this determination and the Sources of Drinking Water Policy (Resolution No. 88-63), this SIP supersedes the provisions of that policy."*

Section 1.4.2.1 of the SIP establishes the authority for the Central Valley Water Board to consider dilution credits based on the mixing zone conditions in a receiving water. Section 1.4.2.1 in part states:

“The dilution credit, D , is a numerical value associated with the mixing zone that accounts for the receiving water entrained into the discharge. The dilution credit is a value used in the calculation of effluent limitations (described in section 1.4). Dilution credits may be limited or denied on a pollutant-by-pollutant basis, which may result in a dilution credit for all, some, or no priority pollutants in the discharge.” [emphasis added]

The mixing zone is thus an administrative construct defined as an area around the outfall that may exceed water quality objectives, but is otherwise protective of the beneficial uses. Dilution is defined as the amount of mixing that has occurred at the edge of this mixing zone under critical conditions, thus protecting the beneficial uses at the concentration and for the duration and frequency required.

- ii. **South Delta/Old River Hydrodynamics.** The responsibility for meeting certain objectives in the South Delta is currently placed with the Department of Water Resources (DWR) and the United States Bureau of Reclamation (USBR) through D-1641. To meet these objectives, USBR controls the San Joaquin River flow at Vernalis and DWR utilizes temporary barriers in the South Delta through the South Delta Temporary Barriers Program, instituted in 1991. The South Delta Temporary Barriers Program provides temporary measures to mitigate flow, water quality, water availability, and the protection of migrating San Joaquin River salmon. This project is ongoing until permanent flow control structures are installed as part of the South Delta Improvements Project.

The South Delta Temporary Barriers Program is comprised of temporary barriers that are installed at the Head of Old River (HOR), Middle River, Grant Line Canal, and Old River near Tracy. The HOR barrier restricts flow from entering the Old River. The HOR barrier was historically a physical barrier installed in the spring and fall. In the spring, the HOR barrier is principally a fish barrier and helps to reduce fishery impacts caused by the Central Valley Project and the State Water Project. The spring installation of the HOR barrier reduces entrainment of emigrating juvenile San Joaquin fall-run Chinook salmon in the South Delta. The spring HOR barrier is no longer a physical barrier, as it has been converted to a Bio-Acoustic Fish Fence (BAFF). The BAFF uses a combination of fish-detering sound from underwater speakers, air bubbles, and light, to deter juvenile salmon and steelhead from entering the Old River, while allowing water to pass through the barrier. In the fall, the HOR barrier is still a physical barrier and is installed to maintain flow rates in the San Joaquin River, thereby improving dissolved oxygen conditions in the Stockton Deep Water Ship Channel.

The Grant Line Canal, Middle River, and Old River barriers are agricultural barriers intended to primarily benefit agricultural water users in the South Delta. The agricultural barriers allow incoming tides to flow upstream while restricting downstream flow. These barriers reduce tidally caused flow reversals in the South Delta. The agricultural barriers are installed to reduce salinity in the South Delta in an effort to meet the D-1641 salinity objectives. The barriers also increase water levels and circulation patterns for local agricultural diversions. Flow conditions in the Old River in the vicinity of the discharge are

affected by San Joaquin River flows, barrier operations, and state and federal pumping operations from the State Water Project and Central Valley Project. Additionally, the discharge is located in a tidal zone. River flow moves upstream during the incoming or flood tide, while downstream flows occur during the outgoing or ebb tide. Multiple dosing of the receiving water with effluent occurs as the tide moves the water column upstream and downstream past the point of the discharge. The complex dynamics of the stream flow, the tidal flows, the barrier operations, and the state and federal pumping operations must be considered in an evaluation of the available dilution for the discharge.

The flow of diluting water at the point of the discharge varies with the tidal cycle. Typically, as net river flow drops, at some point in the tidal cycle the incoming tide balances against the downstream river flow, resulting in river flow stagnation and very little dilution of effluent. Below this net river flow, the direction of the river flow reverses with incoming tides, resulting in short periods of time with zero net river flows. Additionally, with flow reversals, some volume of river water can be multiple dosed with the effluent as the river flows downstream past the discharge, reverses, moves upstream past the discharge a second time, then again reverses direction and passes the discharge point a third time as it moves down the river. A particular volume of river water may move back and forth, past the discharge point many times due to tidal action, each time receiving an additional load of wastewater. This is exacerbated with the barriers installed in the South Delta. The barriers minimize inflow from the San Joaquin River and restrict downstream flows. Therefore, flows while the barriers are in place are primarily tidal, since the HOR barrier directs the majority of San Joaquin River flows north towards Stockton. In addition, the agricultural barriers allow flood tides through, but the ebb tides are restricted. This maintains water levels for irrigation, but reduces downstream flow in the Old River.

- iii. **Historical Receiving Water Flow Data.** Real-time flow monitoring data for the Old River in the vicinity of the discharge is not available. However, flow data in the area is available from the United States Geological Survey (USGS) San Joaquin River flow monitoring station at Vernalis, upstream of HOR. The flow data is not directly representative of that in the Old River, due to variations that can occur with barrier operations and Delta withdrawals, however, the data is useful for determining critical low flow periods in the region of the discharge.

The Discharger has not installed a real-time monitoring station in the vicinity of the outfall to provide continuous monitoring of flow direction and velocity. Real-time monitoring would provide a more accurate assessment of dilution. However, real-time monitoring has not been feasible due to access restriction by land owners and remote location of the discharge point.

- iv. **Dilution/Mixing Zone Study Results.** Water quality dilution studies have been provided by the Discharger to support permit and CEQA requirements. Carollo Engineers prepared a dilution study for the Discharger titled *Dilution Study and Water Quality Attainability Assessment*, April 1999 (1999 Carollo Study). The 1999 Carollo Study includes dilution modeling by Flow Science Incorporated. Larry Walker Associates (LWA) prepared a dilution study for the Discharger titled *Water Quality Analysis of Surface Water Discharge*, 2001 (2001 LWA Study). The 2001 LWA Study includes dilution modeling by Resource Management Associates (RMA).

The 1999 Carollo Study includes a dilution analysis and river flow analysis utilizing the Fischer-Delta Model (FDM) to generate average seasonal dilution values. The FDM is a proprietary computer model used to simulate the hydrodynamics of the entire Delta. The 1999 Carollo Study utilized 5.9 MGD for the effluent discharge rate and 20-year historical Delta inflow and outflow data were utilized to generate monthly average daily flows at the point of discharge. The model was calibrated with a rubidium tracer study conducted in September and November 1996. Several deficiencies are found in the model that cause uncertainty in the accuracy of the results:

- (a) The FDM model was calibrated during a wet water year hydrological classification with temporary barriers only partially installed. The extrapolation of the calibrated model from a wet water year with partial barrier installation to a critically dry water year with all barriers installed creates uncertainty that was not addressed in the 1999 Carollo Study. Furthermore, calibration alone is not adequate to determine the predictive capability of a model for a particular receiving water. Validation and sensitivity analyses are necessary to determine if the model is predictively valid. Without validation testing, the calibrated model remains a description of the conditions defined by the calibrated data set.
- (b) The model stated that average conditions were utilized, and failed to present additional information as to the error, uncertainty, sensitivity, or limitations of the site-specific model over the range of conditions considered in the 1999 Carollo Study.
- (c) Modeling was carried out with the condition that the downstream agricultural barriers were in place during the summer and the HOR fish barrier was in place in the spring and fall. The model did not anticipate the scenario where all barriers were installed, which greatly restricts river flow and tidal influence. This scenario has occurred several times since the 1999 Carollo Study was conducted.
- (d) The model only used 5.9 MGD for the effluent discharge, but the ROWD requested an eventual permitted flow of up to 16 MGD.
- (e) The 1999 Carollo Study did not consider the Mountain House Wastewater Treatment Facility (WWTF) located approximately 8 miles downstream of the outfall. The Mountain House WWTF is projected to discharge 5.4 MGD of tertiary treated wastewater to the Old River at buildout.
- (f) The calculated dilution was based on the results of nested models. The calculated net Delta outflow was input into the FDM to calculate the flow, which was used to estimate the dilution. The study failed to discuss the confidence level in the model outputs or how the variable inputs affected the estimated final dilution (e.g., error, sensitivity, uncertainty, etc.).

The 2001 LWA Study was performed as part of the CEQA process for the expansion of the Facility to evaluate the impacts of the increased discharge to the Old River. The 2001 LWA Study used modeling performed by RMA (*Analysis of the Fate and Water Quality Impacts of the City of Tracy Discharge*, May 15, 2001). The water quality analysis and modeling report are included in the *Tracy Wastewater Treatment Plant Expansion Draft Environmental Impact Report*, October 2001.

The U.S. EPA-approved CORMIX model was used to evaluate initial dilution in the vicinity of the diffuser and define the mixing zones. Computed tidally-averaged minimum monthly average velocities, flows, and depths were used in the near-field analysis for temperature, ammonia, and other sensitive parameters. The model sensitivity analysis indicated that the initial dilution is dominated by the high exit velocity of the diffusers relative to the low current velocities and the temperature differences in the receiving stream.

The far-field analysis utilized the Link Node hydrodynamic model to simulate the long-term transport and fate of the discharge. The model uses monthly average hydrologic data from the DWR-SIM model covering the 1922 to 1995 hydrologic year period. The model was utilized to calculate the effluent fraction and the change in dissolved oxygen concentrations at various locations in the South Delta. The simulation was run with four different Delta configurations; (1) no barriers, (2) HOR barrier only, (3) agricultural barriers only, and (4) permanent barriers. The model was calibrated using stage and flow data from April 1997, a wet hydrologic water year, with the assumption that the Grant Line Canal barrier was not installed.

Several deficiencies have been identified in the 2001 LWA Study that cause uncertainty in the accuracy of the results:

- (a) CORMIX is not designed for discharges to tidally-influenced receiving waters, whereas the tidal environment in the Old River is significant. The 2001 LWA Study recognizes that *“tidal action causes reverse flows and prolonged periods of slake water (several hours) at low river flows.”* This results in the receiving water being dosed multiple times with effluent. The 2001 LWA Study did not discuss the uncertainty in the near-field model results due to the multiple-dosing.
 - (b) The 2001 LWA Study did not consider the Mountain House WWTF located approximately 8 miles downstream of the outfall. The Mountain House WWTF is projected to discharge 5.4 MGD of tertiary treated wastewater to the Old River at buildout.
 - (c) The far-field water quality analysis did not evaluate the Delta configuration of all temporary barriers installed (HOR and agricultural barriers). It assumed the agricultural barriers are installed through September. However, recent configurations have the agricultural barriers installed until the middle of November, which coincides with installation of the HOR fish barrier from October through November. This configuration results in the lowest likely flows in the Old River at the point of discharge.
- v. **Evaluation of Available Dilution for Human Health Criteria.** In determining the available receiving water dilution for compliance with human health criteria, the SIP, section 1.4.2.1 requires that the harmonic mean of the receiving water flow be compared against the arithmetic mean of the effluent flow of the observed discharge period. However, direct Old River flow measurements do not exist over the required period.

The Final EIR for the Facility expansion includes a short discussion of the harmonic mean flows. Table 2-9 of the Final EIR includes modeled harmonic mean flows based on the DWR-SIM model. However, insufficient information is provided to determine how the modeled flows were calculated. No information

regarding the model inputs has been provided in the Final EIR, and the accuracy of the modeled flows cannot be verified.

The Discharger subsequently re-evaluated the harmonic mean flows and available dilution using DWR's Delta Simulation Model 2 (DSM2), which was used in the development of the draft Environmental Impact Statement/Environmental Impact Report (EIS/R) for the South Delta Improvements Program (SDIP). Reasonable worst-case assumptions were used for the model inputs, which are outlined in a technical memorandum prepared by CH2M Hill for the Discharger, dated 3 April 2006, and in more detail in Appendix D of the draft EIS/R.

Modeling was performed for a 16-year period, from 1975-1991, with reasonable worst-case assumptions for the operation of SDIP's operable gates. The estimated daily harmonic mean flow was 549 cfs in the Old River, near the Facility's discharge point. When excluding the wet years of 1982 and 1985, the estimated daily harmonic mean flow was 492 cfs. The Discharger has requested an increase in design flow to 16 MGD. Therefore, using the estimated harmonic mean flow, considering the future design flow, and excluding the wet years, the maximum allowable harmonic dilution is 20:1.

DSM2, which has been used extensively for the SDIP, was also used to model the Facility's discharge to evaluate salinity impacts. Several factors influence the flow and dilution in the South Delta, including barrier operations, San Joaquin River flow, Central Valley Project and State Water Project export pumping, delta tides, etc. Prior to the adoption of Order R5-2012-0115-02, a stakeholder group was formed that included the Discharger and representatives from the Mountain House Community Services District, South Delta Water Agency, California Sportfishing Protection Alliance, DWR, and the Central Valley Water Board to develop appropriate scenarios for running the DSM2 model. The model was run under reasonable worst-case conditions and was used to predict the effluent volume fraction or effluent "finger printing" in the receiving water at given locations. The daily average wastewater volume fractions and the 15 minute flow and stage within the river channels were estimated at several locations. The DWR modelers recommended evaluating the model output data on a minimum monthly average basis. This was recommended because several inputs to the model were set constant, such as the San Joaquin River flow, agricultural inflow/outflow, and wastewater discharge rates. Therefore, the monthly average outputs are likely to be more accurate than shorter averaging periods (e.g., daily or weekly).

Although the intended use of the model was to evaluate the salinity impacts, the model output is also appropriate for determining the amount of human health dilution and the size of the human health mixing zone. Adverse human health effects for carcinogens are based on long-term exposure (e.g., drinking 2 liters per day for 70 years), and the CTR criteria are based on a 30-day averaging period. Therefore, the monthly average output model outputs are appropriate. Using the reasonable worst-case modeling scenarios, DSM2 estimated the flow in the Old River upstream of the discharge to be 505 cfs with high exports and 491 cfs with low exports, which is in the same range as the harmonic mean flow used to calculate the 20:1 human health dilution credit allowed by this Order.

With a dilution credit of 20:1, the effluent volume fraction would be approximately 5 percent. As shown in Table F-6 below, an effluent fraction of 5 percent occurs 1 mile downstream of the Facility's discharge. The Old River in the vicinity of the discharge is tidal and experiences reverse flows. Based on the model output, the human health mixing zone extends less than 0.5 miles upstream of the Facility's discharge. Modeling nodes closer to the discharge were not modeled, so it is not possible to determine the exact location of the upstream edge of the mixing zone. However, even if it were the full 0.5 miles upstream, the impacts would be insignificant, because there are no drinking water or agricultural intakes within the mixing zone. The nearest drinking water intakes are the Central Valley Project and the State Water Project, which are approximately 10 miles downstream of the discharge. Thus, a dilution credit of 20:1 for human health carcinogens is appropriate and reasonable. Human health carcinogen criteria dilution credits have been used in the calculation of WQBEL's for chlorodibromomethane and dichlorobromomethane.

Table F-6. Maximum Rolling 30-Day Average Effluent Volume Fractions (% Effluent)

16 MGD Discharge Permanent Barriers Installed	High Exports	Low Exports	Approximate Distance from Outfall
Old River 0.5 mi. Upstream of Outfall	0.50	0.40	0.5 mi. Upstream
Old River 1 mi. Downstream of Outfall	5.0	4.5	1 mi. Downstream
Old River at Tracy Road	0.10	2.9	4 mi. Downstream
Grant Line Canal at Tracy Road	4.3	4.6	2 mi. Downstream
Grant Line Canal at Barrier	3.5	3.8	8 mi. Downstream
Channel Near Central Valley Project Pumps	0.50	2.0	10 mi. Downstream
Clifton Court Forebay (State Water Project Pumps)	0	0.20	10 mi. Downstream

The human health criteria mixing zone meets the requirements of the SIP as follows:

- (a) *Shall not compromise the integrity of the entire waterbody* – The TSD states that, "If the total area affected by elevated concentrations within all mixing zones combined is small compared to the total area of a waterbody (such as a river segment), then mixing zones are likely to have little effect on the integrity of the waterbody as a whole, provided that the mixing zone does not impinge on unique or critical habitats."² The mixing zone is small relative to the large size of the receiving water. Therefore, the human health mixing zone does not compromise the integrity of the entire waterbody.
- (b) *Shall not cause acutely toxic conditions to aquatic life passing through the mixing zone* – The human health mixing zone is not applicable to aquatic life criteria. Therefore, acutely toxic conditions will not occur in the mixing zone.
- (c) *Shall not restrict the passage of aquatic life* – The human health mixing zone is not applicable to aquatic life criteria. Therefore, the mixing zone will not restrict the passage of aquatic life.

² TSD, pg. 33

- (d) *Shall not adversely impact biologically sensitive or critical habitats, including, but not limited to, habitat of species listed under federal or State endangered species laws* – The human health mixing zone is not applicable to aquatic life criteria. The mixing zone will not impact biologically sensitive or critical habitats.
- (e) *Shall not produce undesirable or nuisance aquatic life; result in floating debris, oil, or scum; produce objectionable color, odor, taste, or turbidity, cause objectionable bottom deposits; cause nuisance* – The current discharge has not been shown to result in floating debris, oil, or scum; product objectionable bottom deposits, or cause nuisance. This Order requires the discharge to meet Title 22 (or equivalent) tertiary filtration, which will ensure continued compliance with these mixing zone requirements. Therefore, the allowance of a human health mixing zone will not produce undesirable or nuisance aquatic life, result in floating debris, oil, or scum; produce objectionable color, odor, taste, or turbidity; cause objectionable bottom deposits, or cause nuisance.
- (f) *Shall not dominate the receiving water body or overlap a mixing zone from different outfalls* – The human health mixing zone is small relative to the water body, so it will not dominate the water body. Furthermore, the mixing zone does not overlap mixing zones from other outfalls.
- (g) *Shall not be allowed at or near any drinking water intake* – There are no drinking water intakes within the human health mixing zone.

The human health mixing zone, therefore, complies with the SIP. The mixing zone also complies with the Basin Plan, which requires that the mixing zone not adversely impact beneficial uses. Beneficial uses will not be adversely affected for the same reasons discussed above. In determining the size of the mixing zone, the Central Valley Water Board considered the procedures and guidelines in the EPA's Water Quality Standards Handbook, 2d Edition (updated July 2007), section 5.1, and section 2.2.2 of the TSD. The SIP incorporates the same guidelines.

- vi. **Evaluation of Available Dilution for Specific Constituents (Pollutant-by-Pollutant Evaluation).** When determining to allow dilution credits for a specific pollutant, several factors must be considered, such as, available assimilative capacity, facility performance and best practicable treatment or control (BPTC). In this subsection, a pollutant-by-pollutant evaluation of dilution is discussed. The Discharger requested human health dilution credits for chlorodibromomethane and dichlorobromomethane. A pollutant-by-pollutant evaluation is discussed below.

The receiving water contains assimilative capacity for chlorodibromomethane and dichlorobromomethane and human health mixing zones for chlorodibromomethane and dichlorobromomethane meet the mixing zone requirements of the SIP. A 20:1 dilution credit was used in the calculation of WQBEL's for chlorodibromomethane and dichlorobromomethane in this Order. The Central Valley Water Board finds these WQBEL's require the Facility to implement BPTC and the human health carcinogen criteria mixing zone is as small as practicable.

- vii. **Regulatory Compliance for Dilution Credits and Mixing Zones.** To fully comply with all applicable laws, regulations and policies of the State, the Central Valley Water Board approved mixing zones and the associated dilution credits are based on the following:
- (a) Mixing zones are allowed under the SIP provided all elements contained in section 1.4.2.2 are met. Based on the mixing zone studies conducted by the Discharger, the Central Valley Water Board has determined that these factors are met.
 - (b) Section 1.4.2.2 of the SIP requires mixing zones to be as small as practicable. Based on the mixing zone studies conducted by the Discharger, the Central Valley Water Board has determined the mixing zones are as small as practicable.
 - (c) In accordance with section 1.4.2.2 of the SIP, the Central Valley Water Board has determined the mixing zone is as small as practicable, will not compromise the integrity of the entire water body, restrict the passage of aquatic life, dominate the water body, or overlap existing mixing zones from different outfalls. The mixing zone is small relative to the large size of the receiving water, is not at or near a drinking water intake, and does not overlap a mixing zone from a different outfall.
 - (d) The Central Valley Water Board is allowing a mixing zone for human health constituents and has determined allowing such a mixing zone will not cause acutely toxic conditions to aquatic life passing through the mixing zone.
 - (e) The Central Valley Water Board has determined the discharge will not adversely impact biologically sensitive or critical habitats, including, but not limited to, habitat of species listed under the federal or State endangered species laws, because the mixing zone is relatively small and acutely toxic conditions will not occur in the mixing zone. The discharge will not produce undesirable or nuisance aquatic life, result in floating debris, oil, or scum, produce objectionable odor, taste, or turbidity, cause objectionable bottom deposits, or cause nuisance, because the Order establishes end-of-pipe effluent limitations (e.g., for BOD₅ and TSS) and discharge prohibitions to prevent these conditions from occurring.
 - (f) As required by the SIP, in determining the extent of or whether to allow mixing zones and dilution credits, the Central Valley Water Board has considered the presence of pollutants in the discharge that are carcinogenic, mutagenic, teratogenic, persistent, bioaccumulative, or attractive to aquatic organisms, and concluded that the allowance of the mixing zone and dilution credits are adequately protective of the beneficial uses of the receiving water.
 - (g) The Central Valley Water Board has determined the mixing zone complies with the SIP for priority pollutants.
 - (h) Section 1.4.2.2.B of the SIP, in part states, *“The RWQCB shall deny or significantly limit a mixing zone and dilution credits as necessary to protect beneficial uses, meet the conditions of this Policy, or comply with other regulatory requirements.”* The Central Valley Water Board has determined full allowance of dilution is for the Discharger to achieve

compliance with effluent limitations for chlorodibromomethane and dichlorobromomethane.

- (i) The Central Valley Water Board has determined the mixing zones comply with the Basin Plan for non-priority pollutants. The Basin Plan requires a mixing zone not adversely impact beneficial uses. Beneficial uses will not be adversely affected for the same reasons discussed above. In determining the size of the mixing zone, the Central Valley Water Board has considered the procedures and guidelines in section 5.1 of U.S. EPA's *Water Quality Standards Handbook*, 2nd Edition (updated July 2007) and section 2.2.2 of the TSD. The SIP incorporates the same guidelines.
- (j) The Central Valley Water Board has determined that allowing dilution factors that exceed those proposed by this Order would not comply with the State Antidegradation Policy for receiving waters outside the allowable mixing zones for chlorodibromomethane and dichlorobromomethane. The State Antidegradation Policy incorporates the federal Antidegradation Policy and requires that existing quality of waters be maintained unless degradation is justified based on specific findings. Item 2 of the State Antidegradation Policy states:

"Any activity which produces or may produce a waste or increased volume or concentration of waste and which discharges or proposes to discharge to existing high quality waters will be required to meet waste discharge requirements which will result in the best practicable treatment or control of the discharge necessary to assure that (a) a pollution or nuisance will not occur and (b) the highest water quality consistent with maximum benefit to the people of the State will be maintained."

The effluent limitations established in the Order for chlorodibromomethane and dichlorobromomethane have been adjusted for dilution credits. The Central Valley Water Board determined the effluent limitations required by this Order will result in the Discharger implementing BPTC of the discharge necessary to assure that pollution or nuisance will not occur and the highest water quality consistent with maximum benefit to the people of the State will be maintained. The Central Valley Water Board also determined the Discharger will be in immediate compliance with the effluent limitations.

Therefore, the Central Valley Water Board has determined the effluent limitations established in the Order for chlorodibromomethane and dichlorobromomethane that have been adjusted for dilution credits are appropriate and necessary to comply with the Basin Plan, SIP, federal antidegradation regulations and the State Antidegradation Policy.

- d. **Conversion Factors.** The CTR contains aquatic life criteria for arsenic, cadmium, chromium III, chromium VI, copper, lead, nickel, silver, and zinc which are presented in dissolved concentrations. U.S. EPA recommends conversion factors to translate dissolved concentrations to total concentrations. The default U.S. EPA conversion factors contained in Appendix 3 of the SIP were used to convert the applicable dissolved criteria to total recoverable criteria.

- e. **Hardness-Dependent CTR Metals Criteria.** The CTR and the NTR contain water quality criteria for seven metals that vary as a function of hardness. The lower the hardness the lower the water quality criteria. The metals with hardness-dependent criteria include cadmium, copper, chromium III, lead, nickel, silver, and zinc.

This Order has established the criteria for hardness-dependent metals based on the hardness of the receiving water (actual ambient hardness) as required by the SIP³ and the CTR⁴. The SIP and the CTR require the use of “receiving water” or “actual ambient” hardness, respectively, to determine effluent limitations for these metals. The CTR requires that the hardness values used shall be consistent with the design discharge conditions for design flows and mixing zones⁵. Where design flows for aquatic life criteria include the lowest one-day flow with an average reoccurrence frequency of once in 10 years (1Q10) and the lowest average 7 consecutive day flow with an average reoccurrence frequency of once in 10 years (7Q10)⁶. This section of the CTR also indicates that the design conditions should be established such that the appropriate criteria are not exceeded more than once in a 3 year period on average⁷. The CTR requires that when mixing zones are allowed the CTR criteria apply at the edge of the mixing zone, otherwise the criteria apply throughout the water body including at the point of discharge⁸. The CTR does not define the term “ambient,” as applied in the regulations. Therefore, the Central Valley Water Board has considerable discretion to consider upstream and downstream ambient conditions when establishing the appropriate water quality criteria that fully comply with the CTR and SIP.

i. **Summary Findings**

The ambient hardness for the Old River is represented by the data in Figure F-1, below, which shows ambient hardness ranging from 53 mg/L to 237 mg/L based on both upstream and downstream receiving water data from November 2013 through October 2016. Given the high variability in ambient hardness values, there is no single hardness value that describes the ambient receiving water for all possible scenarios (e.g., minimum, maximum). Because of this variability, staff has determined that based on the ambient hardness concentrations measured in the receiving water, the Central Valley Water Board has discretion to select ambient hardness values within the range of 53 mg/L (minimum) up to 237 mg/L (maximum). Staff recommends that the Board use the ambient hardness values shown in Table F-7 for the following reasons.

- (a) Using the ambient receiving water hardness values shown in Table F-7 will result in criteria and effluent limitations that ensure protection of beneficial uses under all ambient receiving water conditions.
- (b) The Water Code mandates that the Central Valley Water Board establish permit terms that will ensure the reasonable protection of beneficial uses.

³ The SIP does not address how to determine the hardness for application to the equations for the protection of aquatic life when using hardness-dependent metals criteria. It simply states, in Section 1.2, that the criteria shall be properly adjusted for hardness using the hardness of the receiving water.

⁴ The CTR requires that, for waters with a hardness of 400 mg/L (as CaCO₃), or less, the actual ambient hardness of the surface water must be used (40 C.F.R. § 131.38(c)(4)).

⁵ 40 C.F.R. §131.3(c)(4)(ii)

⁶ 40 C.F.R. §131.38(c)(2)(iii) Table 4

⁷ 40 C.F.R. §131.38(c)(2)(iii) Table 4, notes 1 and 2

⁸ 40 C.F.R. §131.38(c)(2)(i)

In this case, using the lowest measured ambient hardness to calculate effluent limitations is not required to protect beneficial uses. Calculating effluent limitations based on the lowest measured ambient hardness is not required by the CTR or SIP, and is not reasonable as it would result in overly conservative limits that will impart substantial costs to the Discharger and ratepayers without providing any additional protection of beneficial uses. In compliance with applicable state and federal regulatory requirements, after considering the entire range of ambient hardness values, Board staff has used the ambient hardness values shown in Table F-7 to calculate the proposed effluent limitations for hardness-dependent metals. The proposed effluent limitations are protective of beneficial uses under all flow conditions.

- (c) Using an ambient hardness that is higher than the minimum of 53 mg/L will result in limits that may allow increased metals to be discharged to the Old River, but such discharge is allowed under the State Antidegradation Policy (State Water Board Resolution 68-16). The Central Valley Water Board finds that this degradation is consistent with the Antidegradation Policy (see antidegradation findings in section IV.D.4 of the Fact Sheet). The Antidegradation Policy requires the Discharger to meet waste discharge requirements, which will result in the BPTC of the discharge necessary to assure that: a) a pollution or nuisance will not occur, and b) the highest water quality consistent with maximum benefit to the people of the State will be maintained.
- (d) Using the ambient hardness values shown in Table F-7 is consistent with the CTR and SIP's requirements for developing metals criteria.

Table F-7. Summary of CTR Criteria for Hardness-dependent Metals

CTR Metals	Ambient Hardness (mg/L) ²	CTR Criteria (µg/L, total recoverable) ¹	
		acute	chronic
Copper	150	21	13
Chromium III	150	2,400	290
Cadmium	150 (acute) 150 (chronic)	7.1	3.4
Lead	140	130	4.9
Nickel	150	660	74
Silver	125	6.0	--
Zinc	150	170	170

¹ Metal criteria rounded to two significant figures in accordance with the CTR (40 C.F.R. section 131.38(b)(2)).

² The ambient hardness values in this table represent actual observed receiving water hardness measurements from the dataset shown in Figure F-1.

ii. Background

The State Water Board provided direction regarding the selection of hardness in two precedential water quality orders; WQO 2008-0008 for the City of Davis Wastewater Treatment Plant (Davis Order) and WQO 2004-0013 for the Yuba City Wastewater Treatment Plant (Yuba City Order). The State Water Board recognized that the SIP and the CTR do not discuss the manner in which

hardness is to be ascertained, thus regional water boards have considerable discretion in determining ambient hardness so long as the selected value is protective of water quality criteria under the given flow conditions. (Davis Order, p.10). The State Water Board explained that it is necessary that, “*The [hardness] value selected should provide protection for all times of discharge under varying hardness conditions.*” (Yuba City Order, p. 8). The Davis Order also provides that, “Regardless of the hardness used, the resulting limits must always be protective of water quality criteria under all flow conditions.” (Davis Order, p. 11)

The equation describing the total recoverable regulatory criterion, as established in the CTR, is as follows:

$$\text{CTR Criterion} = \text{WER} \times (e^{m[\ln(H)]+b}) \text{ (Equation 1)}$$

Where:

H = ambient hardness (as CaCO_3)⁹

WER = water-effect ratio

m, b = metal- and criterion-specific constants

The direction in the CTR regarding hardness selection is that it must be based on ambient hardness and consistent with design discharge conditions for design flows and mixing zones. Consistent with design discharge conditions and design flows means that the selected “design” hardness must result in effluent limitations under design discharge conditions that do not result in more than one exceedance of the applicable criteria in a three year period.¹⁰ Where design flows for aquatic life criteria include the 1Q10 and the 7Q10. The critical design Old River low flow is estimated to be 130 cfs¹¹.

iii. **Ambient Conditions**

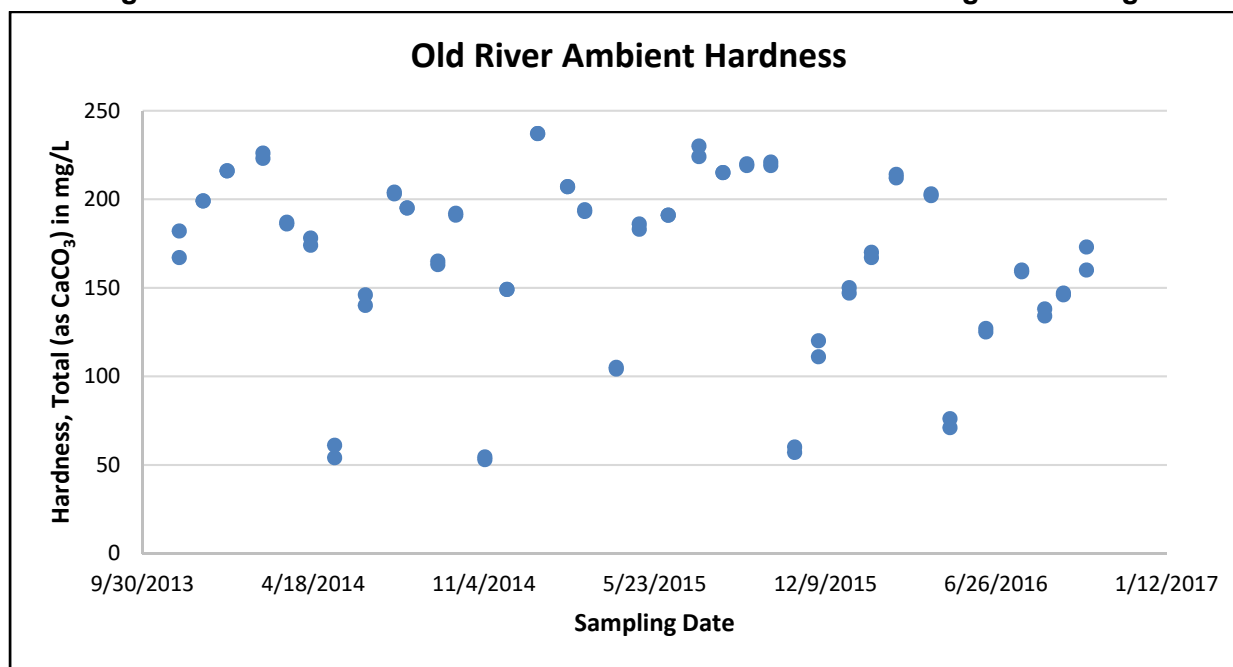
The ambient receiving water hardness varied from 53 mg/L to 237 mg/L, based on 72 samples collected from November 2013 through October 2016 (see Figure F-1).

⁹ For this discussion, all hardness values are expressed in mg/L as CaCO_3 .

¹⁰ 40 C.F.R. §131.38(c)(2)(iii) Table 4, notes 1 and 2

¹¹ City of Tracy Dilution Study and Water Quality Attainability Assessment, Carollo Engineers, 1999

Figure F-1. Observed Ambient Hardness Concentrations 53 mg/L – 237 mg/L



In this analysis, the entire range of ambient hardness concentrations shown in Figure F-1 were considered to determine the appropriate ambient hardness to calculate the CTR criteria and effluent limitations that are protective under all discharge conditions.

iv. **Approach to Derivation of Criteria**

As shown above, ambient hardness varies substantially. Because of the variation, there is no single hardness value that describes the ambient receiving water for all possible scenarios (e.g., minimum, maximum, mid-point). While the hardness selected must be hardness of the ambient receiving water, selection of an ambient receiving water hardness that is too high would result in effluent limitations that do not protect beneficial uses. Also, the use of minimum ambient hardness would result in criteria that are protective of beneficial uses, but such criteria may not be representative considering the wide range of ambient conditions.

Reasonable worst-case ambient conditions. To determine whether a selected ambient hardness value results in effluent limitations that are fully protective while complying with federal regulations and state policy, staff have conducted an analysis considering varying ambient hardness and flow conditions. To do this, the Central Valley Water Board has ensured that the receiving water hardness and criteria selected for effluent limitations are protective under “reasonable worst-case ambient conditions.” These conditions represent the receiving water conditions under which derived effluent limitations would ensure protection of beneficial uses under all ambient flow and hardness conditions.

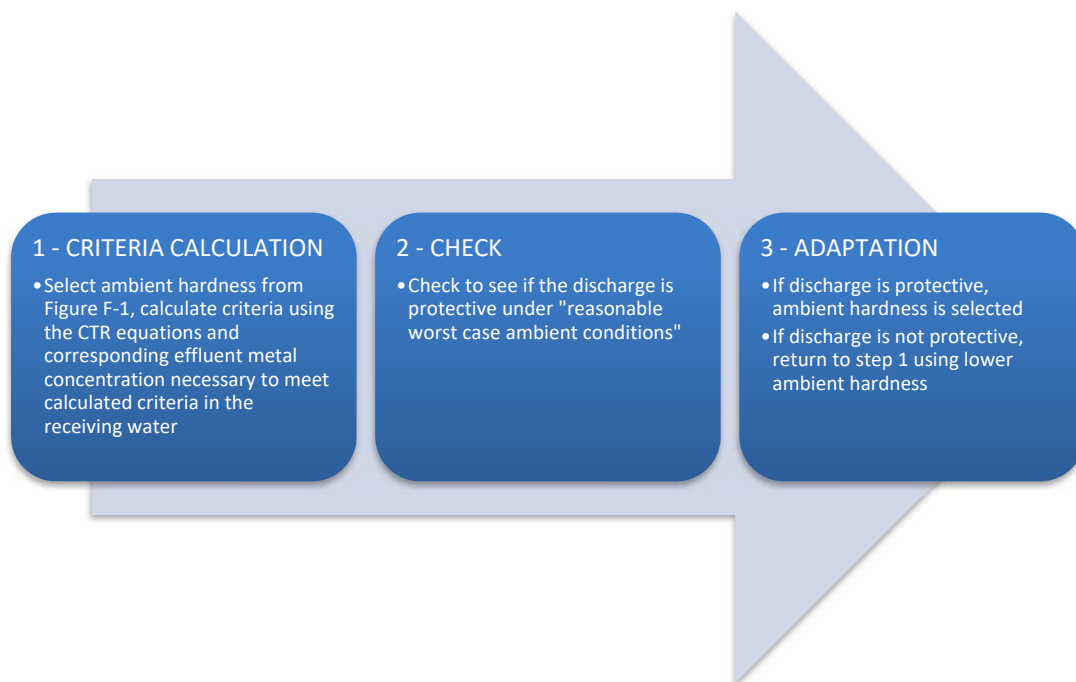
Reasonable worst-case ambient conditions:

- (a) “Low receiving water flow.” CTR design discharge conditions (1Q10 and 7Q10) have been selected to represent reasonable worst-case receiving water flow conditions.

- (b) "High receiving water flow (maximum receiving water flow)." This additional flow condition has been selected consistent with the Davis Order, which required that the hardness selected be protective of water quality criteria under all flow conditions.
- (c) "Low receiving water hardness." The minimum receiving water hardness condition of 53 mg/L was selected to represent the reasonable worst case receiving water hardness.
- (d) "Background ambient metal concentration at criteria." This condition assumes that the metal concentration in the background receiving water is equal to CTR criteria (upstream of the Facility's discharge). Based on data in the record, this is a design condition that does not regularly occur in the receiving water and is used in this analysis to ensure that limits are protective of beneficial uses even in the situation where there is no assimilative capacity.

Iterative approach. An iterative analysis has been used to select the ambient hardness to calculate the criteria that will result in effluent limitations that protect beneficial uses under all flow conditions.

The iterative approach is summarized in the following algorithm and described below in more detail.



- (a) **CRITERIA CALCULATION.** CTR criteria are calculated using the CTR equations based on actual measured ambient hardness sample results, starting with the maximum observed ambient hardness of 237 mg/L. Effluent metal concentrations necessary to meet the above calculated CTR criteria in the receiving water are calculated in accordance with the SIP.¹² This should not be confused with an effluent limit. Rather, it is the

¹² SIP Section 1.4.B, Step 2, provides direction for calculating the Effluent Concentration Allowance.

Effluent Concentration Allowance (ECA), which is synonymous with the waste load allocation defined by U.S. EPA as “a *definition of effluent water quality that is necessary to meet the water quality standards in the receiving water.*”¹³ If effluent limits are found to be needed, the limits are calculated to enforce the ECA considering effluent variability and the probability basis of the limit.

- (b) CHECK. U.S. EPA’s simple mass balance equation¹⁴ is used to evaluate if discharge at the computed ECA is protective. Resultant downstream metal concentrations are compared with downstream calculated CTR criteria under reasonable worst-case ambient conditions.
- (c) ADAPT. If step 2 results in:
 - (1) Receiving water metal concentration that complies with CTR criteria under reasonable worst-case ambient conditions, then the hardness value is selected.
 - (2) Receiving water metal concentration greater than CTR criteria, then return to bullet 1, selecting a lower ambient hardness value.

The CTR’s hardness dependent metals criteria equations contain metal-specific constants, so the criteria vary depending on the metal. Therefore, steps a through c must be repeated separately for each metal until ambient hardness values are determined that will result in criteria and effluent limitations that comply with the CTR and protect beneficial uses for all metals.

v. **Results of Iterative Analysis**

The above iterative analysis for each CTR hardness-dependent metal results in the selected ambient hardness values shown in Table F-7, above. Using these hardness values to calculate criteria, which are actual sample results collected in the receiving water, will result in effluent limitations that are protective under all ambient flow conditions. Copper and silver are used as examples below to illustrate the results of the analysis. Tables F-8 and F-9, below, summarize the numeric results of the three step iterative approach for copper and silver. As shown in the example tables, ambient hardness values of 150 mg/L (copper) and 125 mg/L (silver) are used in the CTR equations to derive criteria and effluent limitations. Then, under the “check” step, worst-case ambient receiving water conditions are used to test whether discharge results in compliance with CTR criteria and protection of beneficial uses.

The results of the above analysis, summarized in the tables below, show that the ambient hardness values selected using the three-step iterative process results in protective effluent limitations that achieve CTR criteria under all flow conditions. Tables F-8 and F-9 below, summarize the critical flow conditions. However, the analysis evaluated all flow conditions to ensure compliance with the CTR criteria at all times.

¹³ U.S. EPA Technical Support Document for Water Quality-based Toxics Control (TSD), pg. 96.

¹⁴ U.S. EPA NPDES Permit Writers’ Handbook (EPA 833-K-10-001 September 2010, pg. 6-24)

Table F-8. Verification of CTR Compliance for Copper

Receiving water hardness used to compute effluent limitations				150 mg/L
Effluent Concentration Allowance (ECA) for Copper ¹				13 µg/L
	Downstream Ambient Concentrations Under Worst-Case Ambient Receiving Water Conditions			Complies with CTR Criteria?
	Hardness	CTR Criteria (µg/L)	Ambient Copper Concentration ² (µg/L)	
1Q10	65	6.4	6.3	Yes
7Q10	65	6.4	6.3	Yes
Max receiving water flow	54	5.5	5.5	Yes

¹ The ECA defines effluent quality necessary to meet the CTR criteria in the receiving water. There is no effluent limitation for copper as it demonstrates no reasonable potential.

² This concentration is derived using worst-case ambient conditions. These conservative assumptions will ensure that the receiving water always complies with CTR criteria.

Table F-9. Verification of CTR Compliance for Silver

Receiving water hardness used to compute effluent limitations				125 mg/L
Effluent Concentration Allowance (ECA) for Silver ¹				6.0 µg/L
	Downstream Ambient Concentrations Under Worst-Case Ambient Receiving Water Conditions			Complies with CTR Criteria?
	Hardness	CTR Criteria (µg/L)	Ambient Silver Concentration ² (µg/L)	
1Q10	65	1.9	1.9	Yes
7Q10	65	1.9	1.9	Yes
Max receiving water flow	54	1.4	1.4	Yes

¹ The ECA defines effluent quality necessary to meet the CTR criteria in the receiving water. There is no effluent limitation for silver as it demonstrates no reasonable potential.

² This concentration is derived using worst-case ambient conditions. These conservative assumptions will ensure that the receiving water always complies with CTR criteria.

3. Determining the Need for WQBEL's

Clean Water Act section 301(b)(1)(C) requires effluent limitations necessary to meet water quality standards, and 40 C.F.R. § 122.44(d) requires NPDES permits to include conditions that are necessary to achieve water quality standards established under section 303 of the CWA, including State narrative criteria for water quality. Federal regulations at 40 C.F.R. 122.44(d)(1)(i) state, "Limitations must control all pollutants or pollutant parameters (either conventional, nonconventional, or toxic pollutants) which the Director determines are or may be discharged at a level that will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality." Additionally, 40 C.F.R. section 122(d)(1)(vii) requires effluent limits to be developed consistent with any available wasteload allocations developed and approved for the discharge.

The process to determine whether a WQBEL is required as described in 40 C.F.R. § 122.44(d)(1)(i) is referred to as a *reasonable potential analysis or RPA*. Central Valley

Water Board staff conducted RPA's for nearly 200 constituents, including the 126 USEPA priority toxic pollutants. This section includes details of the RPA's for constituents of concern for the Facility. The entire RPA is included in the administrative record and a summary of the constituents of concern is provided in Attachment G. For priority pollutants, the SIP dictates the procedures for conducting the RPA. For non-priority pollutants the Central Valley Water Board is not restricted to one particular RPA method, therefore, the RPA's have been conducted based on EPA guidance considering multiple lines of evidence and the site-specific conditions of the discharge.

a. **Constituents with Total Maximum Daily Load (TMDL).** 40 C.F.R.

§ 122.44(d)(1)(vii) provides: *"When developing water quality-based effluent limits under [§ 122.44(d)(1)], the permitting authority shall ensure that: (A) The level of water quality to be achieved by limits on point sources established under this paragraph is derived from, and complies with all applicable water quality standards; and (B) Effluent limits developed to protect a narrative water quality criterion, a numeric water quality criterion, or both, are consistent with the assumptions and requirements of any available wasteload allocation for the discharge prepared by the State and approved by EPA pursuant to [Total Maximum Daily Loads regulations]."* U.S. EPA construes 40 C.F.R. § 122.44(d)(1)(vii)(B) to mean that "when WLAs are available, they must be used to translate water quality standards into NPDES permit limits." 54 Fed. Reg. 23868, 23879 (2 June 1989).

Old River is subject to TMDLs for diazinon and chlorpyrifos, and methylmercury, and wasteload allocations under those TMDLs are available. The Central Valley Water Board developed WQBEL's for these pollutants pursuant to 40 C.F.R. section 122.44(d)(1)(vii), which does not require or contemplate a reasonable potential analysis.

i. **Diazinon and Chlorpyrifos**

- (a) **WQO.** The Central Valley Water Board completed a TMDL for diazinon and chlorpyrifos in the Sacramento-San Joaquin Delta and amended the Basin Plan to include diazinon and chlorpyrifos WLA's and water quality objectives. The Basin Plan Amendment for the Control of Diazinon and Chlorpyrifos Runoff into the Sacramento-San Joaquin Delta was adopted by the Central Valley Water Board on 23 June 2006 and became effective on 10 October 2007.

The amendment modified Basin Plan Chapter III (Water Quality Objectives) to establish site-specific numeric objectives for diazinon and chlorpyrifos in the Delta waterways and identified the requirements to meet the additive formula already in Basin Plan Chapter IV (Implementation) for the additive toxicity of diazinon and chlorpyrifos.

The amendment states that *"The WLA's for all NPDES-permitted dischargers...shall not exceed the sum (S) of one (1) as defined below.*

$$S = \frac{C_d}{WQO_d} + \frac{C_c}{WQO_c} \leq 1.0$$

Where:

C_D = diazinon concentration in µg/L of point source discharge for WLA...

C_C = chlorpyrifos concentration in µg/L of point source discharge for the WLA...

WQO_d = acute or chronic diazinon water quality objective in µg/L.

WQO_c = acute or chronic chlorpyrifos water quality objective in $\mu\text{g/L}$.

Available samples collected within the applicable averaging period for the water quality objective will be used to determine compliance with the allocations and loading capacity. For purposes of calculating the sum (S) above, analytical results that are reported as 'non-detectable' concentrations are considered to be zero."

Appendix A of the Diazinon and Chlorpyrifos TMDL lists waterways subject to the TMDL and includes the Old River.

- (b) **RPA Results.** Diazinon was not detected in the effluent based on six samples collected between November 2013 and October 2016. Diazinon was not detected in the upstream receiving water based on one sample collected between November 2013 and October 2016.

Chlorpyrifos was not detected in the effluent based on six samples collected between November 2013 and October 2016. Chlorpyrifos was not detected in the upstream receiving water based on one sample collected between November 2013 and October 2016.

Although diazinon and chlorpyrifos were not detected in the effluent or receiving water, due to the TMDL for diazinon and chlorpyrifos in the Sacramento-San Joaquin Delta, WQBEL's for these constituents are required. The TMDL WLA applies to all NPDES dischargers to Delta waterways and will serve as the basis for WQBEL's for this Facility.

- (c) **WQBEL's.** WQBEL's for diazinon and chlorpyrifos are required based on the TMDL for diazinon and chlorpyrifos for the Sacramento-San Joaquin Delta waterways. Therefore, this Order includes effluent limits calculated based on the WLA's contained in the TMDL, as follows:

- (1) Average Monthly Effluent Limitation (AMEL)

$$S_{AMEL} = \frac{C_{D\text{ AVG}}}{0.079} + \frac{C_{C\text{ AVG}}}{0.012} \leq 1.0$$

$C_{D\text{-avg}}$ = average monthly diazinon effluent concentration in $\mu\text{g/L}$

$C_{C\text{-avg}}$ = average monthly chlorpyrifos effluent concentration in $\mu\text{g/L}$

- (2) Average Weekly Effluent Limitation (AWEL)

$$S_{AWEL} = \frac{C_{D\text{ W-AVG}}}{0.14} + \frac{C_{C\text{ W-AVG}}}{0.021} \leq 1.0$$

$C_{D\text{ W-AVG}}$ = average weekly diazinon effluent concentration in $\mu\text{g/L}$.

$C_{C\text{ W-AVG}}$ = average weekly chlorpyrifos effluent concentration in $\mu\text{g/L}$.

- (d) **Plant Performance and Attainability.** Diazinon and chlorpyrifos were not detected in the effluent. The Central Valley Water Board concludes, therefore, that immediate compliance with these effluent limitations is feasible.

ii. **Mercury**

- (a) **WQO.** The Basin Plan contains fish tissue objectives for all Delta waterways listed in Appendix 43 of the Basin Plan, which states, "...the average methylmercury concentrations shall not exceed 0.08 and 0.24 mg methylmercury/kg, wet weight, in muscle tissue of trophic level 3 and 4 fish, respectively (150-500 mm total length). The average

methylmercury concentrations shall not exceed 0.03 mg methylmercury/kg, wet weight, in whole fish less than 50 mm in length.

The Delta Mercury Control Program contains aqueous methylmercury waste load allocations that are calculated to achieve these fish tissue objectives. Methylmercury reductions are assigned to dischargers with concentrations of methylmercury greater than 0.06 ng/L (the concentration of methylmercury in water to meet the fish tissue objective). The Facility is allocated 0.77 grams/year of methylmercury by 31 December 2030, as listed in Table IV-7B of the Basin Plan.

The CTR contains a human health criterion of 50 ng/L for total mercury for waters from which both water and aquatic organisms are consumed. However, in 40 C.F.R. part 131, U.S. EPA acknowledges that the human health criteria may not be protective of some aquatic or endangered species and that “...*more stringent mercury limits may be determined and implemented through the use of the State’s narrative criterion.*” In the CTR, U.S. EPA reserved the mercury criteria for freshwater and aquatic life and may adopt new criteria at a later date.

- (b) **RPA Results.** Section 1.3 of the SIP states, “*The RWQCB shall conduct the analysis in this section of each priority pollutant with an applicable criterion or objective, **excluding priority pollutants for which a TMDL has been developed**, to determine if a water quality-based effluent limitation is required in the Discharger’s permit.*” (emphasis added)

The MEC for mercury was 2.4 ng/L based on 45 samples collected between November 2013 and October 2016. Mercury was not detected in the receiving water based on two samples collected between November 2013 and October 2016.

The MEC for methylmercury was 0.13 ng/L based on 44 samples collected between November 2013 and October 2016. The maximum observed upstream receiving water methylmercury concentration was 0.06 ng/L based on one sample collected between November 2013 and October 2016.

- (c) **WQBEL’s.** The Basin Plan’s Delta Mercury Control Program includes waste load allocations for POTW’s in the Delta, including for the Discharger. This Order contains a final WQBEL for methylmercury based on the waste load allocation. Effective 31 December 2030, the total calendar annual methylmercury load shall not exceed 0.77 grams.
- (d) **Plant Performance and Attainability.** Based on available effluent methylmercury data, the Central Valley Water Board finds the Discharger is unable to immediately comply with the final WQBEL’s for methylmercury. Therefore, a compliance schedule in accordance with the State Water Board’s Compliance Schedule Policy and the Delta Mercury Control Program has been established in section VI.C.7.a of this Order. The final WQBEL’s for methylmercury will become effective 31 December 2030.

- b. **Constituents with No Reasonable Potential.** Central Valley Water Board staff conducted reasonable potential analyses for nearly 200 constituents, including the 126 U.S. EPA priority toxic pollutants. All reasonable potential analyses are included in the administrative record and a summary of the constituents of concern is provided in Attachment G. WQBEL's are not included in this Order for constituents that do not demonstrate reasonable potential to cause or contribute to an in-stream excursion of an applicable water quality objective; however, monitoring for those pollutants is established in this Order as required by the SIP. If the results of effluent monitoring demonstrate reasonable potential, this Order may be reopened and modified by adding an appropriate effluent limitation.

Most constituents with no reasonable potential are not discussed in this Order. This section only provides the rationale for the reasonable potential analyses for the following constituents of concern that were found to have no reasonable potential after assessment of the data:

i. **Copper**

- (a) **WQO.** The CTR includes hardness-dependent criteria for the protection of freshwater aquatic life for copper. These criteria for copper are presented in dissolved concentrations, as 1-hour acute criteria and 4-day chronic criteria. U.S. EPA recommends conversion factors to translate dissolved concentrations to total concentrations. Default U.S. EPA translators were used for the effluent and receiving water. As described in section IV.C.2.e of this Fact Sheet, the applicable acute and chronic criteria for copper are 21 µg/L and 13 µg/L, respectively, as total recoverable. Previous Order R5-2012-0115-02 included effluent limitations for copper based on the CTR criteria.

The Basin Plan includes a site-specific objective for the Sacramento-San Joaquin Delta of 10 µg/L (dissolved) as a maximum concentration. Using the default U.S. EPA translator, the Basin Plan objective for copper is 10.4 µg/L (total recoverable).

- (b) **RPA Results.** The MEC for copper was 7.2 µg/L (as total recoverable) based on 18 samples collected between November 2013 and October 2016. The maximum observed upstream receiving water concentration was 2.8 µg/L (as total recoverable) based on two samples collected between November 2013 and October 2016. Therefore, copper in the discharge does not exhibit reasonable potential to cause or contribute to an in-stream excursion above the CTR criteria for the protection of freshwater aquatic life or the Basin Plan objective, and the effluent limitations for copper have not been retained in this Order. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

ii. **Bis (2-Ethylhexyl) Phthalate**

- (a) **WQO.** The CTR includes a criterion of 1.8 µg/L for bis (2-ethylhexyl) phthalate for the protection of human health for waters from which both water and organisms are consumed. Previous Order R5-2012-0115-02 included effluent limitations for bis (2-ethylhexyl) phthalate based on the CTR criterion.

- (b) **RPA Results.** Bis (2-ethylhexyl) phthalate (bis-2) is a common contaminant of sample containers, sampling apparatus, and analytical equipment, and sources of detected bis-2 may be from plastics used for sampling or analytical equipment. “Clean techniques” are used to ensure that sample containers, sampling apparatus, and analytical equipment are not sources of the detections for monitoring bis-2.

Previous Order R5-2012-0115-02 required routine monthly monitoring for bis-2 using grab samples with clean sampling techniques. Out of 39 routine monthly monitoring grab samples for bis-2, 36 were non-detect and the MEC was 0.74 µg/L. The previous Order also required six effluent characterization samples collected during 2015 using 24-hour composite samples. Out of those 6 samples, 3 detected bis-2 and exceeded the CTR criterion. However, sample contamination is suspected because the bis-2 samples were non-detect until the sampler tubing was replaced and the 3 subsequent samples exceeded the criterion. Grab samples taken during the same period were non-detect.

SIP section 1.2 requires that the Regional Board use all available, valid, relevant, representative data and information, as determined by the Regional Board, to implement the SIP. SIP section 1.2 further states that the Regional Water Board has the discretion to consider if any data are inappropriate or insufficient for use in implementing the SIP. Therefore, in accordance with section 1.2 of the SIP, the Central Valley Water Board has determined that due to possibility of sample contamination, the bis-2 results from the 24-hour composite samples are not representative of the discharge and were not included in the RPA.

The MEC for bis-2 based on the 39 routine monthly monitoring grab samples collected between November 2013 and October 2016 was 0.74 µg/L. Bis-2 was not detected in the receiving water based on one sample collected between November 2013 and October 2016. Therefore, the discharge does not demonstrate reasonable potential to cause or contribute to an in-stream excursion above the CTR human health criterion for bis-2, and WQBEL's have not been retained in this Order. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

- c. **Constituents with No Data or Insufficient Data.** Reasonable potential cannot be determined for the following constituents because effluent data are limited or ambient background concentrations are not available. The Discharger is required to continue to monitor for these constituents in the effluent using analytical methods that provide the best feasible detection limits. When additional data become available, further analysis will be conducted to determine whether to add numeric effluent limitations or to continue monitoring.
- i. **Salinity**
- (a) **WQO.** The Basin Plan contains a chemical constituent objective that incorporates state MCL's, contains a narrative objective, and contains numeric water quality objectives for certain specified water bodies for electrical conductivity, total dissolved solids, sulfate, and chloride. The U.S. EPA Ambient Water Quality Criteria for Chloride recommends acute

and chronic criteria for the protection of aquatic life. There are no U.S. EPA water quality criteria for the protection of aquatic life for electrical conductivity, total dissolved solids, and sulfate. The Bay-Delta Plan includes numeric water quality criteria for the protection of agricultural and municipal and domestic water supply uses.

Table F-10. Salinity Water Quality Criteria/Objectives

Parameter	Bay-Delta Plan	Secondary MCL ¹	U.S. EPA NAWQC	Effluent	
				Average ²	Max
Chloride (mg/L)	Varies	250, 500, 600	860 1-hr 230 4-day	197	230
Electrical Conductivity (µmhos/cm) or Total Dissolved Solids (mg/L)	700 (Apr-Sep) 1,000 (Oct-Mar)	900, 1,600, 2,200 or 500, 1,000, 1,500	N/A	1,258 or 722	1,718 or 1,043
Sulfate (mg/L)	Varies	250, 500, 600	N/A	113	150

¹ The Secondary MCL's are for protection of public welfare and are stated as a recommended level, upper level, and a short-term maximum level.

² Maximum calendar annual average.

(1) **Chloride.** The Secondary MCL for chloride is 250 mg/L, as a recommended level, 500 mg/L as an upper level, and 600 mg/L as a short-term maximum. The NAWQC acute criterion for the protection of freshwater aquatic life for chloride is 860 mg/L and the chronic criterion is 230 mg/L

(2) **Electrical Conductivity or Total Dissolved Solids.** The Secondary MCL for electrical conductivity is 900 µmhos/cm as a recommended level, 1,600 µmhos/cm as an upper level, and 2,200 µmhos/cm as a short-term maximum, or when expressed as total dissolved solids is 500 mg/L as a recommended level, 1,000 mg/L as an upper level, and 1,500 mg/L as a short-term maximum.

The Bay-Delta Plan includes water quality objectives for electrical conductivity for the South Delta in the vicinity of the discharge.¹⁵ On 1 June 2011, the Superior Court for Sacramento County entered a judgment and peremptory writ of mandate in the matter of City of Tracy v. State Water Resources Control Board (Case No. 34-2009-8000-392-CU-WM-GDS), ruling that the South Delta salinity objectives shall not apply to the City of Tracy and other municipal dischargers pending reconsideration of the South Delta salinity objectives and adoption of a proper program of implementation that includes municipal dischargers. Therefore, at the time this Order was

¹⁵ The Bay-Delta Plan includes water quality objectives at three locations in the South Delta for electrical conductivity. The water quality objectives are a 14-day running average electrical conductivity of 700 µmhos/cm from 1 April through 31 August and a 14-day running average electrical conductivity of 1,000 µmhos/cm from 1 September through 31 March.

adopted, the South Delta salinity objectives were not applicable to the Discharger.

- (3) **Sulfate.** The Secondary MCL for sulfate is 250 mg/L as a recommended level, 500 mg/L as an upper level, and 600 mg/L as a short-term maximum.

(b) **RPA Results**

- (1) **Chloride.** Chloride concentrations in the effluent ranged from 160 mg/L to 230 mg/L, with a maximum annual average of 197 mg/L, based on seven samples collected between November 2013 and October 2016. The maximum annual average does not exceed the Secondary MCL recommended level and the maximum effluent chloride concentration of 230 mg/L does not exceed the NAWQC criteria for the protection of freshwater aquatic life. The maximum observed receiving water chloride concentration was 220 mg/L based on two samples collected between November 2013 and October 2016.

- (2) **Electrical Conductivity or Total Dissolved Solids.** A review of the Discharger's monitoring reports shows a maximum observed annual average electrical conductivity of 1,258 μ mhos/cm, with a range from 960 μ mhos/cm to 1,718 μ mhos/cm. The maximum observed receiving water electrical conductivity was 1,000 μ mhos/cm based on one sample collected between November 2013 and October 2016.

Total dissolved solids concentrations in the effluent ranged from 568 mg/L to 1,043 mg/L, with a maximum annual average of 722 mg/L based on 163 samples collected between November 2013 and October 2016. The maximum observed receiving water total dissolved solids concentration was 630 mg/L based on one sample collected between November 2013 and October 2016.

The applicable water quality objective for salinity is the Bay-Delta Plan South Delta salinity objectives, which are under development.

- (3) **Sulfate.** Sulfate concentrations in the effluent ranged from 94 mg/L to 150 mg/L, with a maximum annual average of 113 mg/L based on seven samples collected between November 2013 and October 2016. These levels do not exceed the Secondary MCL recommended level. The maximum observed receiving water sulfate concentration was 99 mg/L based on one sample collected between November 2013 and October 2016.

- (c) **WQBEL's.** The State Water Board is currently revising the Bay-Delta Plan to include salinity objectives that would be applicable to the discharge. Pending the Bay-Delta Plan amendment, this Order retains the total dissolved solids effluent limit and salinity controls from Order R5-2012-0115-02. This Order includes an annual mass loading effluent limitation for total dissolved solids and requires the Discharger to implement measures to reduce the salinity in its discharge to the Old River.

The total dissolved solids effluent limitation is retained from Order R5-2012-0115-02 and is based on treatment plant performance. The total

dissolved solids effluent limit will ensure that the mass loading of the salinity does not increase as the effluent flow rate increases. In previous Orders R5-2007-0036-01 and R5-2012-0115-02, the Discharger requested an increase in discharge flow from 9 MGD to 16 MGD. A condition of the increase was that the salt loading would remain the same, which satisfied the antidegradation requirements. The Discharger will be able to maintain its current salt loading as the discharge flows increase because it expanded the use of lower salinity water supplies to support the growth in the service area. Therefore, this Order retains the final total dissolved solids effluent limitation established in Order R5-2012-0115-02 in order to comply with antidegradation requirements.

This Order also requires the Discharger to implement a Salinity Reduction Plan that includes pollution prevention measures to reduce the salinity in its discharge to the Old River. The Salinity Reduction Plan must include a pollution prevention plan for salinity in accordance with Water Code section 13263.3(d)(3), and requires the Discharger to report on progress in reducing salinity discharges to the Old River in an effort to meet a salinity goal of a calendar annual average 500 μ mhos/cm electrical conductivity increase over the calendar annual weighted average electrical conductivity of the City of Tracy's water supply. The Salinity Reduction Plan must also include measures the Discharger is taking to implement BPTC of the discharge for salinity, describe the Discharger's participation in CV-SALTS, and describe the Discharger's efforts to obtain lower salinity water supplies.

(d) **Plant Performance and Attainability.** Based on existing Facility performance, it appears the Discharger can immediately comply with the total dissolved solids effluent limit.

- d. **Constituents with Reasonable Potential.** The Central Valley Water Board finds that the discharge has a reasonable potential to cause or contribute to an in-stream excursion above a water quality standard for ammonia, BOD₅, chlorine residual, chlorodibromomethane, dichlorobromomethane, mercury, nitrate plus nitrite, pH, temperature, total dissolved solids, and TSS. WQBEL's for these constituents are included in this Order. A summary of the RPA is provided in Attachment G, and a detailed discussion of the RPA for each constituent is provided below.

i. **Ammonia**

- (a) **WQO.** The 1999 U.S. EPA National Ambient Water Quality Criteria (NAWQC) for the protection of freshwater aquatic life for total ammonia (the "1999 Criteria"), recommends acute (1-hour average; criteria maximum concentration or CMC) standards based on pH and chronic (30-day average; criteria continuous concentration or CCC) standards based on pH and temperature. U.S. EPA also recommends that no 4-day average concentration should exceed 2.5 times the 30-day CCC.

The U.S. EPA recently published national recommended water quality criteria for the protection of aquatic life from the toxic effects of ammonia in freshwater (the "2013 Criteria")¹⁶. The 2013 Criteria is an update to U.S. EPA's 1999 Criteria, and varies based on pH and temperature.

¹⁶ *Aquatic Life Ambient Water Quality Criteria for Ammonia – Freshwater*, published August 2013 [EPA 822-R-13-001]

Although the 2013 Criteria reflects the latest scientific knowledge on the toxicity of ammonia to certain freshwater aquatic life, including new toxicity data on sensitive freshwater mussels in the Family Unionidae, the species tested for development of the 2013 Criteria may not be present in some Central Valley waterways. The 2013 Criteria document therefore states that, *“unionid mussel species are not prevalent in some waters, such as the arid west ...”* and provides that, *“In the case of ammonia, where a state demonstrates that mussels are not present on a site-specific basis, the recalculation procedure may be used to remove the mussel species from the national criteria dataset to better represent the species present at the site.”*

The Central Valley Water Board issued a 3 April 2014 California Water Code section 13267 Order for Information: 2013 Final Ammonia Criteria for Protection of Freshwater Aquatic Life (13267 Order) requiring the Discharger to either participate in an individual or group study to determine the presence of mussels or submit a method of compliance for complying with effluent limitations calculated assuming mussels present using the 2013 Criteria. The Discharger submitted a letter to the Central Valley Water Board indicating their participation in the Central Valley Clean Water Association Freshwater Collaborative Mussel Study. Studies are currently underway to determine how the latest scientific knowledge on the toxicity of ammonia reflected in the 2013 Criteria can be implemented in the Central Valley Region as part of a Basin Planning effort to adopt nutrient and ammonia objectives. Until the Basin Planning process is completed, the Central Valley Water Board will continue to implement the 1999 Criteria to interpret the Basin Plan's narrative toxicity objective. The 1999 NAWQC for the protection of freshwater aquatic life for total ammonia, recommends acute (1-hour average; criteria maximum concentration or CMC) standards based on pH and chronic (30-day average; criteria continuous concentration or CCC) standards based on pH and temperature. U.S. EPA also recommends that no 4-day average concentration should exceed 2.5 times the 30-day CCC. U.S. EPA found that as pH increased, both the acute and chronic toxicity of ammonia increased. Salmonids were more sensitive to acute toxicity effects than other species. However, while the acute toxicity of ammonia was not influenced by temperature, it was found that invertebrates and young fish experienced increasing chronic toxicity effects with increasing temperature. Because the Old River has a beneficial use of cold freshwater habitat and the presence of salmonids and early fish life stages in the Old River is well-documented, the recommended criteria for waters where salmonids and early life stages are present were used.

In order to protect against the worst-case short-term exposure of an organism, a pH value of 8.5 was used to derive the acute criterion, based on the maximum permitted effluent pH. The resulting acute criterion is 2.14 mg/L. The 30-day average CCC is 1.47 mg/L, which was based on the 30-day average paired pH and temperature of the receiving water that has been continued from Order R5-2012-0115-02.

- (b) **RPA Results.** The Facility is a POTW that treats domestic wastewater. Untreated domestic wastewater contains ammonia in concentrations that is harmful to aquatic life and exceed the Basin Plan narrative toxicity objective.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) require that, "*Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. Ammonia is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "*When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data.*" With regard to POTW's, U.S. EPA recommends that, "*POTW's should also be characterized for the possibility of chlorine and ammonia problems.*" (TSD, p. 50)

Nitrification is a biological process that converts ammonia to nitrite and nitrite to nitrate. Denitrification is a process that converts nitrate to nitrite or nitric oxide and then to nitrous oxide or nitrogen gas, which is then released to the atmosphere. The Discharger currently uses nitrification to remove ammonia from the waste stream. Inadequate or incomplete nitrification may result in the discharge of ammonia to the receiving stream. Ammonia is known to cause toxicity to aquatic organisms in surface waters. Discharges of ammonia in concentrations that produce detrimental physiological responses to human, plant, animal, or aquatic life would violate the Basin Plan narrative toxicity objective. Although the Discharger nitrifies the discharge, inadequate or incomplete nitrification creates the potential for ammonia to be discharged and provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream excursion above the NAWQC. Therefore, the Central Valley

Water Board finds the discharge has reasonable potential for ammonia and WQBEL's are required.

(c) **WQBEL's.**

The Central Valley Water Board calculates WQBEL's in accordance with SIP procedures for non-CTR constituents, and ammonia is a non-CTR constituent. The SIP procedure assumes a 4-day averaging period for calculating the long-term average discharge condition (LTA). However, U.S. EPA recommends modifying the procedure for calculating permit limits for ammonia using a 30-day averaging period for the calculation of the LTA corresponding to the 30-day CCC. Therefore, while the LTA's corresponding to the acute and 4-day chronic criteria were calculated according to SIP procedures, the LTA corresponding to the 30-day CCC was calculated assuming a 30-day averaging period. The lowest LTA representing the acute, 4-day CCC, and 30-day CCC is then selected for deriving the AMEL and the AWEL. The remainder of the WQBEL calculation for ammonia was performed according to the SIP procedures. This Order contains a final AMEL and AWEL for ammonia of 1.5 mg/L and 2.0 mg/L, respectively, based on the NAWQC.

- (d) **Plant Performance and Attainability.** The MEC for ammonia was 1.4 mg/L based on 171 samples collected between November 2013 and October 2014, which is less than the applicable effluent limitations. The Facility is designed to fully nitrify the wastewater and immediate compliance with the ammonia limits is feasible.

ii. **Chlorine Residual**

- (a) **WQO.** U.S. EPA developed NAWQC for the protection of freshwater aquatic life for chlorine residual. The recommended 4-day average (chronic) and 1-hour average (acute) criteria for chlorine residual are 0.011 mg/L and 0.019 mg/L, respectively. These criteria are protective of the Basin Plan's narrative toxicity objective.

- (b) **RPA Results.** The concentrations of chlorine used to disinfect wastewater are high enough to harm aquatic life and violate the Basin Plan narrative toxicity objective if discharged to the receiving water. Reasonable potential therefore does exist and effluent limits are required.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) require that, "*Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. Chlorine is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used its judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative*

assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters)." U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data." With regard to POTW's, U.S. EPA recommends that, "POTW's should also be characterized for the possibility of chlorine and ammonia problems." (TSD, p. 50)

The Discharger uses chlorine for disinfection, which is extremely toxic to aquatic organisms. Although the Discharger uses a sulfur dioxide process to dechlorinate the effluent prior to discharge to the Old River, the existing chlorine use and the potential for chlorine to be discharged provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream excursion above the NAWQC.

- (c) **WQBEL's.** The U.S. EPA *Technical Support Document for Water Quality-Based Toxics Control* [EPA/505/2-90-001] contains statistical methods for converting chronic (4-day) and acute (1-hour) aquatic life criteria to average monthly and maximum daily effluent limitations based on the variability of the existing data and the expected frequency of monitoring. However, because chlorine is an acutely toxic constituent that can and will be monitored continuously, an average 1-hour limitation is considered more appropriate than an average daily limitation. This Order contains a 4-day average effluent limitation and 1-hour average effluent limitation for chlorine residual of 0.011 mg/L and 0.019 mg/L, respectively, based on U.S. EPA's NAWQC, which implements the Basin Plan's narrative toxicity objective for protection of aquatic life.
- (d) **Plant Performance and Attainability.** The Discharger uses sulfur dioxide to dechlorinate the effluent prior to discharge to the Old River. The Central Valley Water Board concludes, therefore, that immediate compliance with these effluent limitations is feasible.

iii. **Chlorodibromomethane**

- (a) **WQO.** The CTR includes a criterion of 0.41 µg/L for chlorodibromomethane for the protection of human health for waters from which both water and organisms are consumed.
- (b) **RPA Results.** The MEC for chlorodibromomethane was 12 µg/L based on 46 samples collected between November 2013 and October 2016. Chlorodibromomethane was not detected in the receiving water based on one sample collected between November 2013 and October 2016. Therefore, chlorodibromomethane in the discharge has a reasonable potential to cause or contribute to an in-stream excursion above the CTR criterion for the protection of human health.

- (c) **WQBEL's.** Only one receiving water sample was collected for chlorodibromomethane during the term of Order R5-2012-0115-02, which was not detected and had an MDL of 0.4 µg/L. Due to the limited dataset, the Central Valley Water Board considered additional receiving water monitoring data collected prior to adoption of Order R5-2012-0115-02 to evaluate the available assimilative capacity. Chlorodibromomethane was not detected in 17 receiving water samples collected between July 2008 and October 2011, for which the lowest MDL was 0.03 µg/L. Thus, the receiving water contains assimilative capacity for chlorodibromomethane. As discussed further in section IV.C.2.c of this Fact Sheet, a dilution credit of 20:1 is allowed in the development of the WQBEL's for chlorodibromomethane. Based on the allowable dilution credit, this Order contains an AMEL of 8.0 µg/L and MDEL of 14 µg/L for chlorodibromomethane.
- (d) **Plant Performance and Attainability.** Based on the analysis of existing effluent data, the Central Valley Water Board concludes that immediate compliance with the effluent limitations for chlorodibromomethane is feasible.

iv. **Dichlorobromomethane**

- (a) **WQO.** The CTR includes a criterion of 0.56 µg/L for dichlorobromomethane for the protection of human health for waters from which both water and organisms are consumed.
- (b) **RPA Results.** The MEC for dichlorobromomethane was 19 µg/L based on 46 samples collected between November 2013 and October 2016. Dichlorobromomethane was not detected in the receiving water based on one sample collected between November 2013 and October 2016. Therefore, dichlorobromomethane in the discharge has a reasonable potential to cause or contribute to an in-stream excursion above the CTR criterion for the protection of human health.
- (c) **WQBEL's.** Only one receiving water sample was collected for dichlorobromomethane during the term of Order R5-2012-0115-02, which was not detected and had an MDL of 0.4 µg/L. Due to the limited dataset, the Central Valley Water Board considered additional receiving water monitoring data collected prior to adoption of Order R5-2012-0115-02 to evaluate the available assimilative capacity. Dichlorobromomethane was not detected in 17 receiving water samples collected between July 2008 and October 2011, for which the lowest MDL was 0.06 µg/L. Thus, the receiving water contains assimilative capacity for dichlorobromomethane. As discussed further in section IV.C.2.c of this Fact Sheet, a dilution credit of 20:1 is allowed in the development of the WQBEL's for dichlorobromomethane. Based on the allowable dilution credit, this Order contains an AMEL of 11 µg/L and MDEL of 19 µg/L for dichlorobromomethane.
- (d) **Plant Performance and Attainability.** Based on the analysis of existing effluent data, the Central Valley Water Board concludes that immediate compliance with the effluent limitations for dichlorobromomethane.

v. **Nitrate and Nitrite**

- (a) **WQO.** DDW has adopted Primary MCL's for the protection of human health for nitrite and nitrate that are equal to 1 mg/L and 10 mg/L (measured as nitrogen), respectively. DDW has also adopted a Primary MCL of 10 mg/L for the sum of nitrate and nitrite, measured as nitrogen.

U.S. EPA has developed a Primary MCL and an MCL goal of 1 mg/L for nitrite (as nitrogen). For nitrate, U.S. EPA has developed Drinking Water Standards (10 mg/L as Primary MCL) and NAWQC for protection of human health (10 mg/L for non-cancer health effects).

- (b) **RPA Results.** The Facility is a POTW that treats domestic wastewater. Untreated domestic wastewater contains ammonia in concentrations that are harmful to aquatic life and exceed the Basin Plan's narrative toxicity objective. This Order, therefore, requires removal of ammonia (i.e., nitrification). Nitrification is a biological process that converts ammonia to nitrate and nitrite, and will result in effluent nitrate concentrations above the Primary MCL for nitrate plus nitrite. Nitrate concentrations in a drinking water supply above the Primary MCL threatens the health of human fetuses and newborn babies by reducing the oxygen-carrying capacity of the blood (methemoglobinemia).

Federal regulations at 40 C.F.R. section 122.44(d)(1)(i) require that, "*Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. Nitrate and nitrite are not priority pollutants. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "*When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data.*" With regard to POTW'S, U.S. EPA recommends that, "*POTW's should also be*

characterized for the possibility of chlorine and ammonia problems.” (TSD, p. 50)

The concentration of nitrogen in raw domestic wastewater is sufficiently high that the resultant treated wastewater has a reasonable potential to exceed or threaten to exceed the Primary MCL for nitrate plus nitrite unless the wastewater is treated for nitrogen removal, and therefore an effluent limit for nitrate plus nitrite is required. Denitrification is a process that converts nitrate to nitrite or nitric oxide and then to nitrous oxide or nitrogen gas, which is then released to the atmosphere. The Discharger currently uses nitrification/denitrification to remove ammonia, nitrite, and nitrate from the waste stream. Inadequate or incomplete denitrification may result in the discharge of nitrate and/or nitrite to the receiving stream. Discharges of nitrate plus nitrite in concentrations that exceed the Primary MCL would violate the Basin Plan narrative chemical constituents objective. Although the Discharger denitrifies the discharge, inadequate or incomplete denitrification creates the potential for nitrate and nitrite to be discharged and provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream excursion above the Primary MCL. Therefore, the Central Valley Water Board finds the discharge has reasonable potential for nitrate plus nitrite and WQBEL's are required.

- (c) **WQBEL's.** This Order contains an AMEL and AWEL for nitrate plus nitrite of 10 µg/L and 12 µg/L, respectively, based on the Basin Plan's narrative chemical constituents objective for protection of the MUN beneficial use. These effluent limitations are included in this Order to assure the treatment process adequately nitrifies and denitrifies the waste stream to protect the beneficial use of municipal and domestic supply.
- (d) **Plant Performance and Attainability.** The maximum effluent nitrate and nitrite concentrations of 8 mg/L and 0.10 mg/L, respectively, are below the WQBEL's. The Central Valley Water Board concludes, therefore, that immediate compliance with these effluent limitations is feasible.

vi. **Pathogens**

- (a) **WQO.** DDW has developed reclamation criteria, CCR, division 4, chapter 3 (Title 22), for the reuse of wastewater. Title 22 requires that for spray irrigation of food crops, parks, playgrounds, schoolyards, and other areas of similar public access, wastewater be adequately disinfected, oxidized, coagulated, clarified, and filtered, and that the effluent total coliform levels not exceed 2.2 MPN/100 mL as a 7-day median; 23 MPN/100 mL, not to be exceeded more than once in a 30-day period; and 240 MPN/100 mL, at any time.

Title 22 also requires that recycled water used as a source of water supply for non-restricted recreational impoundments be disinfected tertiary recycled water that has been subjected to conventional treatment. A non-restricted recreational impoundment is defined as “...an impoundment of recycled water, in which no limitations are imposed on body-contact water recreational activities.” Title 22 is not directly applicable to surface waters; however, the Central Valley Water Board finds that it is appropriate to apply an equivalent level of treatment to that required by the DDW's reclamation criteria because the receiving water is used for irrigation of

agricultural land and for contact recreation purposes. The stringent disinfection criteria of Title 22 are appropriate since the undiluted effluent may be used for the irrigation of food crops and/or for body-contact water recreation. Coliform organisms are intended as an indicator of the effectiveness of the entire treatment train and the effectiveness of removing other pathogens.

- (b) **RPA Results.** Raw domestic wastewater inherently contains human pathogens that threaten human health and life, and constitute a threatened pollution and nuisance under CWC section 13050 if discharged untreated to the receiving water. Reasonable potential for pathogens therefore exists and WQBEL's are required.

Federal regulations at 40 C.F.R. section 122.44(d)(1)(i) require that, "*Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. Pathogens are not priority pollutants. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "*When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data.*" (TSD, p. 50)

The beneficial uses of the Old River include municipal and domestic supply, water contact recreation, and agricultural irrigation supply, and there is, at times, less than 20:1 dilution. To protect these beneficial uses, the Central Valley Water Board finds that the wastewater must be disinfected and adequately treated to prevent disease. Although the Discharger provides disinfection, inadequate or incomplete disinfection creates the potential for pathogens to be discharged and provides the basis for the discharge to have a reasonable potential to cause or contribute to an exceedance of the Basin Plan's narrative toxicity

objective. Therefore, the Central Valley Water Board finds the discharge has reasonable potential for pathogens and WQBEL's are required.

- (c) **WQBEL's.** In accordance with the requirements of Title 22, this Order includes effluent limitations for total coliform organisms of 2.2 MPN/100 mL as a 7-day median; 23 MPN/100 mL, not to be exceeded more than once in a 30-day period; and 240 MPN/100 mL as an instantaneous maximum.

The tertiary treatment process, or equivalent, is capable of reliably treating wastewater to a turbidity level of 2 nephelometric turbidity units (NTU) as a daily average. Failure of the filtration system such that virus removal is impaired would normally result in increased particles in the effluent, which result in higher effluent turbidity. Turbidity has a major advantage for monitoring filter performance. Coliform testing, by comparison, is not conducted continuously and requires several hours, to days, to identify high coliform concentrations. Therefore, to ensure compliance with the DDW recommended Title 22 disinfection criteria, weekly average specifications are impracticable for turbidity. This Order includes operational specifications for turbidity of 2 NTU as a daily average; 5 NTU, not to be exceeded more than 5 percent of the time within a 24-hour period; and 10 NTU as an instantaneous maximum.

This Order contains effluent limitations for BOD₅, total coliform organisms, and TSS and requires a tertiary level of treatment, or equivalent, necessary to protect the beneficial uses of the receiving water. The Central Valley Water Board has previously considered the factors in Water Code section 13241 in establishing these requirements.

Final WQBEL's for BOD₅ and TSS are based on the technical capability of the tertiary process, which is necessary to protect the beneficial uses of the receiving water. BOD₅ is a measure of the amount of oxygen used in the biochemical oxidation of organic matter. The tertiary treatment standards for BOD₅ and TSS are indicators of the effectiveness of the tertiary treatment process. The principal design parameter for wastewater treatment plants is the daily BOD₅ and TSS loading rates and the corresponding removal rate of the system. The application of tertiary treatment processes results in the ability to achieve lower levels for BOD₅ and TSS than the secondary standards currently prescribed. Therefore, this Order requires AMEL's for BOD₅ and TSS of 10 mg/L and AWEL's for BOD₅ and TSS of 15 mg/L, which are technically based on the capability of a tertiary system.

- (d) **Plant Performance and Attainability.** The Facility provides tertiary treatment and utilizes a chlorine disinfection system designed to achieve Title 22 criteria. Therefore, the Central Valley Water Board concludes that immediate compliance with these effluent limitations is feasible for tertiary treated discharges from the Facility.

vii. **pH**

- (a) **WQO.** The Basin Plan includes a water quality objective for surface waters (except for Goose Lake) that the "...pH shall not be depressed below 6.5 nor raised above 8.5."

- (b) **RPA Results.** Raw domestic wastewater inherently has variable pH. Additionally, some wastewater treatment processes can increase or decrease wastewater pH, which if not properly controlled, would violate the Basin Plan's numeric objective for pH in the receiving water. Therefore, reasonable potential exists for pH and WQBEL's are required.
- Federal regulations at 40 C.F.R. section 122.44(d)(1)(i) require that, *"Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality."* For priority pollutants, the SIP dictates the procedures for conducting the RPA. pH is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.
- U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, *"State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters)."* U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, *"When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data."* (TSD, p. 50)
- The Facility is a POTW that treats domestic wastewater. Based on continuous monitoring conducted between November 2013 to October 2016, the maximum pH reported was 7.8 and the minimum was 6.5. Although the Discharger has proper pH controls in place, the pH for the Facility's influent varies due to the nature of municipal sewage, which provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's numeric objective for pH in the receiving water. Therefore, WQBEL's for pH are required in this Order.
- (c) **WQBEL's.** Effluent limitations for pH of 6.5 as an instantaneous minimum and 8.5 as an instantaneous maximum are included in this Order based on protection of the Basin Plan objectives for pH.
- (d) **Plant Performance and Attainability.** Effluent pH ranged from 6.5 to 7.8. Therefore, the Central Valley Water Board concludes that immediate compliance with the effluent limitations is feasible.

viii. **Temperature**

- (a) **WQO.** The Thermal Plan requires that, *“The maximum temperature shall not exceed the natural receiving water temperature by more than 20°F.”*
- (b) **RPA Results.** Treated domestic wastewater is an elevated temperature waste, which could cause or threaten to cause the receiving water temperature to exceed temperature objectives established in the Thermal Plan. Therefore, reasonable potential exists for temperature and WQBEL's are required.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) require that, *“Limitations must control all pollutants or pollutant parameters (either conventional, non-conventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.”* For priority pollutants, the SIP dictates the procedures for conducting the RPA. Temperature is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, *“State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).”* U.S. EPA's TSD also recommends that factors other than effluent data should be considered in the RPA, *“When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data.”* (TSD, p. 50)

The Facility is a POTW that treats domestic wastewater, which is an elevated temperature waste. This provides the basis for the discharge to have a reasonable potential to cause or contribute to an excursion above the requirements of the Thermal Plan.

- (c) **WQBEL's.** To ensure compliance with the Thermal Plan, an effluent limitation for temperature is included in this Order.
- (d) **Plant Performance and Attainability.** Temperature monitoring at Monitoring Location RSW-001 was inadvertently omitted in the previous Order, so limited data collected from a Department of Water Resources (DWR) temperature monitoring station is available to evaluate compliance with the temperature effluent limits. The data indicates that the discharge

may occasionally exceed the receiving water temperature by more than 20°F for short periods during the coldest periods of the winter. However, the Discharger believes the facility can comply with the effluent limits by diverting wastewater to the emergency storage ponds to allow cooling prior to discharge. Additionally, the Discharger is planning construction of a second outfall where it may be feasible to install a temperature monitoring gauge to get more accurate readings of effluent temperature upon discharge to Old River.

4. WQBEL Calculations

- a. This Order includes WQBEL's for ammonia, BOD₅, chlorine residual, chlorodibromomethane, dichlorobromomethane, methylmercury, nitrate plus nitrite, pH, temperature, total dissolved solids, and TSS. The general methodology for calculating WQBEL's based on the different criteria/objectives is described in subsections IV.C.4.b through d, below. See Attachment H for the WQBEL calculations.
- b. **Effluent Concentration Allowance.** For each water quality criterion/objective, the ECA is calculated using the following steady-state mass balance equation from section 1.4 of the SIP:

$$\begin{aligned} ECA &= C + D(C - B) && \text{where } C > B, \text{ and} \\ ECA &= C && \text{where } C \leq B \end{aligned}$$

where:

ECA = effluent concentration allowance
D = dilution credit
C = the priority pollutant criterion/objective
B = the ambient background concentration.

According to the SIP, the ambient background concentration (B) in the equation above shall be the observed maximum with the exception that an ECA calculated from a priority pollutant criterion/objective that is intended to protect human health from carcinogenic effects shall use the arithmetic mean concentration of the ambient background samples.

- c. **Primary and Secondary MCLs.** For non-priority pollutants with primary MCL's to protect human health (e.g., nitrate plus nitrite), the AMEL is set equal to the primary MCL and the AWEL is calculated using the MDEL/AMEL multiplier from Table 2 of the SIP.

For non-priority pollutants with secondary MCL's that protect public welfare (e.g., taste, odor, and staining), WQBEL's were calculated by setting the LTA equal to the secondary MCL and using the AMEL multiplier to set the AMEL. The AWEL was calculated using the MDEL/AMEL multiplier from Table 2 of the SIP.

- d. **Aquatic Toxicity Criteria.** For priority pollutants with acute and chronic aquatic toxicity criteria, the WQBEL's are calculated in accordance with section 1.4 of the SIP. The ECA's are converted to equivalent LTA's (i.e., LTA_{acute} and LTA_{chronic}) using statistical multipliers and the lowest LTA is used to calculate the AMEL and MDEL using additional statistical multipliers. For non-priority pollutants, WQBEL's are calculated using similar procedures, except that an AWEL is determined by utilizing multipliers based on a 98th percentile occurrence probability.

- e. **Human Health Criteria.** For priority pollutants with human health criteria, the WQBEL's are calculated in accordance with section 1.4 of the SIP. The AMEL is set equal to the ECA and the MDEL is calculated using the MDEL/AMEL multiplier from Table 2 of the SIP. For non-priority pollutants with human health criteria, WQBEL's are calculated using similar procedures, except that an AWEL is established using the MDEL/AMEL multiplier from Table 2 of the SIP.

$$AMEL = \text{mult}_{AMEL} \left[\min \left(\overbrace{M_A ECA_{acute}}^{LTA_{acute}}, M_C ECA_{chronic} \right) \right]$$

$$MDEL = \text{mult}_{MDEL} \left[\min \left(M_A ECA_{acute}, \underbrace{M_C ECA_{chronic}}_{LTA_{chronic}} \right) \right]$$

$$MDEL_{HH} = \left(\frac{\text{mult}_{MDEL}}{\text{mult}_{AMEL}} \right) AMEL_{HH}$$

where:

mult_{AMEL} = statistical multiplier converting minimum LTA to AMEL

mult_{MDEL} = statistical multiplier converting minimum LTA to MDEL

M_A = statistical multiplier converting acute ECA to LTA_{acute}

M_C = statistical multiplier converting chronic ECA to $LTA_{chronic}$

Summary of Water Quality-Based Effluent Limitations Discharge Points 001 and 002

Table F-11. Summary of Water Quality-Based Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Conventional Pollutants						
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	--	--	--
pH	standard units	--	--	--	6.5	8.5
Total Suspended Solids	mg/L	10	15	--	--	--
Priority Pollutants						
Chlorodibromomethane	µg/L	8.0	--	14	--	--
Dichlorobromomethane	µg/L	11	--	19	--	--
Non-Conventional Pollutants						
Ammonia Nitrogen, Total (as N)	mg/L	1.5	2.0	--	--	--
	lbs/day ¹	140	180	--	--	--
	lbs/day ²	160	210	--	--	--
	lbs/day ³	170	230	--	--	--
	lbs/day ⁴	200	270	--	--	--
Chlorine, Total Residual	mg/L	--	0.011 ⁵	0.019 ⁶	--	--
Chlorpyrifos	µg/L	⁷	⁸	--	--	--

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Diazinon	µg/L	7	8	--	--	--
Methylmercury	grams/year	0.77 ⁹	--	--	--	--
Nitrate Plus Nitrite	mg/L	10	12	--	--	--
Temperature	°F	--	--	10	--	--
Total Coliform Organisms	MPN/100 mL	--	2.2 ¹¹	23 ¹²	--	240
Total Dissolved Solids	tons/year	13,688 ¹³	--	--	--	--

¹ Based on a design average daily discharge flow of 10.8 MGD. Effective immediately and until Executive Officer's written approval of flow increase (Special Provision VI.C.6.b).

² Based on a design average daily discharge flow of 12.5 MGD. Effective upon Executive Officer's written approval of flow increase (Special Provision VI.C.6.b).

³ Based on a design average daily discharge flow of 13.6 MGD. Effective upon Executive Officer's written approval of flow increase (Special Provision VI.C.6.c).

⁴ Based on a design average daily discharge flow of 16 MGD. Effective upon Executive Officer's written approval of flow increase (Special Provision VI.C.6.d).

⁵ Applied as a 4-day average effluent limitation.

⁶ Applied as a 1-hour average effluent limitation.

⁷ Average Monthly Effluent Limitation

$$S_{AMEL} = \frac{C_{DM-AVG}}{0.079} + \frac{C_{CM-AVG}}{0.012} \leq 1.0$$

C_{DM-AVG} = average monthly diazinon effluent concentration in µg/L.

C_{CM-AVG} = average monthly chlorpyrifos effluent concentration in µg/L.

⁸ Average Weekly Effluent Limitation

$$S_{AWEL} = \frac{C_{DW-AVG}}{0.14} + \frac{C_{CW-AVG}}{0.021} \leq 1.0$$

C_{DW-AVG} = average weekly diazinon effluent concentration in µg/L.

C_{CW-AVG} = average weekly chlorpyrifos effluent concentration in µg/L.

⁹ The effluent calendar year annual methylmercury load shall not exceed 0.77 grams, in accordance with the Delta Mercury Control Program, effective 31 December 2030.

¹⁰ The maximum temperature of the discharge shall not exceed the natural receiving water temperature by more than 20°F.

¹¹ Applied as a 7-day median effluent limitation.

¹² Not to be exceeded more than once in any 30-day period.

¹³ The effluent calendar year annual total dissolved solids load shall not exceed 13,688 tons.

5. Whole Effluent Toxicity (WET)

For compliance with the Basin Plan's narrative toxicity objective, this Order requires the Discharger to conduct WET testing for acute and chronic toxicity, as specified in the Monitoring and Reporting Program (MRP) (Attachment E section V). This Order also contains effluent limitations for acute toxicity and requires the Discharger to implement best management practices to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity.

- a. **Acute Aquatic Toxicity.** The Basin Plan contains a narrative toxicity objective that states, "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at page III-8.00) The Basin Plan also states that, "*...effluent limits based upon acute biotoxicity tests of effluents will be prescribed where appropriate...*"

For priority pollutants, the SIP dictates the procedures for conducting the RPA. Acute toxicity is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Therefore, due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA. U.S. EPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" Although the discharge has been consistently in compliance with the acute effluent limitations, the Facility is a POTW that treats domestic wastewater containing ammonia and other acutely toxic pollutants. Acute toxicity effluent limits are required to ensure compliance with the Basin Plan's narrative toxicity objective.

U.S. EPA Region 9 provided guidance for the development of acute toxicity effluent limitations in the absence of numeric water quality objectives for toxicity in its document titled "Guidance for NPDES Permit Issuance", dated February 1994. In section B.2. "Toxicity Requirements" (pgs. 14-15) it states that, "*In the absence of specific numeric water quality objectives for acute and chronic toxicity, the narrative criterion 'no toxics in toxic amounts' applies. Achievement of the narrative criterion, as applied herein, means that ambient waters shall not demonstrate for acute toxicity: 1) less than 90% survival, 50% of the time, based on the monthly median, or 2) less than 70% survival, 10% of the time, based on any monthly median. For chronic toxicity, ambient waters shall not demonstrate a test result of greater than 1 TUc.*" Consistent with Order R5-2012-0115-02, effluent limitations for acute toxicity have been included in this Order as follows:

Acute Toxicity. Survival of aquatic organisms in 96-hour bioassays of undiluted waste shall be no less than:

Minimum for any one bioassay ----- 70%
Median for any three consecutive bioassays ----- 90%

- b. **Chronic Aquatic Toxicity.** The Basin Plan contains a narrative toxicity objective that states, "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at page III-8.00). The table below is chronic WET testing performed by the Discharger from November 2013 through August 2016. This data was used to determine if the discharge has reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's narrative toxicity objective.

Table F-12. Whole Effluent Chronic Toxicity Testing Results

Date	Fathead Minnow <i>Pimephales promelas</i>		Water Flea <i>Ceriodaphnia dubia</i>		Green Algae <i>Selenastrum capricornutum</i>
	Survival (TUc)	Growth (TUc)	Survival (TUc)	Reproduction (TUc)	Growth (TUc)
4 November 2013	1	1	1	1	1
3 February 2014	1	1	1	1	1
5 May 2014	1	1	1	1	1

Date	Fathead Minnow <i>Pimephales promelas</i>		Water Flea <i>Ceriodaphnia dubia</i>		Green Algae <i>Selenastrum capricornutum</i>
	Survival (TUc)	Growth (TUc)	Survival (TUc)	Reproduction (TUc)	Growth (TUc)
9 September 2014	1	1	1	1	1
4 November 2014	1	1	1	1	1
3 February 2015	1	1	1	1	1
20 April 2015	1	1	1	>1	1
8 June 2015	--	--	1	1	--
22 June 2015	--	--	1	1	--
6 July 2015	1	1	1	1	1
22 July 2015	--	--	1	1	--
19 October 2015	1	1	1	1	1
1 February 2016	1	1	1	>1	1
7 March 2016	--	--	1	1	--
22 March 2016	--	--	1	1	--
5 April 2016	--	--	1	1	--
18 April 2016	--	--	1	1	1
6 June 2016	1	1	--	--	--
22 August 2016	1	1	1	1	1

- i. **RPA.** Based on chronic whole effluent toxicity testing performed by the Discharger from November 2013 through August 2016 (see Table F-12), there were two exceedances of the chronic toxicity numeric trigger for *Ceriodaphnia dubia* reproduction in April 2015 and February 2016. However, the Discharger noted that prior to taking the April 2015 sample, the effluent wet well required maintenance and a rope was removed from inside the pump, which could have impacted the toxicity results. As indicated in Table F-12, subsequent accelerated monitoring showed no chronic toxicity. Additionally, the Discharger noted that the sampler tubing used to collect the February 2016 sample could have led to a false positive. The sampler tubing was replaced after the February 2016 sample was taken and prior to accelerated monitoring. As indicated in Table F-12, subsequent accelerated monitoring showed no chronic toxicity in the effluent. Therefore, the Central Valley Water Board has determined that the toxicity testing conducted in April 2015 and February 2016 is not representative of typical effluent quality due to sampling issues that may have contributed to failed tests. Based on the remaining chronic whole effluent toxicity testing results, the discharge does not have reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's narrative toxicity objective. Therefore, the effluent limitation for chronic toxicity has not been retained in this Order. Removal of the effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of this Fact Sheet).

D. Final Effluent Limitation Considerations

1. Mass-based Effluent Limitations

40 C.F.R section 122.45(f)(1) requires effluent limitations be expressed in terms of mass, with some exceptions, and 40 C.F.R. section 122.45(f)(2) allows pollutants that are limited in terms of mass to additionally be limited in terms of other units of measurement. This Order includes effluent limitations expressed in terms of mass and concentration. In

addition, pursuant to the exceptions to mass limitations provided in 40 C.F.R. section 122.45(f)(1), some effluent limitations are not expressed in terms of mass, such as pH and temperature, and when the applicable standards are expressed in terms of concentration (e.g., CTR criteria and MCL's) and mass limitations are not necessary to protect the beneficial uses of the receiving water.

Mass-based effluent limitations have been established in this Order for ammonia because ammonia is an oxygen demanding substance. In addition, mass-based limits for methylmercury have been established in this Order in accordance with the Delta Methylmercury Control Program. Except for the pollutants listed above, mass-based effluent limitations are not included in this Order for pollutant parameters for which effluent limitations are based on water quality objectives and criteria that are concentration-based.

Mass-based effluent limitations were calculated based upon the design flow (average dry weather flow) permitted in section IV.A.1.g of this Order.

2. Averaging Periods for Effluent Limitations

40 C.F.R. section 122.45(d) requires AMEL's and AWEL's for POTW's unless demonstrated to be impracticable. For chlorodibromomethane and dichlorobromomethane, AWEL's have been replaced with maximum daily effluent limitations in accordance with Section 1.4 of the SIP. Furthermore, for pH and total coliform organisms, AWEL's have been replaced or supplemented with effluent limitations utilizing shorter averaging periods. The rationale for using shorter averaging periods for these constituents is discussed in section IV.C.3 of this Fact Sheet.

3. Satisfaction of Anti-Backsliding Requirements

The CWA specifies that a revised permit may not include effluent limitations that are less stringent than the previous permit unless a less stringent limitation is justified based on exceptions to the anti-backsliding provisions contained in CWA sections 402(o) or 303(d)(4), or, where applicable, 40 C.F.R. section 122.44(l).

The effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order, with the exception of effluent limitations for BOD₅, TSS, bis (2-ethylhexyl) phthalate, and copper. The effluent limitations for these pollutants are less stringent than those in Order R5-2012-0115-02. This relaxation of effluent limitations is consistent with the anti-backsliding requirements of the CWA and federal regulations.

- a. **CWA section 402(o)(1) and 303(d)(4).** CWA section 402(o)(1) prohibits the establishment of less stringent WQBEL's "*except in compliance with section 303(d)(4).*" CWA section 303(d)(4) has two parts: paragraph (A) which applies to non-attainment waters and paragraph (B) which applies to attainment waters.
 - i. For waters where standards are not attained, CWA section 304(d)(4)(A) specifies that any effluent limit based on a TMDL or other WLA may be revised only if the cumulative effect of all such revised effluent limits based on such TMDL's or WLA's will assure the attainment of such water quality standards.
 - ii. For attainment waters, CWA section 303(d)(4)(B) specifies that a limitation based on a water quality standard may be relaxed where the action is consistent with the antidegradation policy.

The Old River is considered an attainment water for bis (2-ethylhexyl) phthalate, copper, BOD₅ and TSS because the receiving water is not listed as impaired on the 303(d) list for these constituents.¹⁷ As discussed in section IV.D.4, below, removal of the effluent limits complies with federal and state antidegradation requirements. Thus, removal of the effluent limitations for bis (2-ethylhexyl) phthalate, copper, BOD₅ and TSS from Order R5-2012-0115-02 meets the exception in CWA section 303(d)(4)(B).

- b. **CWA section 402(o)(2).** CWA section 402(o)(2) provides several exceptions to the anti-backsliding regulations. CWA 402(o)(2)(B)(i) allows a renewed, reissued, or modified permit to contain a less stringent effluent limitation for a pollutant if information is available which was not available at the time of permit issuance (other than revised regulations, guidance, or test methods) and which would have justified the application of a less stringent effluent limitation at the time of permit issuance.

As described further in sections IV.C.3 and IV.C.5.b of this Fact Sheet, updated information that was not available at the time Order R5-2012-0115-02 was issued indicates that bis (2-ethylhexyl) phthalate and copper do not exhibit reasonable potential to cause or contribute to an exceedance of water quality objectives in the receiving water. The updated information that supports the relaxation of effluent limitations for these constituents includes the following:

- i. **Bis (2-Ethylhexyl) Phthalate.** Effluent and receiving water monitoring data collected between November 2013 and October 2016 indicates that bis (2-ethylhexyl) phthalate in the discharge does not exhibit reasonable potential to cause or contribute to an exceedance of the CTR criteria for the protection of human health.
 - ii. **Copper.** Effluent and receiving water monitoring data collected between November 2013 and October 2016 indicates that copper in the discharge does not exhibit reasonable potential to cause or contribute to an exceedance of the CTR criteria for the protection of freshwater aquatic life.
- c. **Chronic Toxicity.** Previous Order R5-2012-0115-02 included a narrative chronic toxicity effluent limit. Chronic whole effluent toxicity (WET) testing performed between November 2013 and October 2016 indicates that the discharge does not exhibit reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's narrative toxicity objective. Therefore, the narrative chronic toxicity effluent limitation has not been carried forward. This Order, however, is not less stringent, because the same requirements to conduct chronic WET testing and evaluate instances of toxicity (i.e., conduct a Toxicity Reduction Evaluation) are continued. The removal of the narrative chronic toxicity effluent limitation does not result in a reduction in effluent quality or a reduced level of treatment. The renewed permit is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and the State Anti-Degradation Policy because this Order imposes equivalent requirements to previous Order R5-2012-0115-02 and therefore does not allow degradation.

However, if it was determined that removal of the narrative chronic toxicity effluent limit is a relaxation of permit requirements, the relaxation meets the exception to backsliding under CWA 402(o)(2)(B)(i), which allows a renewed, reissued, or

¹⁷ "The exceptions in section 303(d)(4) address both waters in attainment with water quality standards and those not in attainment, i.e. waters on the section 303(d) impaired waters list." State Water Board Order WQ 2008-0006, Berry Petroleum Company, Poso Creek/McVan Facility.

modified permit to contain a less stringent effluent limitation for a pollutant if information is available which was not available at the time of permit issuance (other than revised regulations, guidance, or test methods) and which would have justified the application of a less stringent effluent limitation at the time of permit issuance. The new chronic WET data discussed above is new information that supports the removal of the narrative chronic toxicity effluent limitation.

- d. **Flow.** Previous Order R5-2012-0115-02 included flow as an effluent limit based on the facility design flow. In accordance with Order R5-2012-0115-02 compliance with the flow limit was calculated using the average daily flow over three consecutive dry weather months. Flow is not a pollutant and therefore has been changed from an effluent limit to a discharge prohibition in this Order, which is an equivalent level of regulation. This Order is not less stringent because compliance with flow as a discharge prohibition will be calculated the same way as the previous Order. Flow as a discharge prohibition adequately regulates the Facility, does not allow for an increase in the discharge of pollutants, and does not constitute backsliding.

4. Antidegradation Policies

As discussed in section II.E of this Fact Sheet, the Discharger is in the process of completing a phased upgrade project that would increase the design capacity of the Facility to 16 MGD. Orders R5-2007-0036-01 and R5-2012-0115-02 provided antidegradation findings and authorized an increase in the average dry weather flow to 16 MGD. This Order does not provide for an increase in flow or mass of pollutants to the receiving water beyond levels authorized in Order R5-2012-0115-02. Therefore, a complete antidegradation analysis is not necessary in this Order. The Order requires compliance with applicable federal technology-based standards and with WQBEL's where the discharge could have the reasonable potential to cause or contribute to an exceedance of water quality standards. The permitted discharge is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and the State Antidegradation Policy. Compliance with these requirements will result in the use of BPTC of the discharge. The impact on existing water quality will be insignificant.

This Order removes effluent limitations for bis (2-ethylhexyl) phthalate, chronic toxicity, and copper based on updated information, as described further in sections IV.C.3 and IV.D.3 of this Fact Sheet. The removal of WQBEL's for bis (2-ethylhexyl) phthalate, chronic toxicity, and copper will not result in a decrease in the level of treatment or control, or a reduction in water quality. Therefore, the Central Valley Water Board finds that the removal of the effluent limitations for bis (2-ethylhexyl) phthalate, chronic toxicity, and copper does not result in an allowed increase in pollutants or any additional degradation of the receiving water. Thus, the relaxation of effluent limitations is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and the State Antidegradation Policy.

This Order also removes maximum daily and mass-based effluent limitations for BOD₅ and TSS based on 40 CFR Part 122.45 (d) and (f), and as described further in sections IV.C.3 and IV.D.3 of this Fact Sheet. The removal of maximum daily and mass-based effluent limits for BOD₅ and TSS will not result in a decrease in the level of treatment or control, or a reduction in water quality. The Central Valley Water Board finds that the removal of maximum daily and mass-based effluent limits for BOD₅ and TSS does not result in an allowed increase in pollutants or any additional degradation of the receiving water. Thus, the relaxation of effluent limitations is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and the State Antidegradation Policy.

5. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based effluent limitations and WQBEL's for individual pollutants. The technology-based effluent limitations consist of restrictions on BOD₅, TSS, and pH. Restrictions on these constituents are discussed in section IV.B.2 of this Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements. For BOD₅, TSS, and pH, both technology-based effluent limitations and WQBEL's are applicable. The more stringent of these effluent limitations are implemented by this Order. These limitations are not more stringent than required by the CWA.

WQBEL's have been derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. To the extent that toxic pollutant WQBEL's were derived from the CTR, the CTR is the applicable standard pursuant to 40 C.F.R. section 131.38. The procedures for calculating the individual WQBEL's for priority pollutants are based on the CTR implemented by the SIP, which was approved by U.S. EPA on 18 May 2000. All beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by U.S. EPA prior to 30 May, 2000. Any water quality objectives and beneficial uses submitted to U.S. EPA prior to 30 May 2000, but not approved by U.S. EPA before that date, are nonetheless "*applicable water quality standards for purposes of the CWA*" pursuant to 40 C.F.R. section 131.21(c)(1). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

Summary of Final Effluent Limitations Discharge Points 001 and 002

Table F-13. Summary of Final Effluent Limitations

Parameter	Units	Effluent Limitations					Basis ¹
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum	
Conventional Pollutants							
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	--	--	--	TTC
	% Removal	85	--	--	--	--	CFR
pH	standard units	--	--	--	6.5	8.5	BP
Total Suspended Solids	mg/L	10	15	--	--	--	TTC
	% Removal	85	--	--	--	--	CFR
Priority Pollutants							
Chlorodibromomethane	µg/L	8.0	--	14	--	--	CTR
Dichlorobromomethane	µg/L	11	--	19	--	--	CTR
Non-Conventional Pollutants							
Ammonia Nitrogen, Total (as N)	mg/L	1.5	2.0	--	--	--	NAWQC
	lbs/day ²	140	180	--	--	--	
	lbs/day ³	160	210	--	--	--	
	lbs/day ⁴	170	230	--	--	--	
	lbs/day ⁵	200	270	--	--	--	
Chlorine, Total Residual	mg/L	--	0.011 ⁶	0.019 ⁷	--	--	NAWQC

Parameter	Units	Effluent Limitations					Basis ¹
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum	
Chlorpyrifos	µg/L	8	9	--	--	--	TMDL
Diazinon	µg/L	8	9	--	--	--	TMDL
Methylmercury	µmhos/cm	0.77 ¹⁰	--	--	--	--	TMDL
Nitrate Plus Nitrite (as N)	mg/L	10	12	--	--	--	MCL
Temperature	°F	--	--	11	--	--	TP
Total Coliform Organisms	MPN/100 mL	--	2.2 ¹²	23 ¹³	--	240	Title 22
Total Dissolved Solids	tons/year	13,688 ¹⁴	--	--	--	--	PB
Acute Toxicity	% survival	--	--	70 ¹⁵ /90 ¹⁶	--	--	BP

¹ TTC – Based on tertiary treatment capability. These effluent limitations reflect the capability of a properly operated tertiary treatment plant.

CFR – Based on secondary treatment standards contained in 40 C.F.R part 133.

BP – Based on water quality objectives contained in the Basin Plan.

PB – Based on Facility performance.

NAWQC – Based on U.S. EPA's National Ambient Water Quality Criteria for the protection of freshwater aquatic life.

MCL – Based on the Primary Maximum Contaminant Level.

Title 22 – Based on CA Division of Drinking Water Reclamation Criteria, CCR, Division 4, Chapter 3 (Title 22).

TMDL – Based on the wasteload allocations in the applicable TMDL.

TP – Based on the Thermal Plan

² Based on an average daily discharge flow of 10.8 MGD. Effective immediately and until Executive Offer's written approval of flow increase (Special Provision VI.C.6.b).

³ Based on an average daily discharge flow of 12.5 MGD. Effective upon Executive Offer's written approval of flow increase (Special Provision VI.C.6.b).

⁴ Based on an average daily discharge flow of 13.6 MGD. Effective upon Executive Offer's written approval of flow increase (Special Provision VI.C.6.c).

⁵ Based on an average daily discharge flow of 16 MGD. Effective upon Executive Offer's written approval of flow increase (Special Provision VI.C.6.d).

⁶ Applied as a 4-day average effluent limitation.

⁷ Applied as a 1-hour average effluent limitation.

⁸ Average Monthly Effluent Limitation

$$S_{AMEL} = \frac{C_{DM-AVG}}{0.079} + \frac{C_{CM-AVG}}{0.012} \leq 1.0$$

C_{DM-AVG} = average monthly diazinon effluent concentration in µg/L.

C_{CM-AVG} = average monthly chlorpyrifos effluent concentration in µg/L.

⁹ Average Weekly Effluent Limitation

$$S_{AWEL} = \frac{C_{DW-AVG}}{0.14} + \frac{C_{CW-AVG}}{0.021} \leq 1.0$$

C_{DW-AVG} = average weekly diazinon effluent concentration in µg/L.

C_{CW-AVG} = average weekly chlorpyrifos effluent concentration in µg/L.

¹⁰ The effluent calendar year annual methylmercury load shall not exceed 0.77 grams, in accordance with the Delta Mercury Control Program, effective 31 December 2030.

¹¹ The maximum temperature of the discharge shall not exceed the natural receiving water temperature by more than 20°F.

¹² Applied as a 7-day median effluent limitation.

¹³ Not to be exceeded more than once in any 30-day period.

¹⁴ The effluent calendar year annual total dissolved solids load shall not exceed 13,688 tons.

¹⁵ 70% minimum of any one bioassay.

¹⁶ 90% median for any three consecutive bioassays.

E. Interim Effluent Limitations

The State Water Board's Resolution 2008-0025 "*Policy for Compliance Schedules in National Pollutant Discharge Elimination System Permits*" (Compliance Schedule Policy) requires the Central Valley Water Board to establish interim numeric effluent limitations in this Order for compliance schedules longer than 1 year. As discussed in section VI.B.7 of this Fact Sheet, the Central Valley Water Board is approving a compliance schedule longer than one year for methylmercury. The Compliance Schedule Policy requires that interim effluent limitations must be based on current treatment plant performance or existing permit limitations, whichever is more stringent. Consistent with the Delta Mercury Control Program, this Order includes interim effluent limitations for total mercury based on Facility performance.

1. **Compliance Schedule for Methylmercury.** This Order contains a final effluent limitation for methylmercury based on the Basin Plan's Delta Mercury Control Program that became effective on 20 October 2011. The Discharger has complied with the application requirements in paragraph 4 of the State Water Board's Compliance Schedule Policy, and the Discharger's application demonstrates the need for additional time to implement actions to comply with the final effluent limitations, as described below. Therefore, a compliance schedule for compliance with the effluent limitations for methylmercury is continued in this Order.

A compliance schedule is necessary because the Discharger must implement actions, including a Phase 1 Methylmercury Control Study and possible upgrades to the Facility, to comply with the final effluent limitations.

The Discharger has made diligent efforts to quantify pollutant levels in the discharge and the sources of the pollutant in the waste stream. The Discharger conducted monthly monitoring for mercury and methylmercury during the term of Order R5-2012-0115-02. The Discharger has developed and continues to implement a pollution prevention plan for mercury, which was submitted to the Central Valley Water Board on 21 June 2012, and provided annual progress reports during the term of Order R5-2012-0115-02.

The compliance schedule is as short as possible. The Central Valley Water Board will use the Phase 1 Control Studies' results and other information to consider amendments to the Delta Mercury Control Program during the Phase 1 Delta Mercury Control Program Review. Therefore, at this time it is uncertain what measures must be taken to consistently comply with the waste load allocation for methylmercury. The interim effluent limits and final compliance date may be modified at the completion of Phase 1.

Interim performance-based limitations have been included in this Order. The interim limitations were determined as described in section IV.E.2, below, and are in effect until the final limitations take effect. The interim numeric effluent limitations and source control measures will result in the highest discharge quality that can reasonably be achieved until final compliance is attained.

2. **Interim Limits for Total Mercury.** The Compliance Schedule Policy requires the Central Valley Water Board to establish interim requirements and dates for their achievement in the NPDES permit. Interim numeric effluent limitations are required for compliance schedules longer than one year. Interim effluent limitations must be based on current treatment plant performance or previous final permit limitations, whichever is more stringent. When feasible, interim limitations must correspond with final permit effluent limitations with respect to averaging bases (e.g., AMEL, MDEL, AWEL, etc.) for effluent limitations for which compliance protection is intended.

The interim effluent limitations for total mercury are based on Facility performance. The Delta Mercury Control Program requires POTW's to limit their discharges of inorganic

(total) mercury to Facility performance-based levels during Phase 1. The interim inorganic (total) mercury effluent mass limit is to be derived using current, representative data and shall not exceed the 99.9th percentile of the 12-month running effluent inorganic (total) mercury mass loads. At the end of Phase 1, the interim inorganic (total) mercury mass limit will be re-evaluated and modified as appropriate. The Delta Mercury Control Program also requires interim limits established during Phase 1 and allocations will not be reduced as a result of early actions that result in reduced inorganic (total) mercury and/or methylmercury in discharges.

This Order retains the interim performance-based effluent limitation for total mercury from Order R5-2012-0115-02, which is consistent with the intent of the TMDL to not penalize dischargers for early actions to reduce mercury. Total mercury samples collected since the operation of tertiary filtration from August 2008 through December 2011 were used in the determination of the performance-based interim effluent limit in Order R5-2012-0115-02. The interim effluent limitation for total mercury shall apply during the compliance schedule in lieu of the final effluent limitation for methylmercury.

The Central Valley Water Board finds that the Discharger can undertake source control and treatment plant measures to maintain compliance with the interim limitations included in this Order. Interim limitations are established when compliance with final effluent limitations cannot be achieved by the existing discharge. Discharge of constituents in concentrations in excess of the final effluent limitations, but in compliance with the interim effluent limitations, can significantly degrade water quality and adversely affect the beneficial uses of the receiving stream on a long-term basis. The interim limitations, however, establish an enforceable ceiling concentration until compliance with the effluent limitation can be achieved.

F. Land Discharge Specifications – Not Applicable

Land discharge specifications for the Facility are included in separate Order R5-2007-0038.

G. Recycling Specifications – Not Applicable

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

A. Surface Water

1. CWA section 303(a-c), requires states to adopt water quality standards, including criteria, where they are necessary to protect beneficial uses. The Central Valley Water Board adopted water quality criteria as water quality objectives in the Basin Plan. The Basin Plan states that “[t]he numerical and narrative water quality objectives define the least stringent standards that the Regional Water Board will apply to regional waters in order to protect the beneficial uses.” The Basin Plan includes numeric and narrative water quality objectives for various beneficial uses and water bodies. This Order contains receiving surface water limitations based on the Basin Plan numerical and narrative water quality objectives for bacteria, biostimulatory substances, color, chemical constituents, dissolved oxygen, floating material, oil and grease, pH, pesticides, radioactivity, salinity, suspended sediment, settleable substances, suspended material, tastes and odors, temperature, toxicity, and turbidity.
 - a. **Temperature.** The Thermal Plan is applicable to the discharge from the Facility. For the purposes of the Thermal Plan, the discharge is considered to be an *Existing Discharge of Elevated Temperature Waste to an Estuary*, as defined in the Thermal Plan. Therefore, the Discharger must meet the water quality objective at section 5.A.(1) of the Thermal Plan, which requires compliance with the following:

- i. The maximum temperature shall not exceed the natural receiving water temperature by more than 20°F.
- ii. Elevated temperature waste discharges either individually or combined with other discharges shall not create a zone, defined by water temperatures of more than 1°F above natural receiving water temperature, which exceeds 25 percent of the cross-sectional area of a main river channel at any point.
- iii. No discharge shall cause a surface water temperature rise greater than 4°F above the natural temperature of the receiving waters at any time or place.
- iv. Additional limitations shall be imposed when necessary to assure protection of beneficial uses.

This Order contains receiving water limitations for temperature based on the Thermal Plan.

B. Groundwater – Not Applicable

Groundwater limitations applicable to the Facility are included in separate Order R5-2007-0038.

VI. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 C.F.R. section 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 C.F.R. section 122.42, are provided in Attachment D. The Discharger must comply with all standard provisions and with those additional conditions that are applicable under 40 C.F.R. section 122.42.

Sections 122.41(a)(1) and (b) through (n) of 40 C.F.R. establish conditions that apply to all state-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) of 40 C.F.R. allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 C.F.R. section 123.25, this Order omits federal conditions that address enforcement authority specified in 40 C.F.R. sections 122.41(j)(5) and (k)(2) because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

B. Special Provisions

1. Reopener Provisions

- a. **Mercury.** This Delta Mercury Control Program was designed to proceed in two phases. Phase 1 spans a period of approximately 9 years. Phase 1 emphasizes studies and pilot projects to develop and evaluate management practices to control methylmercury. At the end of Phase 1, the Central Valley Water Board will conduct a Phase 1 Delta Mercury Control Program Review that considers: modification of methylmercury goals, objectives, allocations and/or the Final Compliance Date; implementation of management practices and schedules for methylmercury controls; and adoption of a mercury offset program for dischargers who cannot meet their load and waste load allocations after implementing all reasonable load reduction strategies. The fish tissue objectives, the linkage analysis between objectives and sources, and the attainability of the allocations will be re-evaluated based on the findings of Phase 1 control studies and other information. The linkage analysis, fish tissue objectives, allocations, and time schedules may be adjusted at

the end of Phase 1, or subsequent program reviews, as appropriate. Therefore, this Order may be reopened to address changes to the Delta Mercury Control Program.

- b. **Pollution Prevention.** This Order requires the Discharger continue to implement a pollution prevention plan following Water Code section 13263.3(d)(3) for mercury and salinity. This reopener provision allows the Central Valley Water Board to reopen this Order for addition and/or modification of effluent limitations and requirements for these constituents based on a review of the pollution prevention plan.
- c. **Whole Effluent Toxicity (WET).** This Order requires the Discharger to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity through a site-specific Toxicity Reduction Evaluation (TRE) or, under certain circumstances, may be allowed to participate in an approved Toxicity Evaluation Study (TES) in lieu of conducting a site-specific TRE. This Order may be reopened to include a new chronic toxicity limitation, a new acute toxicity limitation, and/or a limitation for a specific toxicant identified in the TRE and/or TES.
- d. **Water Effects Ratio (WER) and Metal Translators.** A default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. In addition, default dissolved-to-total metal translators have been used to convert water quality objectives from dissolved to total recoverable. If the Discharger performs studies to determine site-specific WER's and/or site-specific dissolved-to-total metal translators, this Order may be reopened to modify the effluent limitations for the applicable inorganic constituents.
- e. **Drinking Water Policy.** On 26 July 2013, the Central Valley Water Board adopted Resolution R5-2013-0098, amending the Basin Plan and establishing a Drinking Water Policy. The State Water Board approved the Drinking Water Policy on 3 December 2013. This Order may be reopened to incorporate monitoring of drinking water constituents to implement the Drinking Water Policy.
- f. **Bay-Delta Plan South Salinity Objectives Update.** The State Water Board is currently in the process of updating the South Delta Salinity Objectives contained in the Bay-Delta Plan. The updated salinity objectives may result in needed changes to the salinity requirements in this Order. Therefore, this Order may be reopened to modify salinity requirements, as appropriate, in accordance with changes to the Bay-Delta Plan.

2. Special Studies and Additional Monitoring Requirements

- a. **Chronic Whole Effluent Toxicity Requirements.** The Basin Plan contains a narrative toxicity objective that states, "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at page III-8.00) Based on whole effluent chronic toxicity testing performed by the Discharger from November 2013 through August 2016, the discharge does not have reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's narrative toxicity objective.

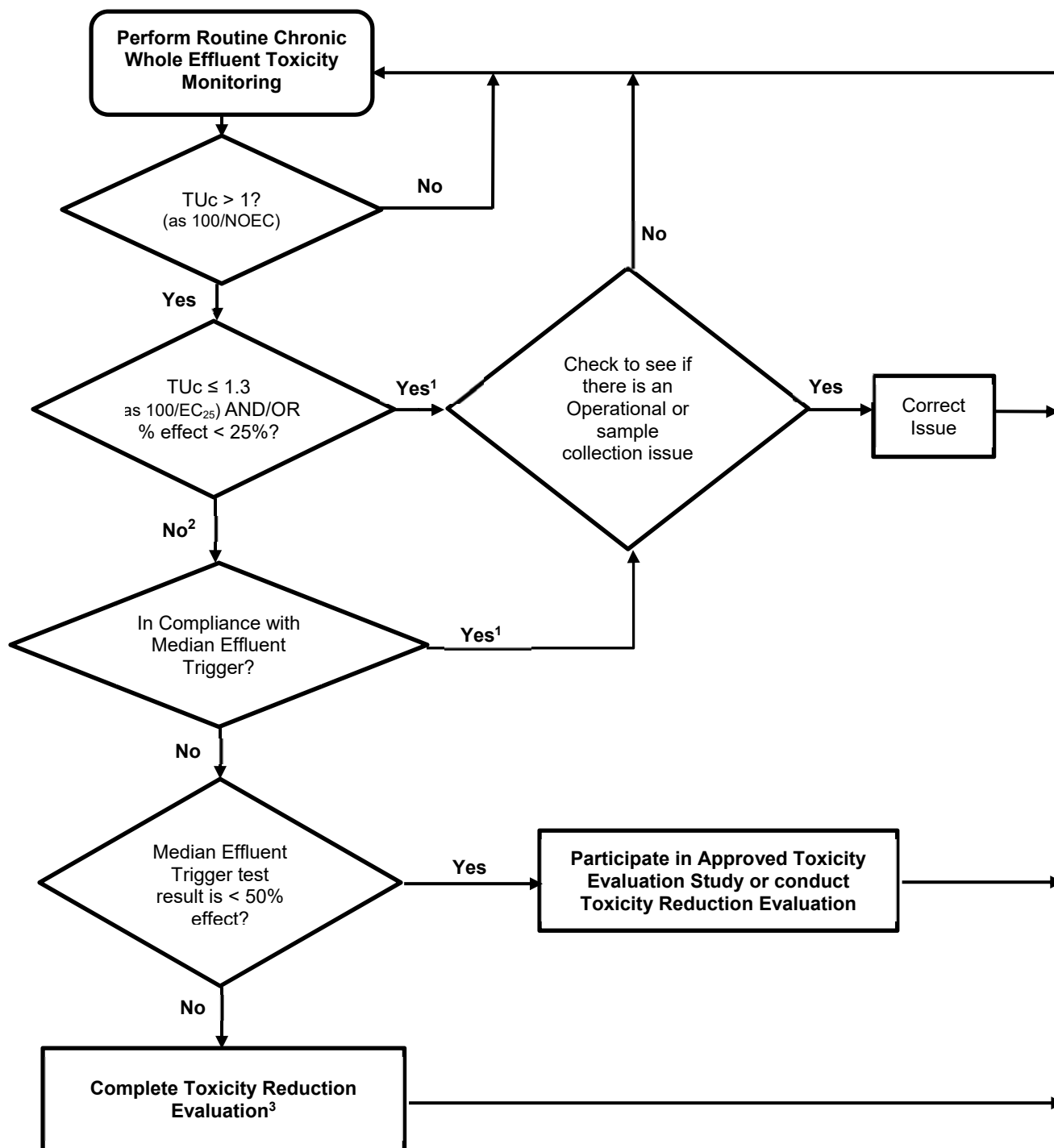
The Monitoring and Reporting Program of this Order requires chronic WET monitoring to demonstrate compliance with the Basin Plan's narrative toxicity objective. If the discharge exceeds the chronic toxicity monitoring trigger, this provision requires the Discharger either participate in an approved Toxicity Evaluation Study (TES) or conduct a site-specific Toxicity Reduction Evaluation (TRE).

A TES may be conducted in lieu of a TRE if the percent effect is less than 50%. Determining the cause of toxicity can be challenging when the toxicity signal is low. Several Central Valley facilities with similar treatment systems have been experiencing intermittent low level toxicity. The dischargers have not been successful identifying the cause of the toxicity because of the low toxicity signal and the intermittent nature of the toxicity. Due to these challenges, the Central Valley Clean Water Association (CVCWA), in collaboration with staff from the Central Valley Water Board, has initiated a Special Study to Investigate Low Level Toxicity Indications (Group Toxicity Study). This Order allows the Discharger to participate in an approved TES, which may be conducted individually or as part of a coordinated group effort with other similar dischargers that are exhibiting toxicity. Although the current CVCWA Group Toxicity Study is related to low-level toxicity, participation in an approved TES is not limited to only low-level toxicity issues.

If the chronic toxicity is > 1 TUc (as 100/NOEC) **AND** the percent effect is ≤ 50 percent at **100** percent effluent, as the median of three consecutive bioassays within a 6 week period, the Discharger may participate in an approved TES in lieu of a TRE.

See the WET Monitoring Flow Chart (Figure F-3), below, for further clarification of the decision points for determining the need for TES/TRE initiation.

**Figure F-3
WET Monitoring Flow Chart**



¹ The Discharger may participate in an approved TES if the discharge has exceeded the chronic toxicity monitoring trigger twice or more in the past 12 month period and the cause is not identified and/or addressed.

² The Discharger may elect to take additional samples to determine the 3 sample median. The samples shall be collected at least one week apart and the final sample shall be within 6 weeks of the initial sample exhibiting toxicity.

³ The Discharger may participate in an approved TES instead of a TRE if the Discharger has conducted a TRE within the past 12 months and has been unsuccessful in identifying the toxicant.

- b. **Phase 1 Methylmercury Control Study.** The Basin Plan's Delta Mercury Control Program requires NPDES dischargers, working with other stakeholders, to conduct methylmercury control studies (Phase 1 Control Studies) to evaluate existing control methods and, as needed, develop additional control methods that could be implemented to achieve their methylmercury load and waste load allocations. Phase 1 Control Studies can be developed through a stakeholder group approach or other collaborative mechanism, or by individual dischargers. The Discharger has agreed to participate in the Central Valley Clean Water Association (CVCWA) Coordinated Methylmercury Control Study (Methylmercury Control Study).

The Central Valley Water Board will use the Phase 1 Control Studies' results and other information to consider amendments to the Delta Mercury Control Program during the Phase 1 Delta Mercury Control Program Review. The objective of the Control Studies is to evaluate existing control methods and, as needed, develop additional control methods that could be implemented to achieve the methylmercury load and waste load allocations. In accordance with the Delta Mercury Control Plan, a work plan was submitted on 20 April 2013 by CVCWA on behalf of a group of POTW's in the region. The Central Valley Water Board commits to supporting an adaptive management approach. The adaptive management approach includes the formation of a Stakeholder Group(s) and a Technical Advisory Committee (TAC).

The Methylmercury Control Study shall evaluate the feasibility of reducing sources more than the minimum amount needed to achieve the methylmercury allocation. The Methylmercury Control Study also may include an evaluation of innovative actions, watershed approaches, offsets projects, and other short and long-term actions that result in reducing inorganic (total) mercury and methylmercury to address the accumulation of methylmercury in fish tissue and to reduce methylmercury exposure. The Methylmercury Control Study may evaluate the effectiveness of using inorganic (total) mercury controls to control methylmercury discharges. The Methylmercury Control Study shall include a description of methylmercury and/or inorganic (total) mercury management practices identified in Phase 1; an evaluation of the effectiveness; and costs, potential environmental effects, and overall feasibility of the control actions. The Methylmercury Control Study shall also include proposed implementation plans and schedules to comply with methylmercury allocations as soon as possible. The Methylmercury Control Study shall be submitted by **20 October 2018**.

The Executive Officer may authorize extending the Methylmercury Control Study due date. The Executive Officer may, after public notice, extend the due date up to 2 years if the Discharger demonstrates it is making significant progress towards developing, implementing and/or completing the Methylmercury Control Study and reasonable attempts have been made to secure funding for the Methylmercury Control Study, but the Discharger has experienced severe budget shortfalls.

3. Best Management Practices and Pollution Prevention

- a. **Water Code Section 13263.3(d)(3) Pollution Prevention Plans.** Pollution prevention plans for mercury and salinity are required in this Order per Water Code section 13263.3(d)(1)(C). Order R5-2012-0115-02 required the Discharger to implement pollution prevention plans for mercury and salinity and the requirements are retained in this Order. The pollution prevention plans required in sections VI.C.3.a and VI.C.7.a of this Order, shall, at a minimum, meet the

requirements outlined in Water Code section 13263.3(d)(3). The minimum requirements for the pollution prevention plans include the following:

- i. An estimate of all of the sources of a pollutant contributing, or potentially contributing, to the loadings of a pollutant in the treatment plant influent.
 - ii. An analysis of the methods that could be used to prevent the discharge of the pollutants into the Facility, including application of local limits to industrial or commercial dischargers regarding pollution prevention techniques, public education and outreach, or other innovative and alternative approaches to reduce discharges of the pollutant to the Facility. The analysis also shall identify sources, or potential sources, not within the ability or authority of the Discharger to control, such as pollutants in the potable water supply, airborne pollutants, pharmaceuticals, or pesticides, and estimate the magnitude of those sources, to the extent feasible.
 - iii. An estimate of load reductions that may be attained through the methods identified in subparagraph ii.
 - iv. A plan for monitoring the results of the pollution prevention program.
 - v. A description of the tasks, cost, and time required to investigate and implement various elements in the pollution prevention plan.
 - vi. A statement of the Discharger's pollution prevention goals and strategies, including priorities for short-term and long-term action, and a description of the Discharger's intended pollution prevention activities for the immediate future.
 - vii. A description of the Discharger's existing pollution prevention programs.
 - viii. An analysis, to the extent feasible, of any adverse environmental impacts, including cross-media impacts or substitute chemicals that may result from the implementation of the pollution prevention program.
 - ix. An analysis, to the extent feasible, of the costs and benefits that may be incurred to implement the pollution prevention program.
- b. **Mercury Exposure Reduction Program (MERP).** The Basin Plan's Delta Mercury Control Program requires dischargers to participate in a MERP. The MERP is needed to address public health impacts of mercury in Delta fish, including activities that reduce actual and potential exposure of and mitigate health impacts to those people and communities most likely to be affected by mercury in Delta caught fish, such as subsistence fishers and their families. The MERP must include elements directed toward:
- i. Developing and implementing community-driven activities to reduce mercury exposure;
 - ii. Raising awareness of fish contamination issues among people and communities most likely affected by mercury in Delta-caught fish such as subsistence fishers and their families;
 - iii. Integrating community-based organizations that serve Delta fish consumers, tribes, and public health agencies in the design and implementation of an exposure reduction program;
 - iv. Identifying resources, as needed, for community-based organizations and tribes to participate in the MERP;

- v. Utilizing and expanding upon existing programs and materials or activities in place to reduce mercury, and as needed, create new materials or activities; and
- vi. Developing measures for program effectiveness.

This Order requires the Discharger participate in a MERP in accordance with the Delta Mercury Control Program. The Discharger has elected to provide financial support in the collective MERP with other Delta dischargers, rather than be individually responsible for any MERP activities. The objective of the MERP is to reduce mercury exposure of Delta fish consumers most likely affected by mercury. The work plan shall address the MERP objective, elements, and the Discharger's coordination with other stakeholders. The Discharger shall continue to participate in the group effort to implement the work plan through 2020 or until they comply with all requirements related to the individual or subarea methylmercury allocation. The Discharger shall notify the Central Valley Water Board if it plans to perform mercury exposure reduction activities individually.

- c. **Salinity Reduction Plan.** Consistent with Order R5-2012-0115-02, the Discharger is required to maintain a Salinity Reduction Plan that describes the Discharger's approach to identify, evaluate, and implement measures to reduce salinity in the effluent discharge to the Old River. The Discharger shall submit annual progress reports in accordance with the MRP (Attachment E, section X.D.1). The Salinity Reduction Plan shall, at minimum, contain the following:
 - i. **Pollution Prevention Plan.** The Discharger submitted a pollution prevention plan for salinity on 17 July 2012 that meets the requirements of Water Code section 13263.3(d)(3). The Discharger shall continue to implement the pollution prevention plan and evaluate and update the pollution prevention plan annually. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the effectiveness of the pollution prevention plan, along with any updates.
 - ii. **Salinity Reduction Goal.** The Central Valley Water Board finds that an increment of 500 $\mu\text{mhos/cm}$ over the electrical conductivity of the municipal water supply is a reasonable goal that the Facility shall strive to achieve. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the progress in meeting the salinity reduction goal.
 - iii. **Central Valley Salinity Alternatives for Long-Term Sustainability (CV-SALTS) Participation.** The Discharger has been participating and shall continue to participate in CV-SALTS. The annual progress reports for the Salinity Reduction Plan shall include a discussion of the Discharger's participation in CV-SALTS.
 - iv. **Lower Salinity Water Supply Sources.** The Salinity Reduction Plan shall include a discussion of the Discharger's efforts to obtain lower salinity water supplies and the annual progress reports for the Salinity Reduction Plan shall include a discussion of the Discharger's efforts in this area.

4. Construction, Operation, and Maintenance Specifications

- a. **Filtration System Operating Specifications.** Turbidity is included as an operational specification as an indicator of the effectiveness of the filtration system for providing adequate disinfection. The tertiary treatment process utilized at this Facility is capable of reliably meeting a turbidity limitation of 2 NTU as a daily

average. Failure of the treatment system such that virus removal is impaired would normally result in increased particles in the effluent, which result in higher effluent turbidity. Turbidity has a major advantage for monitoring filter performance, allowing immediate detection of filter failure and rapid corrective action. The operational specification requires that turbidity prior to disinfection shall not exceed 2 NTU as a daily average; 5 NTU, more than 5 percent of the time within a 24-hour period, and an instantaneous maximum of 10 NTU.

5. Special Provisions for Publicly-Owned Treatment Works (POTW's)

a. Pretreatment Requirements

- i. The federal CWA section 307(b), and federal regulations, 40 C.F.R. part 403, require POTW's to develop an acceptable industrial pretreatment program. A pretreatment program is required to prevent the introduction of pollutants, which will interfere with treatment plant operations or sludge disposal, and prevent pass through of pollutants that exceed water quality objectives, standards or permit limitations. Pretreatment requirements are imposed pursuant to 40 C.F.R. part 403.
- ii. The Discharger has an approved pretreatment program that includes two categorical significant industrial users and two non-categorical significant industrial users.
- iii. The Discharger shall implement and enforce its approved pretreatment program, which is an enforceable condition of this Order. If the Discharger fails to perform the pretreatment functions, the Central Valley Water Board, the State Water Board or U.S. EPA may take enforcement actions against the Discharger as authorized by the CWA.

- b. **Collection System.** The State Water Board issued General Waste Discharge Requirements for Sanitary Sewer Systems, Water Quality Order 2006-0003-DWQ (General Order) on 2 May 2006. The State Water Board amended the MRP for the General Order through Order WQ 2013-0058-EXEC on 6 August 2013. . The General Order requires public agencies that own or operate sanitary sewer systems with greater than one mile of pipes or sewer lines to enroll for coverage under the General Order. The General Order separately requires agencies to develop sanitary sewer management plans (SSMP's) and report all sanitary sewer overflows (SSO's), among other requirements and prohibitions.

The General Order contains requirements for operation and maintenance of collection systems and for reporting and mitigating sanitary sewer overflows that are more extensive, and therefore, more stringent than the requirements under federal standard provisions.. The Discharger and public agencies that are discharging wastewater into the facility's collection system were separately required to obtain enrollment for regulation under the General Order by 1 December 2006.

- c. **Resource Recovery from Anaerobically Digestible Material (ADM).** Some POTW's choose to accept organic material such as food waste, fats, oils, and grease into their anaerobic digesters for co-digestion to increase production of methane and other biogases for energy production and to prevent such materials from being discharged into the collection system, which could cause sanitary sewer overflows. The California Department of Resources Recycling and Recovery (Cal Recycle) has proposed an exemption from requiring Process Facility/Transfer Station permits where this activity is regulated under WDR's or NPDES permits. The proposed exemption is restricted to anaerobically digestible material that has been

prescreened, slurried, and processed/conveyed in a closed system to be co-digested with regular POTW sludge. The proposed exemption requires that a POTW develop Standard Operating Procedures for the proper handling, processing, tracking, and management of the anaerobically digestible material before it is received by the POTW.

Standard Operating Procedures are required for POTW's that accept hauled food waste, fats, oil, and grease for injection into anaerobic digesters. The development and implementation of Standard Operating Procedures for management of these materials is intended to allow CalRecycle to exempt this activity from separate and redundant permitting programs. If the POTW does not accept food waste, fats, oil, or grease for resource recovery purposes, it is not required to develop and implement Standard Operating Procedures.

The Discharger currently does not accept hauled-in ADM for direct injection into its anaerobic digester for co-digestion. However, if the Discharger proposes to receive hauled-in ADM for injection into its anaerobic digester for co-digestion, this provision requires the Discharger to notify the Central Valley Water Board and develop and implement SOP's for this activity prior to initiation of the hauling. The requirements of the SOP's are discussed in section VI.C.5.c of the Order.

6. Other Special Provisions

- a. Consistent with Order R5-2012-0115-02, this Order requires the discharge to be oxidized, filtered, and adequately disinfected pursuant to DDW reclamation criteria, Title 22, or equivalent.
- b. **Phase 2 Improvements (12.5 MGD).** The Discharger has requested a total expansion of allowable flows to be discharged up to 12.5 MGD year-round to the Old River following completion of the Facility's Phase 2 improvements. The Discharger must comply with each provision in section VI.C.6.b of this Order before the permitted effluent flow may be increased.
- c. **Phase 3 Improvements (13.6 MGD).** The Discharger has requested a total expansion of allowable flows to be discharged up to 13.6 MGD year-round to the Old River following completion of the Facility's Phase 3 improvements. The Discharger must comply with each provision in section VI.C.6.c of this Order before the permitted effluent flow may be increased.
- d. **Phase 4 Improvements (16 MGD).** The Discharger has requested a total expansion of allowable flows to be discharged up to 16 MGD year-round to the Old River following completion of the Facility's Phase 4 improvements. The Discharger must comply with each provision in section IV.C.6.d of this Order before the permitted effluent flow may be increased.

7. Compliance Schedules

This Order includes an updated compliance schedule for methylmercury previously included in Order R5-2012-0115-02. In general, an NPDES permit must include final effluent limitations that are consistent with CWA section 301 and with 40 C.F.R. section 122.44(d). There are exceptions to this general rule. The State Water Board's Resolution 2008-0025 "*Policy for Compliance Schedules in National Pollutant Discharge Elimination System Permits*" (Compliance Schedule Policy) allows compliance schedules for new, revised, or newly interpreted water quality objectives or criteria, or in accordance with a TMDL. All compliance schedules must be as short as possible, and may not exceed 10 years from the effective date of the adoption, revision, or new interpretation of the

applicable water quality objective or criterion, unless a TMDL allows a longer schedule. Where a compliance schedule for a final effluent limitation exceeds one year, the Order must include interim numeric effluent limitations for that constituent or parameter, interim requirements and dates toward achieving compliance, and compliance reporting within 14 days after each interim date. The Order may also include interim requirements to control the pollutant, such as pollutant minimization and source control measures.

In accordance with the Compliance Schedule Policy and 40 C.F.R. section 122.47, a discharger who seeks a compliance schedule must demonstrate additional time is necessary to implement actions to comply with a more stringent permit limitation. The discharger must provide the following documentation as part of the application requirements:

- a. Diligent efforts have been made to quantify pollutant levels in the discharge and the sources of the pollutant in the waste stream, and the results of those efforts;
- b. Source control efforts are currently underway or completed, including compliance with any pollution prevention programs that have been established;
- c. A proposed schedule for additional source control measures or waste treatment;
- d. Data demonstrating current Facility performance to compare against existing permit effluent limits, as necessary to determine which is the more stringent interim, permit effluent limit to apply if a schedule of compliance is granted;
- e. The highest discharge quality that can reasonably be achieved until final compliance is attained;
- f. The proposed compliance schedule is as short as possible, given the type of facilities being constructed or programs being implemented, and industry experience with the time typically required to construct similar facilities or implement similar programs; and
- g. Additional information and analyses to be determined by the Regional Water Board on a case-by-case basis.

Based on information submitted with the ROWD, SMR's, and other miscellaneous submittals, it has been demonstrated to the satisfaction of the Central Valley Water Board that the Discharger needs time to implement actions to comply with the final effluent limitations for methylmercury.

The Delta Mercury Control Program is composed of two phases. Phase 1 spans from 20 October 2011 through the Phase 1 Delta Mercury Control Program Review, expected to conclude October 2020. Phase 1 emphasizes studies and pilot projects to develop and evaluate management practices to control methylmercury. Phase 1 includes provisions for: implementing pollution minimization programs and interim mass limits for inorganic (total) mercury point sources in the Delta and Yolo Bypass; controlling sediment-bound mercury in the Delta and Yolo Bypass that may become methylated in agricultural lands, wetlands, and open-water habitats; and reducing total mercury loading to the San Francisco Bay, as required by the *Water Quality Control Plan for the San Francisco Bay*.

At the end of Phase 1, the Central Valley Water Board will conduct a Phase 1 Delta Mercury Control Program Review that considers: modification of methylmercury goals, objectives, allocations and/or the Final Compliance Date; implementation of management practices and schedules for methylmercury controls; and adoption of a mercury offset program for dischargers who cannot meet their load and waste load allocations after implementing all reasonable load reduction strategies. The review will

also consider other potential public and environmental benefits and negative impacts (e.g., habitat restoration, flood protection, water supply, and fish consumption) of attaining the allocations. The fish tissue objectives, linkage analysis between objectives and sources, and the attainability of the allocations will be re-evaluated based on the findings of Phase 1 control studies and other information. The linkage analysis, fish tissue objectives, allocations, and time schedules shall be adjusted at the end of Phase 1, or subsequent program reviews, if appropriate.

Phase 2 begins after the Phase 1 Delta Mercury Control Program Review or by 20 October 2020, whichever occurs first, and ends in 2030. During Phase 2, dischargers shall implement methylmercury control programs and continue inorganic (total) mercury reduction programs. Compliance monitoring and implementation of upstream control programs also shall occur in Phase 2. Any compliance schedule contained in an NPDES permit must be “...an enforceable sequence of actions or operations leading to compliance with an effluent limitation...” per the definition of a compliance schedule in CWA section 502(17). See also 40 C.F.R. section 122.2 (definition of schedule of compliance). The compliance schedule for methylmercury meets these requirements.

Federal regulations at 40 C.F.R. section 122.47(a)(1) requires that, “Any schedules of compliance under this section shall require compliance as soon as possible...” The Compliance Schedule Policy also requires that compliance schedules are as short as possible and may not exceed 10 years, except when “...a permit limitation that implements or is consistent with the waste load allocations specified in a TMDL that is established through a Basin Plan amendment, provided that the TMDL implementation plan contains a compliance schedule or implementation schedule.” As discussed above, the Basin Plan’s Delta Mercury Control Program includes compliance schedule provisions and allows compliance with the waste load allocations for methylmercury by 2030. Until the Phase 1 Control Studies are complete and the Central Valley Water Board conducts the Phase 1 Delta Mercury Control Program Review, it is not possible to determine the appropriate compliance date for the Discharger that is as soon as possible. Therefore, this Order establishes a compliance schedule for the final WQBEL’s for methylmercury with full compliance required by 31 December 2030, which is consistent with the Final Compliance Date of the TMDL. At completion of the Phase 1 Delta Mercury Control Program Review, the final compliance date for this compliance schedule will be re-evaluated to ensure compliance is required as soon as possible. Considering the available information, the compliance schedule is as short as possible in accordance with federal regulations and the Compliance Schedule Policy.

VII. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

CWA section 308 and 40 C.F.R. sections 122.41(h), (j)-(l), 122.44(i), and 122.48 require that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Valley Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. The MRP, Attachment E of this Order establishes monitoring, reporting, and recordkeeping requirements that implement federal and state requirements. The following provides the rationale for the monitoring and reporting requirements contained in the MRP for this facility.

A. Influent Monitoring

1. Domestic influent monitoring for the main treatment facility and industrial influent monitoring for the industrial treatment facility are required in this Order. Influent monitoring is required to collect data on the characteristics of the wastewater and to assess compliance with effluent limitations (e.g., BOD₅ and TSS reduction requirements). The monitoring frequencies for flow (continuous), electrical conductivity (weekly), pH

(continuous), and total dissolved solids (weekly) at Monitoring Locations INF-001 and INF-002 have been retained from Order R5-2012-0115-02.

2. Order R5-2012-0115-02 required daily monitoring for BOD₅ and TSS in the influent. This Order reduces the monitoring frequency from daily to three times per week. The Central Valley Water Board finds that this frequency is sufficient to determine compliance with effluent limitations for BOD₅ and TSS following the disinfection process.

B. Effluent Monitoring

1. Pursuant to the requirements of 40 C.F.R. section 122.44(i)(2) effluent monitoring is required for all constituents with effluent limitations. Effluent monitoring is necessary to assess compliance with effluent limitations, assess the effectiveness of the treatment process, and to assess the impacts of the discharge on the receiving stream and groundwater.
2. Effluent monitoring frequencies and sample types for flow (continuous), pH (continuous), chlorodibromomethane (monthly), dichlorobromomethane (monthly), mercury (monthly), ammonia (weekly), chlorine residual (continuous), electrical conductivity (weekly), hardness (monthly), methylmercury (monthly), nitrate plus nitrite (weekly), and temperature (continuous) have been retained from Order R5-2012-0115-02 to determine compliance with effluent limitations for these parameters. Continuous effluent monitoring for sulfur dioxide (SO₂) has been added to evaluate compliance with the total chlorine residual effluent limitations.
3. Monitoring data collected over the previous permit term for bis (2-ethylhexyl) phthalate, copper, and lead did not demonstrate reasonable potential to exceed water quality objectives/criteria. Thus, routine monitoring requirements for these parameters have not been retained from Order R5-2012-0115-02.
4. This Order establishes annual effluent monitoring requirements for chlorpyrifos and diazinon in order to determine compliance with effluent limitations for these parameters. Chlorpyrifos and diazinon shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or an EPA-approved Alternate Testing Procedure. However, where no methods are specified for a given pollutant that meets a specific reporting limit or method performance standard, an alternate method can be approved by the Central Valley Water Board. This Order requires either EPA 8141A or EPA 625M for chlorpyrifos and diazinon. These alternate analytical methods are necessary to determine compliance with the effluent limits for these constituents. Basin Plan water quality objectives for chlorpyrifos and diazinon are 0.015 µg/L and 0.10 µg/L, respectively, as a 4-day average (see section IV.C.3.a.iii of this Fact Sheet for more information). Therefore, chlorpyrifos and diazinon must be analyzed using analytical methods that have a lower MDL than the Basin Plan water quality objectives.
5. Order R5-2012-0115-02 required daily monitoring for BOD₅, TSS, and total coliform organisms in the effluent. This Order reduces the monitoring frequency from daily to three times per week. The Central Valley Water Board finds that this frequency is sufficient to ensure consistent level of disinfection and to determine compliance with effluent limitations for BOD₅, TSS, and total coliform organisms following the disinfection process.
6. This Order establishes monthly effluent monitoring requirements for total dissolved solids in order to determine compliance with the Discharger's performance-based annual mass loading limit.

7. In accordance with section 1.3 of the SIP, periodic monitoring is required for priority pollutants for which criteria or objectives apply and for which no effluent limitations have been established. This Order requires effluent monitoring for priority pollutants and other constituents of concern every other month during calendar year 2020. This monitoring frequency has been retained from Order R5-2012-0115-02. See section IX.D of the MRP (Attachment E) for more detailed requirements related to performing priority pollutant monitoring.
8. Water Code section 13176, subdivision (a), states: "*The analysis of any material required by [Water Code sections 13000-16104] shall be performed by a laboratory that has accreditation or certification pursuant to Article 3 (commencing with section 100825) of Chapter 4 of Part 1 of Division 101 of the Health and Safety Code.*" The DDW accredits laboratories through its Environmental Laboratory Accreditation Program (ELAP).

Section 13176 cannot be interpreted in a manner that would violate federal holding time requirements that apply to NPDES permits pursuant to the CWA. (Wat. Code §§ 13370, subd. (c), 13372, 13377.) Section 13176 is inapplicable to NPDES permits to the extent it is inconsistent with CWA requirements. (Wat. Code § 13372, subd. (a).) The holding time requirements are 15 minutes for chlorine residual, dissolved oxygen, and pH, and immediate analysis is required for temperature (40 C.F.R. § 136.3(e), Table II). The Discharger maintains an ELAP accredited laboratory on-site and conducts analyses for chlorine residual, dissolved oxygen, and pH within the required 15 minute hold times.

C. Whole Effluent Toxicity Testing Requirements

1. **Acute Toxicity.** The Facility has demonstrated consistent compliance with the acute toxicity effluent limitation, therefore, the monitoring frequency for 96-hour acute bioassay testing has been reduced from monthly to quarterly. The monitoring is required to demonstrate compliance with the effluent limitation for acute toxicity.
2. **Chronic Toxicity.** Quarterly chronic whole effluent toxicity testing is required in order to demonstrate compliance with the Basin Plan's narrative toxicity objective. The most sensitive species to be used for chronic toxicity testing was determined in accordance with the process outlined in the MRP Section V.E.2. Based on the Discharger's last 3 years of chronic toxicity data, the discharge did not exceed 1 TUc (as 100/NOEC). The species that exhibited the highest percent effect was the water flea (*Ceriodaphnia dubia*), with a percent effect of 21.3%. Consequently, *Ceriodaphnia dubia* has been established as the most sensitive species for chronic WET testing.

D. Receiving Water Monitoring

1. Surface Water

- a. **Delta Regional Monitoring Program (RMP).** The Central Valley Water Board requires individual dischargers and discharger groups to conduct monitoring of Delta waters and Delta tributary waters in the vicinity of their discharge, known as ambient (or receiving) water quality monitoring. This monitoring provides information on the impacts of waste discharges on Delta waters, and on the extant condition of the Delta waters. However, the equivalent funds spent on current monitoring efforts could be used more efficiently and productively, and provide a better understanding of geographic and temporal distributions of contaminants and physical conditions in the Delta, and of other Delta water quality issues, if those funds were used for a coordinated ambient monitoring effort, rather than continue to be used in individual, uncoordinated ambient water quality monitoring programs. The Delta RMP will provide data to better inform management and policy decisions regarding the Delta.

The Discharger has elected to participate in the Delta RMP. The Discharger submitted a letter dated 8 December 2014 expressing interest in participating in the Delta RMP. The Discharger's request to reduce receiving water monitoring and participate in the Delta RMP was approved in a letter signed by the Executive Officer dated 9 January 2015.

Delta RMP data is not intended to be used directly to represent either upstream or downstream water quality for purposes of determining compliance with this Permit. Delta RMP monitoring stations are established generally as "integrator sites" to evaluate the combined impacts on water quality of multiple discharges into the Delta; Delta RMP monitoring stations would not normally be able to identify the source of any specific constituent, but would be used to identify water quality issues needing further evaluation. Delta RMP monitoring data may be used to help establish background receiving water quality for an RPA in an NPDES permit after evaluation of the applicability of the data for that purpose. In general, monitoring data from samples collected in the immediate vicinity of the discharge will be given greater weight in permitting decisions than receiving water monitoring data collected at greater distances from the discharge point. Delta RMP data, as with all environmental monitoring data, can provide an assessment of water quality at a specific place and time that can be used in conjunction with other information, such as other receiving water monitoring data, spatial and temporal distribution and trends of receiving water data, effluent data from the Discharger's discharge and other point and non-point source discharges, receiving water flow volume, speed and direction, and other information to determine the likely source or sources of a constituent that resulted in exceedance of a receiving water quality objective.

The Discharger shall continue to participate in the Delta RMP until such time as the Discharger informs the Board that participation in the Delta RMP will cease. Participation in the Delta RMP by a Discharger shall consist of providing funds and/or in-kind services to the Delta RMP at least equivalent to discontinued individual monitoring and study efforts. If a discharger or discharger group fails to maintain adequate participation in the Delta RMP, as determined through criteria to be developed by the Delta RMP Steering Committee, the Steering Committee will recommend to the Central Valley Water Board that an individual monitoring program be reinstated for that discharger or discharger group.

Since the Discharger is participating in the Delta RMP, this Order does not require receiving water characterization monitoring for purposes of conducting the RPA. However, the ROWD for the next permit renewal shall include, at minimum, one representative ambient background characterization monitoring event for priority pollutant constituents¹⁸ during the term of the permit. Data from the Delta RMP may be utilized to characterize the receiving water in the permit renewal. Alternatively, the Discharger may conduct any site-specific receiving water monitoring deemed appropriate by the Discharger and submit that monitoring data with the ROWD. In general, monitoring data from samples collected in the immediate vicinity of the discharge will be given greater weight in permitting decisions than receiving water monitoring data collected at greater distances from the discharge point. Historic receiving water monitoring data taken by the Discharger and from other sources may also be evaluated to determine whether or not that data is representative of current receiving water conditions. If found to be representative of current

¹⁸ Appendix A to 40 C.F.R. part 423.

conditions, then that historic data may be used in characterizing receiving water quality for the purposes of the RPA.

- b. Receiving water monitoring is necessary to assess compliance with receiving water limitations and to assess the impacts of the discharge on the receiving stream.
- c. Receiving water monitoring frequencies and sample types at Monitoring Locations RSW-002, RSW-003, and RSW-004¹⁹ for pH (weekly), ammonia (weekly), dissolved oxygen (weekly), electrical conductivity (weekly), hardness (monthly), temperature (weekly), and turbidity (weekly) have been retained from Order R5-2012-0115-02 to determine compliance with applicable receiving water limitations and characterize the receiving water for these parameters. This Order also requires monthly sampling for the pH, ammonia, dissolved oxygen, electrical conductivity, hardness, temperature, and turbidity at RSW-001 or, in lieu of collecting a sample at RSW-001, temperature data may be reported from DWR Monitoring Station ORX.
- d. In accordance with section 1.3 of the SIP, periodic monitoring is required for priority pollutants for which criteria or objectives apply and for which no effluent limitations have been established. This Order requires the ROWD for the next permit renewal shall include, at minimum, one representative ambient background characterization monitoring event for priority pollutant constituents²⁰ during the term of the permit, in order to collect data to conduct an RPA for the next permit renewal.

E. Other Monitoring Requirements

1. Biosolids Monitoring – Not Applicable

Biosolids monitoring requirements for the Facility are separately regulated in WDR Order R5-2007-0038.

2. Water Supply Monitoring

Water supply monitoring is required to evaluate the source of constituents in the wastewater. Consistent with Order R5-2012-0115-02, this Order requires water supply monitoring for electrical conductivity (quarterly), standard minerals (annually), and total dissolved solids (quarterly) at Monitoring Location SPL-001.

3. Land Discharge Monitoring – Not Applicable

Land discharge monitoring requirements for the Facility are separately regulated in WDR Order R5-2007-0038.

4. Discharge Monitoring Report-Quality Assurance (DMR-QA) Study Program

Under the authority of section 308 of the CWA (33 U.S.C. § 1318), U.S. EPA requires all dischargers under the NPDES Program to participate in the annual DMR-QA Study Program. The DMR-QA Study evaluates the analytical ability of laboratories that routinely perform or support self-monitoring analyses required by NPDES permits. There are two options to satisfy the requirements of the DMR-QA Study Program: (1) The Discharger can obtain and analyze a DMR-QA sample as part of the DMR-QA Study; or (2) Per the waiver issued by U.S. EPA to the State Water Board, the Discharger can submit the results of the most recent Water Pollution Performance Evaluation Study from their own laboratories or their contract laboratories. A Water Pollution Performance Evaluation Study is similar to the DMR-QA Study. Thus, it also

¹⁹ Monitoring requirements at Monitoring Location RSW-004 are not applicable until discharge begins at Discharge Point 002.

²⁰ Appendix A to 40 C.F.R. part 423.

evaluates a laboratory's ability to analyze wastewater samples to produce quality data that ensures the integrity of the NPDES Program. The Discharger shall submit annually the results of the DMR-QA Study or the results of the most recent Water Pollution Performance Evaluation Study to the State Water Board. The State Water Board's Quality Assurance Program Officer will send the DMR-QA Study results or the results of the most recent Water Pollution Performance Evaluation Study to U.S. EPA's DMR-QA Coordinator and Quality Assurance Manager.

VIII. PUBLIC PARTICIPATION

The Central Valley Water Board has considered the issuance of WDR's that will serve as an NPDES permit for the City of Tracy Wastewater Treatment Plant. As a step in the WDR adoption process, the Central Valley Water Board staff has developed tentative WDR's and has encouraged public participation in the WDR adoption process.

A. Notification of Interested Parties

The Central Valley Water Board notified the Discharger and interested agencies and persons of its intent to prescribe WDR's for the discharge and provided an opportunity to submit written comments and recommendations. Notification was provided through publication of a Notice of Public Hearing (Notice) in the Tracy Press on 22 September 2017, posting of the Notice at the Tracy City Hall and Tracy Post Office on 21 September 2017, and posting of the Notice at the Facility on 20 September 2017. The Notice and tentative Order were also posted on the Central Valley Water Board's website on 20 September 2017.

The public had access to the agenda and any changes in dates and locations through the Central Valley Water Board's website at:

http://www.waterboards.ca.gov/centralvalley/board_info/meetings/

B. Written Comments

Interested persons were invited to submit written comments concerning tentative WDR's as provided through the notification process. Comments were due either in person or by mail to the Executive Office at the Central Valley Water Board at the address on the cover page of this Order.

To be fully responded to by staff and considered by the Central Valley Water Board, the written comments were due at the Central Valley Water Board office by 5:00 p.m. on **20 October 2017**.

C. Public Hearing

The Central Valley Water Board held a public hearing on the tentative WDR's during its regular Board meeting on the following date and time and at the following location:

Date: 7/8 December 2017
Time: 8:30 a.m.
Location: Regional Water Quality Control Board, Central Valley Region
11020 Sun Center Dr., Suite #200
Rancho Cordova, CA 95670

Interested persons were invited to attend. At the public hearing, the Central Valley Water Board heard testimony pertinent to the discharge, WDR's, and permit. For accuracy of the record, important testimony was requested in writing.

D. Reconsideration of Waste Discharge Requirements

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., within 30 calendar days of the date of adoption of this Order at the following address, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

Or by email at waterqualitypetitions@waterboards.ca.gov

For instructions on how to file a petition for review, see
http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetition_instr.shtml

E. Information and Copying

The Report of Waste Discharge, other supporting documents, and comments received are on file and may be inspected at the address above at any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Central Valley Water Board by calling (916) 464-3291.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDR's and NPDES permit should contact the Central Valley Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this Order should be directed to Danielle Siebal at (916) 464-4843.

ATTACHMENT G – SUMMARY OF REASONABLE POTENTIAL ANALYSIS

Constituent	Units	MEC	B	C	CMC	CCC	Water & Org	Org. Only	Basin Plan	MCL	Reasonable Potential
Ammonia Nitrogen, Total (as N)	mg/L	1.41	<0.10	1.47	2.14 ¹	1.47 ²	--	--	--	--	Yes ³
Bis (2-Ethylhexyl) Phthalate	µg/L	0.74	<0.83	1.8	--	--	1.8	5.9	--	4.0	No
Chloride	mg/L	230	220	230	860 ¹	230 ⁴	--	--	--	250	No
Chlorodibromomethane	µg/L	12	<0.40	0.41	--	--	0.41	34	--	80 ⁵	Yes
Chlorpyrifos	µg/L	<0.0029	<0.0029	0.014	0.02	0.014	--	--	--	--	No ^{3,7}
Copper, Total Recoverable	µg/L	7.2	2.8	14	21	14	1,300	--	--	1,000	No
Diazinon	µg/L	<0.0036	<0.0036	0.05	0.08	0.05	--	--	--	--	No ^{3,7}
Dichlorobromomethane	µg/L	19	<0.40	0.56	--	--	0.56	46	--	80 ⁵	Yes
Electrical Conductivity @ 25°C	µmhos/cm	1,258 ⁶	1,000 ⁶	900	--	--	--	--	--	--	Insufficient information ³
Lead, Total Recoverable	µg/L	0.43	0.21	4.9	130	4.9	--	--	--	15	No
Mercury, Total Recoverable	µg/L	0.0024	<0.0002	0.050	--	--	0.050	0.051	--	2.0	No ^{3,7}
Methylmercury	µg/L	0.00013	0.00006	--	--	--	--	--	--	--	No ^{3,7}
Nitrate, Total (as N)	mg/L	8.0	1.4	10	--	--	--	--	--	10	Yes ³
Nitrite, Total (as N)	mg/L	0.10	<0.004	1.0	--	--	--	--	--	1.0	No
Sulfate	mg/L	113 ⁶	99 ⁶	250	--	--	--	--	--	250	No
Total Dissolved Solids	mg/L	722 ⁶	630 ⁶	500	--	--	--	--	--	500	Insufficient information ³

General Note: All inorganic concentrations are given as a total recoverable.

MEC = Maximum Effluent Concentration

B = Maximum Receiving Water Concentration or lowest detection level, if non-detect

C = Criterion used for Reasonable Potential Analysis

CMC = Criterion Maximum Concentration (CTR or NTR)

CCC = Criterion Continuous Concentration (CTR or NTR)

Water & Org = Human Health Criterion for Consumption of Water & Organisms (CTR or NTR)

Org. Only = Human Health Criterion for Consumption of Organisms Only (CTR or NTR)

Basin Plan = Numeric Site-specific Basin Plan Water Quality Objective

MCL = Drinking Water Standards Maximum Contaminant Level

NA = Not Available

ND = Non-detect

Footnotes:

- (1) U.S. EPA National Recommended Ambient Water Quality Criteria, Freshwater Aquatic Life Protection, 1-hour average.
- (2) U.S. EPA National Recommended Ambient Water Quality Criteria, Freshwater Aquatic Life Protection, 30-day average.
- (3) See section IV.C.3 of the Fact Sheet for a discussion of the RPA results.
- (4) U.S. EPA National Recommended Ambient Water Quality Criteria, Freshwater Aquatic Life Protection, 4-day average.
- (5) Represents the Primary MCL for total trihalomethanes, which includes bromoform, chlorodibromomethane, chloroform, and dichlorobromomethane.
- (6) Represents the maximum observed annual average concentration for comparison with the MCL.
- (7) Constituents with a Total Maximum Daily Load (TMDL)

ATTACHMENT H – CALCULATION OF WQBEL'S

Human Health WQBEL's Calculations										
Parameter	Units	Criteria	Mean Background Concentration	CV Eff	Dilution Factor	MDEL/AMEL Multiplier	AMEL Multiplier	AMEL	MDEL	AWEL
Chlorodibromomethane	µg/L	0.41	<0.03 ¹	0.46 ²	20	1.78	1.42	8.0	14	--
Dichlorobromomethane	µg/L	0.56	<0.06 ¹	0.45 ²	20	1.76	1.41	11	19	--
Nitrate Nitrogen, Total (as N)	mg/L	10	1.4	0.15 ²	--	1.25	1.13	10	--	12

¹ Reflects the lowest MDL's from sampling conducted between October 2008 and October 2016.

² Coefficient of Variation (CV) established in accordance with section 1.4 of the SIP.

Aquatic Life WQBEL's Calculations																	
Parameter	Units	Criteria		B	CV Eff	Dilution Factors		Aquatic Life Calculations							Final Effluent Limitations		
		CMC	CCC			CMC	CCC	ECA Multiplier _{acute}	LTA _{acute}	ECA Multiplier _{chronic}	LTA _{chronic}	AMEL Multiplier ₉₅	AWEL Multiplier	MDEL Multiplier ₉₉	AMEL ¹	AWEL ²	MDEL ³
Ammonia Nitrogen, Total (as N)	mg/L	2.14	1.47	<0.10	0.24	--	--	0.60	1.27	0.905	1.33	1.21	1.57	--	1.5	2.0	--
Chlorpyrifos	µg/L	0.025	0.015	<0.0029	0.6	--	--	0.32	0.0080	0.53	0.0079	1.55	2.68	--	0.012	0.021	--
Diazinon	µg/L	0.16	0.10	<0.0036	0.6	--	--	0.32	0.051	0.53	0.053	1.55	2.68	--	0.079	0.14	--

¹ Average Monthly Effluent Limitations are calculated according to section 1.4 of the SIP using a 95th percentile occurrence probability.

² Average Weekly Effluent Limitations are calculated according to section 1.4 of the SIP using a 98th percentile occurrence probability.

³ Maximum Daily Effluent Limitations are calculated according to section 1.4 of the SIP using a 99th percentile occurrence probability.

⁴ CV established in accordance with section 1.4 of the SIP.